

FEDERAL MARITIME COMMISSION

DOCKET NO. 14-06

**SANTA FE DISCOUNT CRUISE PARKING, INC. d/b/a EZ
CRUISE PARKING; LIGHTHOUSE PARKING, INC.; and
SYLVIA ROBLEDO d/b/a 81ST DOLPHIN PARKING**

v.

**THE BOARD OF TRUSTEES OF THE GALVESTON
WHARVES and THE GALVESTON PORT FACILITIES
CORPORATION**

**RESPONDENTS THE BOARD OF TRUSTEES OF THE GALVESTON WHARVES
AND THE GALVESTON PORT FACILITIES CORPORATION'S VERIFIED
PETITION REGARDING ATTORNEY FEES**

TO THE HONORABLE COMMISSION:

Pursuant to 46 U.S.C. §41305(e)¹ and Rule 72 of the Rules of Practice and Procedure of the Federal Maritime Commission, Respondents The Board of Trustees of the Galveston Wharves (hereafter "the Port") and the Galveston Port Facilities Corporation (hereafter "GPFC"), by their attorneys McLeod, Alexander, Powel & Apffel, P.C., hereby file this Verified Petition seeking reasonable attorney's fees as the prevailing party in this proceeding. The Affidavit of Anthony P. Brown regarding attorney fees ("Brown Affidavit") is submitted along with this Verified Petition.

I. INTRODUCTION

¹ 46 U.S.C. §41305(e) states "In any action brought under section 41301, the prevailing party may be awarded reasonable attorney fees."

On June 16, 2014, Complainants Santa Fe Discount Cruise Parking, Inc. d/b/a EZ Cruise Parking, Lighthouse Parking, Inc. and Sylvia Robledo d/b/a 81st Dolphin Parking filed with the Commission their Original Complaint alleging that access fees assessed by the Port violated 46 U.S.C. Sections 41102(c), 41106(2), and 41106 (3).

On November 21, 2014, Administrative Law Judge Clay C. Guthridge issued an Order on Pending Motions and Partial Dismissal, dismissing Complainants' claims of violations of Sections 41102 (c) and 41106 (3) with prejudice. Neither party filed exceptions to the ALJ's Order.

On December 4, 2015, ALJ Guthridge entered an Initial Decision dismissing with prejudice Complainants' remaining claim regarding Section 41106(2). As the prevailing party, ALJ Guthridge found that Respondents "may be awarded reasonable attorney fees for attorney services performed after the effective date of the Coble Act."²

On January 13, 2017, the Commission affirmed the Initial Decision. The Commission also instructed Respondents to file a petition under FMC Rule 254 seeking attorney fees so that the Commission could determine whether Respondents are eligible for attorney fees, entitled to attorney fees and whether such fees requested are reasonable.

II. ELIGIBILITY FOR AWARD OF ATTORNEY FEES

46 U.S.C. § 41305(e) and FMC Rule 254 both provide that "[i]n any complaint proceeding brought under 46 U.S.C. § 41301 (sections 11(a)-(b) of the Shipping Act of 1984), the Commission may, upon petition, award the prevailing party reasonable attorney fees." *See* 46 C.F.R. § 502.254(a) (2016). The term 'prevailing party' "is a 'legal term of art,' and is 'interpreted . . . consistently' – that is, without distinctions based on the particular statutory context in which it appears." *Smyth v. Rivero*, 282 F.3d 268, 274 (4th Cir. 2002) (citations omitted). In issuing its new rules on attorney fees, the Commission cited *Tex. State Teachers*

² Initial Decision at pg. 54.

Ass'n v. Garland Indep. Sch. Dist., 489 U.S. 782, 792-93 (1989) for the premise that: “The touchstone of the prevailing party inquiry” is “the material alteration of the legal relationship of the parties in a manner which Congress sought to promote in the fee statute.” 81 Fed. Reg. at 10,512. As such, the ALJ’s dismissal of all the Complainant’s claims, with prejudice, in this matter may be seen as a “material alteration of the legal relationship of the parties” and a success on the merits for Respondents. 81 Fed. Reg. at 10,512. Respondents, therefore, prevailed on all of Complainant’s claims against and are eligible for an award of fees as prevailing parties.

III. ENTITLEMENT TO AWARD OF ATTORNEY FEES

This matter was also pending and in its early stages on December 18, 2014, the effective date of the Coble Act. As the Commission noted in its rulemaking

On or after December 18, 2014, complainants were on notice that they should consider the status of petitions and matters then pending before the Commission and then make reasoned decisions on how to proceed. If the complainant did not wish to be subjected to the potential liability for such fees, the complainant could have, for example, requested dismissal of the claim without prejudice under Rule 72 of the Commission’s Rules of Practice and Procedure (46 CFR 502.72). See *Martin*, 527 U.S. at 361 (rejecting the assumption that the initial decision to file a claim is an irrevocable one).

81 Fed. Reg. at 10157. Instead of seeking dismissal Complainants doggedly moved forward. Respondents were subjected to a “kitchen sink” set of claims by Complainants, many of which were repetitive and included unappealed claims previously dismissed by the ALJ. During this proceeding Complainants did the following:

- a. Demanded over 8 years of “reparations” under a fee schedule they requested, they negotiated for and agreed to and then benefited from;
- b. Demanded that the Port be prohibited from charging anyone a user fee for entering the terminal until they were charged some unspecified rate

- c. Asserted that it was the Port's burden to negate the presumption of injury even when Complainants could prove no injury. At some point the lack of injury had to be readily apparent to Complainants but they still moved forward;
- d. Complainants required the Port to produce over ten years of records totaling over 22,000 pages.
- e. Plaintiffs required the Port to locate and reproduce recordings of all Board meetings for a decade.
- f. After the ALJ dismissed claims regarding the newer \$20 per trip tariff, the Complainants insisted on subjecting the Port to numerous depositions, record exchanges, briefing schedules when Complainants failed to muster a single credible piece of evidence to prove injury. In the end Complainants had nothing more than attorney argument on alleged injury and no facts;
- g. In order to defend against the repeated claims Respondents were required to review the thousands of records produced and create a large evidentiary appendix to support its defense of the action. This required hundreds of hours of Port staff time as well as attorney and paralegal hours to process, review and prepare the documents for production and creation of the trial record.
- h. Numerous oral depositions were taken of Complainants and Port staff;
- i. Complainants subpoenaed records from a number of local hotels. Those records had to be reviewed and included in the trial record;
- j. In order to respond to the Complainants' proverbial "kitchen sink" array of claims, the Port was required to obtain affidavits from officials of the City of Galveston, Hotel operators and local taxi cab companies;

- k. Respondents were required to engage the services of a financial expert Jeffrey Compton to review the voluminous records and opine both as to the reasonableness of Respondents actions and to prove that Complainants suffered no injury from the prior access fee rates.
- l. Complainants failed to produce a single shred of evidence or legal argument to explain why they included the Galveston Port Facilities Corporation in this matter.

In issuing its rules on entitlement to attorney fees, the Commission stated that “respondents who seek to advance meritorious defenses of their actions should be encouraged to litigate them to the same extent that complainants are encouraged to litigate meritorious claims of violations.” In this proceeding Respondents had no choice but to vigorously defend themselves. At one point in the briefing Complainants even demanded that Respondents be prohibited from charging access fees at all, which would have economically crippled the Port. Complainants engaged in a legal war of attrition to punish the Port for needing to raise its access fee rates. Awarding attorney fees in this proceeding is therefore entirely “consistent with the purposes of the Shipping Act.” *Id.* at 10515.

I. CALCULATION AND REASONABLENESS OF FEES

In calculating attorney fees, the Commission has adopted the Lodestar Method of multiplying the number of hours reasonably spent by the attorneys by reasonable hourly fees.³ In accordance with FMC Rule 254(b), the invoices attached as Exhibit A to the Affidavit of Anthony P. Brown, attached to this Motion, “specify the number of hours claimed... at each identifiable stage of the proceeding” and state the rates charged by McLeod, Alexander, Powel & Apffel, P.C. for such time. The “reasonable hours claimed and the customary fees charged by attorneys” are addressed in the attached Affidavit of Anthony P. Brown.

³Docket No. 14-04, *Edaf Antillas Inc. v. Crowley Caribbean Logistics, LLC*; See also *Attorney's Fees in Reparation Proceedings*, 23 S.R.R. 1698 (FMC 1987); See also *Transworld Shipping (USA), Inc. v. FMI Forwarding (San Francisco), Inc.*, 29 S.R.R. 876, 878 and n.3 (FMC 2002)

The fees shown in the attached invoices include, inter alia, work to consider legal issues relative to the case, discovery to and from Complainants, preparation for and deposition of Complainants and Respondents, settlement discussions and related matters, preparation and filing of a motion to dismiss, preparation and filing of other pleadings and briefing, and this petition for attorney's fees.⁴

Billing of attorney fees to Respondents for this action by McLeod, Alexander, Powel & Apffel, P.C. from December 18, 2014, through the date of this Petition, totaled \$365,733.50. Attorneys billed 2,285.9 hours of attorney time, at an hourly rate ranging from \$150.00 per hour to \$175.00 per hour.

The hourly rates charged in this matter are well within the range of hourly rates charged by attorneys of similar skill and experience in this jurisdiction, as demonstrated by the Laffey Matrix as prepared by the Civil Division of the United States Attorney's Office for the District of Columbia. The Laffey Matrix is accepted by the United States District Court for the District of Columbia.⁵ Additionally, the United States Court of Appeals for the Fifth Circuit, where the undersigned's office is located, has recognized the Laffey Matrix.⁶ A copy of the Laffey Matrix is attached to Mr. Brown's Affidavit as Exhibit B.

In addition, as Mr. Brown's Affidavit states the rates charged are actually somewhat below the customary rates charged by attorneys and associated legal representatives in the Galveston County legal community where Mr. Brown and his firm reside and practice; he and his firm agreed to charge lower rates to the Port, in light of the Port's economic challenges.

⁴ Courts have consistently recognized that federal statutes authorizing attorney's fees include the time spent and fees incurred preparing a fee petition. *Zeigler Coal Co. v. Director, OWCP*, 326 F.3d 894 (7th Cir. 2003); *Kerns v. Consolidation Coal Co.*, 247 F.3d 133, 134 (4th Cir. 2001); *Anderson v. Director, OWCP*, 91 F.3d 1322 (9th Cir. 1996), *Prandini v. Nat'l Teas Co.*, 585 F. 2d 47 (3rd Cir. 1978)

⁵ *Salazar v. District of Columbia*, 123 F. Supp. 2d 8 (D.D.C. 2000)

⁶ *Louisiana Power & Light Co. v. Kellstrom*, 50 F.3d 319, 328 (5th Cir. 1995)

Through the course of discovery, Complainants produced 7,586 pages of documents in response to Respondents' discovery requests, while Respondents produced 22,060 pages of documents responsive to Complainants' discovery request, plus three banker boxes of audio cassette recordings of public board meetings going back to 2006. An additional 297 pages were obtained from non-parties in response to depositions upon written questions. Approximately 33 hours and 21 minutes of deposition testimony was also taken as part of discovery.

As detailed above, Respondents were required to devote significant resources to the defense of this action. Respondents secured a complete and absolute vindication and the fees incurred in its defense are reasonable in light of the claims and work involved to achieve that success.

II. RELIEF REQUESTED

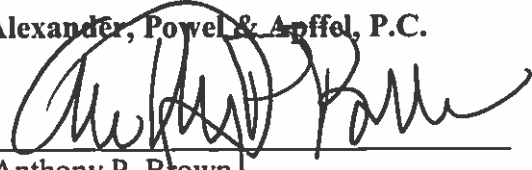
Respondents respectfully request the following relief:

1. Attorney fees uncured in this matter since December 18, 2014, as provided in 46 U.S.C. Section 41305(e) and Rule 254 in the total amount of \$365,733.50 and
2. Such other and further relief as the Commission and Presiding Judge deem just and proper.

Dated: March 14, 2017

Respectfully submitted,

McLeod, Alexander, Powell & Apffel, P.C.

By: 

Anthony P. Brown
Texas State Bar No. 03091300
Tex. S.D. ID No. 7185
802 Rosenberg
P. O. Box 629

Galveston, Texas 77553
Phone: 409-763-2481
Fax: 409-762-1155
apbrown@mapalaw.com

ATTORNEYS FOR THE BOARD OF TRUSTEES
OF THE GALVESTON WHARVES AND THE
GALVESTON PORT FACILITIES CORPORATION

CERTIFICATE OF SERVICE

I hereby certify that I electronically filed this document on this 14th day of March, 2017, and that a true and correct copy of the foregoing was served on all counsel of record *via* certified mail – return receipt requested and email, as indicated below:

Douglas T. Gilman
Brent J. Allison
GILMAN * ALLISON LLP
2005 Cullen Blvd.
Pearland, Texas 77581

Via email: dgilman@gilmanallison.com
Via email: ballison@gilmanallison.com

ATTORNEYS FOR COMPLAINANTS



ANTHONY P. BROWN

VERIFICATION

STATE OF TEXAS §
 §
GALVESTON COUNTY §

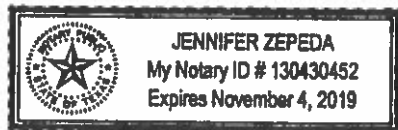
I, Anthony P. Brown, declare under penalty of perjury under the laws of the United State of America that the foregoing Verified Petition Regarding Attorney Fees is true and correct.

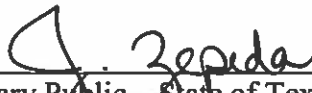
Executed on March 14, 2017.



Anthony P. Brown

SWORN TO AND SUBSCRIBED before me, the undersigned notary, by Anthony P. Brown, on this the 14th day of March, 2017.





Notary Public—State of Texas

FEDERAL MARITIME COMMISSION

DOCKET NO. 14-06

**SANTA FE DISCOUNT CRUISE PARKING, INC. d/b/a EZ
CRUISE PARKING; LIGHTHOUSE PARKING, INC.; and
SYLVIA ROBLEDO d/b/a 81ST DOLPHIN PARKING**

v.

**THE BOARD OF TRUSTEES OF THE GALVESTON
WHARVES and THE GALVESTON PORT FACILITIES
CORPORATION**

**AFFIDAVIT OF ANTHONY P. BROWN IN SUPPORT OF RESPONDENTS THE
BOARD OF TRUSTEES OF THE GALVESTON WHARVES AND THE GALVESTON
PORT FACILITIES CORPORATION'S VERIFIED PETITION REGARDING
ATTORNEY FEES**

STATE OF TEXAS §
 §
GALVESTON COUNTY §

BEFORE ME, the undersigned notary on this day, personally appeared Anthony P. Brown, who known to me and being fully sworn, declared as follows:

1. "I am over eighteen (18) years of age, fully competent and able to make this Affidavit.
2. I am an attorney and shareholder of the firm McLeod, Alexander, Powel & Apffel, P.C., attorneys for Respondents the Board of Trustees of the Galveston Wharves and the Galveston Port Facilities Corporation (collectively, "the Port"). I submit this Affidavit in support of the aforementioned Verified Petition Regarding Attorney Fees.
3. I am familiar with the hourly rates charged by all of the personnel from McLeod, Alexander, Powel & Apffel, P.C., to the Port in this case.

4. True and correct copies of McLeod, Alexander, Powel & Apffel, P.C.'s invoices to the Port, showing the amount of time spent on this matter since December 18, 2014, are attached hereto as Exhibit A. These invoices have been redacted to protect privileged matters, and they reflect work actually performed and necessary in this case. The hourly rates shown in these invoices and the amount of time shown for the specific tasks and activities described there in were reasonable and were necessarily incurred in order to properly defend Respondents in this Proceeding.
5. These invoices show that the Port incurred \$365,733.50 in attorney fees in connection with this matter since December 18, 2014. Again, these fees were reasonable and necessary.
6. I am a 1985 graduate of Texas Tech University School of Law and have been a member of the Texas State Bar since 1985. My time was charged as a rate of \$175.00 per hour. Additional work on this matter was performed by the following McLeod, Alexander, Powel & Apffel, P.C. attorneys:
 - a. William "Hulse" Wagner, 1986 University of Texas graduate, \$175.00 per hour;
 - b. David E. Cowen, 1981 University of Houston Law Center graduate, \$175.00 per hour;
 - c. Lyle Y. Courtney, 1996 South Texas College of Law graduate, \$175.00 per hour;
 - d. April V. Marburger, 2001 South Texas College of Law graduate, \$175.00 per hour;
 - e. Christopher C. King, 2006 South Texas College Law graduate, \$150.00 per hour;
 - f. Jocelyn A. Holland, 2007 University of Houston Law School graduate, \$150.00 per hour; and

- g. Amanda D. Wright, 2009 Western Michigan University- Cooley Law School graduate, \$150.00 per hour.
7. Rule 254 instructs that an award of attorneys fees” cover the fair market value of the services provided. As the Commission had recognized, “[o]ne can begin with the premise that, in the ordinary case, a fee based on the actual rates an attorney charges would be prima facie reasonable. There is not better indication of what the market will bear than what the lawyer in fact charges for his services and what his clients pay.” *Qin’s, Inc. v. Superior Link International, Inc.*, 30 S. R.R. 400, 403 (F.M.C. 2004) (citing *Griffin v. Washington Convention Ctr.*, 172 F. Supp. 2d 193, 197 (D.D.C. 2001)). The rates herein are those actually billed to and paid by the Port.
8. The hourly rates charged in this matter are within the range of hourly rates charged by attorneys with similar skill and experience, as demonstrated by the Laffey Matrix, as adjusted. A true and correct copy of the adjusted Laffey Matrix is attached hereto as Exhibit B. The Laffey Matrix is accepted by the United States District Court for the District of Columbia. *Salazar v. District of Columbia*, 123 F. Supp. 2d 8 (D.D.C. 2000). Additionally, the United States Court of Appeals for the Fifth Circuit, where my office is located, has recognized the Laffey Matrix. *Louisiana Power & Light Co. v. Kellstrom*, 50 F.3d 319, 328 (5th Cir. 1995).
9. It is my opinion that the foregoing rates are reasonable and customary for rates charged in Texas, including Galveston County, Texas. Additionally, when determining our fee, we consider the following factors:
- A. The novelty and complexity of the questions involved and the skill required to properly perform the legal services.

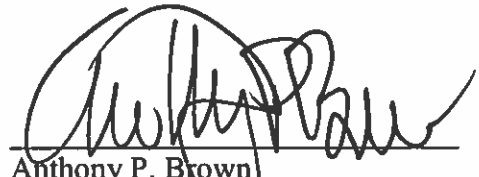
- B. The likelihood that the acceptance of the particular employment would preclude other employment by the firm;
- C. The fee customarily charged and the locality for similar legal services;
- D. The dollar amount involved and the results obtained;
- E. The time limitations involved by the client or other circumstances;
- F. The nature and length of the professional relationship of the client; and
- G. The experience, reputation, and ability of the firm.

10. This matter involved complex issues of law and fact which had to be developed, researched and reviewed. The complexity of the case mandated that all tasks be overseen by officers of the firm with extensive litigation experience, which in turn, limited their ability to perform services for other clients of the firm. It is my opinion, based on my experience and the nature of the case, that the rates charged by the firm are reasonable and customary for rates charged in Texas, including Galveston County, Texas, and the time expended on this case by the firm was reasonable and necessary as well. The law firm of McLeod, Alexander, Powel & Apffel, P.C. was originally formed in 1965 by the named founding members of the firm. The firm and its predecessors descend from the first law license granted by the State of Texas following its admission into the United States. The firm has offices in Galveston, Texas. The firm is an "AV" rated firm according to Martindale Hubble and enjoys a state-wide reputation for excellence for trials and appeals. The firm has approximately fifteen attorneys in its employ.

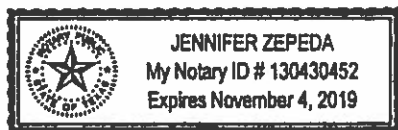
11. Through the course of discovery, Complainants produced 7,586 pages of documents in response to Respondents' discovery requests, while Respondents produced 22,060 pages of documents responsive to Complainants' discovery request, plus three banker boxes of audio cassette recordings of public board meetings going back to 2006. An additional 297 pages were obtained from non-parties in response to depositions upon written questions. Approximately 33 hours and 21 minutes of deposition testimony was also taken as part of discovery.

12. In my professional opinion, in view of the time expended on this matter, the complexity of the subject matter of the case, the services provided to Plaintiff, and the other facts to be considered by the Firm, the attorney's fees of \$365,733.50 and costs of \$10,327.75 incurred from and after December 18, 2014 through the present dated were reasonable and necessary to properly defend Respondents in this Proceeding."

Further Affiant Sayeth Not.


Anthony P. Brown

SWORN TO AND SUBSCRIBED before me, the undersigned notary, by Anthony P. Brown, on this the 14th day of March, 2017.




Notary Public - State of Texas

EXHIBIT A

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

December 31, 2014

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 111364 WHW
Our file# 12432 14003
Billing through 12/31/2014

LIGHTHOUSE PARKING FMC COMPLAINT

PROFESSIONAL SERVICES

12/18/2014	APB	PREPARE FOR AND ATTEND BOARD OF TRUSTEES MEETING TO REPORT ON STATUS OF LITIGATION AND DISCUSS STRATEGY GOING FORWARD	3.90 hrs.	682.50
12/18/2014	APB	LETTER TO OPPOSING COUNSEL DECLINING SETTLEMENT OFFER	0.20 hrs.	35.00
12/18/2014	APB	COMPILE LIST OF COMPLAINTS' PRINCIPALS AND DESIGNATED REPRESENTATIVES TO BE DEPOSED; LETTER TO OPPOSING COUNSEL REGARDING SAME	1.30 hrs.	227.50
12/18/2014	APB	PREPARE REVISIONS AND COMMENTS TO COMPLAINTS PROPOSED JOINT STATUS REPORT; LETTER TO OPPOSING COUNSEL REGARDING SAME	0.80 hrs.	140.00
12/18/2014	AVM	ANALYZE HUNDREDS OF DOCUMENTS PROVIDED BY CLIENT REGARDING	4.30 hrs.	752.50
12/18/2014	AVM	EMAIL CORRESPONDENCE WITH TEAM REGARDING	0.80 hrs.	140.00
12/18/2014	DEC	CONTINUE WORK ON ; CONTINUE WORK ON PREPARING	4.40 hrs.	770.00
12/18/2014	DEC	REVIEW ; COORDINATE	0.50 hrs.	87.50
12/18/2014	WHW	REVIEW ; CONFERENCE REGARDING SAME	0.30 hrs.	52.50
12/18/2014	WHW	REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING REJECTION OF SETTLEMENT OFFER AND PROPOSED DEPOSITION SCHEDULE	0.10 hrs.	17.50
12/18/2014	WHW	REVIEW ; CONFERENCE REGARDING	0.30 hrs.	52.50
12/18/2014	WHW	REVIEW ;	0.20 hrs.	35.00
12/18/2014	WHW	REVIEW MEMO REGARDING ; REVIEW	0.30 hrs.	52.50

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12/18/2014	ADW	REVIEW	2.00 hrs.	300.00
12/18/2014	ADW	REVIEW FILE AND PREPARE	0.80 hrs.	120.00
12/19/2014	APB	REVIEW AND REVISE PROPOSED JOINT CASE STATUS REPORT; LETTER TO OPPOSING COUNSEL REGARDING SAME	0.50 hrs.	87.50
12/19/2014	APB	DOCUMENT REVIEW AND DISCOVERY EVALUATION	3.70 hrs.	647.50
12/19/2014	AVM	ANALYZE DOCUMENTS AND CORRESPONDENCE IN PREPARATION OF	1.40 hrs.	245.00
12/19/2014	AVM	REVIEW	2.10 hrs.	367.50
12/19/2014	DEC	CONTINUE WORK ON	1.10 hrs.	192.50
12/19/2014	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
12/19/2014	WHW	REVIEW CORRESPONDENCE FROM BRENT ALLISON REGARDING PROPOSED REVISIONS TO JOINT STATUS REPORT; REVIEW REVISED STATUS REPORT; REVIEW ADDITIONAL REVISIONS TO THE JOINT STATUS REPORT	0.30 hrs.	52.50
12/19/2014	WHW	REVIEW FINAL REVISIONS TO JOINT STATUS REPORT; REVIEW CORRESPONDENCE TO BRENT ALLISON REGARDING SAME; REVIEW CORRESPONDENCE FROM BRENT ALLISON REGARDING REVIEW OF STATUS REPORT	0.30 hrs.	52.50
12/19/2014	ADW	REVIEW AND REVISE JOINT STATUS REPORT; EMAIL DRAFT TO OPPOSING COUNSEL FOR COMMENT	1.00 hrs.	150.00
12/22/2014	APB	REVIEW	1.90 hrs.	332.50
12/22/2014	AVM	ANALYZE DOCUMENTS AND CORRESPONDENCE IN PREPARATION OF	3.30 hrs.	577.50
12/22/2014	AVM	CONTINUE TO ANALYZE THOUSANDS OF EMAILS REGARDING	2.70 hrs.	472.50
12/22/2014	DEC	CONTINUE WORK ON	6.40 hrs.	1,120.00
		; WORK ON		
		COORDINATE		
		; REVIEW		
		; REVIEW		
12/22/2014	WHW	REVIEW CORRESPONDENCE FROM ALLISON FINE REGARDING FILING OF PLEADINGS WITH	0.40 hrs.	70.00

		THE FMC SECRETARY; REVIEW COMPLAINANT'S DESIGNATION OF EXPERT WITNESSES; CONFERENCE REGARDING SAME		
12/22/2014	WHW	REVIEW CORRESPONDENCE TO FMC SECRETARY REGARDING FILING OF JOINT STATUS REPORT; REVIEW FINAL VERSION OF JOINT STATUS REPORT	0.20 hrs.	35.00
12/22/2014	WHW	REVIEW CORRESPONDENCE FROM BRENT ALLISON REGARDING ADDITIONAL REVISIONS TO THE JOINT STATUS REPORT; REVIEW PROPOSED REVISIONS TO THE REPORT; CONFERENCE REGARDING REVIEW OF PROPOSED REVISIONS	0.30 hrs.	52.50
12/22/2014	ADW	REVIEW DOCUMENTS PRODUCED BY CLIENT IN PREPARATION FOR	4.50 hrs.	675.00
12/23/2014	APB	REVISE AND SUPPLEMENT	0.40 hrs.	70.00
12/23/2014	APB	LETTER TO MIKE MIERZWA AND PORT STAFF REGARDING	0.20 hrs.	35.00
12/23/2014	APB	REVIEW AND ANALYZE	0.40 hrs.	70.00
12/23/2014	APB	; LETTER TO MIKE MIERZWA AND PORT STAFF REGARDING SAME REVIEW AND ANALYSIS OF	2.90 hrs.	507.50
12/23/2014	AVM	STRATEGY DISCUSSION REGARDING	0.60 hrs.	105.00
12/23/2014	AVM	EMAIL CORRESPONDENCE WITH TEAM REGARDING	0.50 hrs.	87.50
12/23/2014	AVM	ANALYZE DOCUMENTS AND CORRESPONDENCE IN PREPARATION OF	2.10 hrs.	367.50
12/23/2014	DEC	CONTINUE WORK ON ; CONTINUE WORK ON	5.90 hrs.	1,032.50
12/23/2014	WHW	REVIEW CORRESPONDENCE TO MIKE MIERZWA REGARDING ; REVIEW	0.20 hrs.	35.00
12/23/2014	WHW	; CONFERENCE REGARDING SAME REVIEW ; REVIEW CORRESPONDENCE TO FMC SECRETARY REGARDING FILING OF SAME WITH THE SECRETARY	0.30 hrs.	52.50

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12/26/2014	APB	RESEARCH REGARDING	3.30 hrs.	577.50
12/26/2014	AVM	CONTINUE TO PREPARE	2.20 hrs.	385.00
12/26/2014	AVM	CONTINUE TO ANALYZE	3.20 hrs.	560.00
12/26/2014	AVM	EMAIL CORRESPONDENCE WITH TEAM REGARDING	0.40 hrs.	70.00
12/26/2014	ADW	REVIEW DOCUMENTS IN PREPARATION FOR	4.00 hrs.	600.00
12/29/2014	APB	REVIEW, ANALYZE AND SUMMARIZE	0.70 hrs.	122.50
12/29/2014	APB	REVIEW, ANALYZE AND SUMMARIZE ; MEMORANDUM TO LEGAL TEAM REGARDING SAME	2.80 hrs.	490.00
12/29/2014	APB	REVIEW NOTIFICATION FROM U.S. DISTRICT CLERK REGARDING INTERIM PAYMENT MADE BY EZ CRUISE	0.20 hrs.	35.00
12/29/2014	AVM	ANALYZE DOCUMENTS AND CORRESPONDENCE IN PREPARATION OF	2.90 hrs.	507.50
12/29/2014	DEC	CONTINUE WORK ON	7.00 hrs.	1,225.00
12/29/2014	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
12/29/2014	WHW	REVIEW MEMO REGARDING	0.20 hrs.	35.00
12/29/2014	WHW	REVIEW	0.10 hrs.	17.50
12/29/2014	WHW	REVIEW CORRESPONDENCE FROM DISTRICT COURT CLERK REGARDING DEPOSIT OF FUNDS IN THE REGISTRY OF THE COURT	0.10 hrs.	17.50
12/29/2014	WHW	REVIEW MEMO REGARDING STATUS OF REVIEW OF DOCUMENTS PRODUCED BY COMPLAINANTS	0.10 hrs.	17.50
12/29/2014	WHW	REVIEW MEMO REGARDING REVIEW OF PRIOR VERSION OF TARIFF AND DIFFERENCE IN ACCESS FEES IMPOSED UNDER IT	0.10 hrs.	17.50
12/29/2014	ADW	REVIEW DOCUMENTS IN PREPARATION FOR	7.00 hrs.	1,050.00
12/30/2014	APB	REVIEW, ANALYZE AND SUMMARIZE	2.70 hrs.	472.50
12/30/2014	APB	TELEPHONE CALLS WITH MIKE MIERZWA AND MARK MURCHISON REGARDING	0.40 hrs.	70.00
12/30/2014	AVM	EMAIL CORRESPONDENCE WITH TEAM AND REVIEW OF	0.90 hrs.	157.50

12/30/2014	AVM	EMAIL CORRESPONDENCE WITH TEAM DISCUSSING	0.60 hrs.	105.00
12/30/2014	AVM	FINALIZE REVIEW OF	3.10 hrs.	542.50
12/30/2014	AVM	STRATEGY TELECONFERENCE AND EMAIL CORRESPONDENCE WITH TEAM REGARDING	0.70 hrs.	122.50
12/30/2014	DEC	CONTINUE WORK ON	3.90 hrs.	682.50
12/30/2014	DEC	CONTINUE WORK ON	4.40 hrs.	770.00
12/30/2014	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
12/30/2014	WHW	REVIEW ; REVIEW	0.70 hrs.	122.50
12/30/2014	WHW	REVIEW MEMO REGARDING	0.30 hrs.	52.50
		; EXTENDED CONFERENCE REGARDING SAME; REVIEW MEMO REGARDING SAME		
12/30/2014	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
12/30/2014	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
12/30/2014	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
12/30/2014	WHW	REVIEW CORRESPONDENCE FROM DISTRICT COURT CLERK REGARDING PAYMENT OF FUNDS INTO THE REGISTRY OF THE COURT	0.10 hrs.	17.50
12/30/2014	ADW	REVIEW ,	8.00 hrs.	1,200.00
12/31/2014	APB	REVIEW AND ANALYSIS OF	4.60 hrs.	805.00
12/31/2014	APB	TELEPHONE CALLS WITH MIKE MIERZWA AND MARK MURCHISON REGARDING	0.30 hrs.	52.50
12/31/2014	APB	SUPPLEMENTAL REVIEW OF	0.40 hrs.	70.00
12/31/2014	APB	LETTER TO OPPOSING COUNSEL REGARDING DISCOVERY MATTERS AND DEPOSITION SCHEDULING	0.20 hrs.	35.00

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12/31/2014	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
12/31/2014	WHW	REVIEW	1.30 hrs.	227.50
12/31/2014	WHW	REVIEW CORRESPONDENCE TO OPPOSING COUNSEL REGARDING PROPOSED DEPOSITION SCHEDULE FOR PORT WITNESSES	0.10 hrs.	17.50
12/31/2014	ADW	REVIEW	4.50 hrs.	675.00

\$23,005.00

EXPENSES

12/31/2014	COPYING	66.20
12/31/2014	POSTAGE	44.70
12/31/2014	WEST LAW RESEARCH	374.95
12/31/2014	SCANNING	69.53
		<u>\$555.38</u>

Total professional services	\$23,005.00
Total expenses incurred	\$555.38

Total of new charges for this invoice	<u>\$23,560.38</u>
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PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

January 31, 2015

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 111630 WHW
Our file# 12432 14003
Billing through 01/31/2015

LIGHTHOUSE PARKING FMC COMPLAINT**PROFESSIONAL SERVICES**

01/02/2015	APB	CONTINUE	2.80 hrs.	490.00
01/02/2015	APB	REVIEW PLEADINGS AND DISCOVERY REGARDING CASE STATUS	0.90 hrs.	157.50
01/02/2015	APB	LETTER TO OPPOSING COUNSEL REQUESTING DISCOVERY CONFERENCE PER RECENT JOINT STATUS REPORT	0.20 hrs.	35.00
01/02/2015	APB	REVIEW CORRESPONDENCE FROM OPPOSING COUNSEL PROPOSING DISCOVERY CONFERENCE ON JANUARY 5; LETTER REGARDING SAME	0.30 hrs.	52.50
01/02/2015	APB	PREPARE FOR AND ATTEND DEFENSE TEAM MEETING ON	0.80 hrs.	140.00
01/02/2015	AVM	PREPARE FOR AND ATTEND STRATEGY TEAM PHONE CONFERENCE REGARDING	0.70 hrs.	122.50
01/02/2015	AVM	ANALYZE AND REVIEW	1.10 hrs.	192.50
01/02/2015	AVM	EMAIL CORRESPONDENCE WITH TEAM REGARDING	0.40 hrs.	70.00
01/02/2015	ADW	PREPARE AND FINALIZE	3.00 hrs.	450.00
01/03/2015	APB	CONTINUE	3.80 hrs.	665.00
01/04/2015	AVM	REVIEW AND ANALYZE	5.40 hrs.	945.00
		; PREPARE		
01/05/2015	APB	REVIEW AND ANALYSIS OF	1.90 hrs.	332.50

01/05/2015	APB	LETTER TO MONICA MARSHALL REGARDING	0.10 hrs.	17.50
01/05/2015	APB	LETTER TO MONICA MARSHALL CONFIRMING	0.10 hrs.	17.50
01/05/2015	APB	REVIEW	0.30 hrs.	52.50
01/05/2015	APB	PREPARE FOR AND PARTICIPATE IN CONFERENCE CALL WITH OPPOSING COUNSEL REGARDING DISCOVERY AND DEPOSITION SCHEDULING	1.80 hrs.	315.00
01/05/2015	APB	TELEPHONE CALL WITH MARK MURCHISON REGARDING	0.20 hrs.	35.00
01/05/2015	APB	LETTER TO MIKE MIERZWA REGARDING	0.20 hrs.	35.00
01/05/2015	APB	REVIEW CORRESPONDENCE FROM MARK MURCHISON REGARDING	0.20 hrs.	35.00
01/05/2015	APB	LETTER REGARDING SAME	2.60 hrs.	455.00
01/05/2015	AVM	CONTINUE TO PREPARE	3.40 hrs.	595.00
01/05/2015	AVM	ANALYZE	1.40 hrs.	245.00
01/05/2015	DEC	REVIEW MATERIALS ON	3.40 hrs.	595.00
01/05/2015	DEC	CONTINUE BRIEFING ON	2.20 hrs.	385.00
01/05/2015	DEC	CONTINUE ANALYSIS OF	2.00 hrs.	350.00
01/05/2015	MAH	BEGIN PREPARATION OF	0.70 hrs.	45.50
01/05/2015	WHW	REVIEW SUMMARY OF	0.20 hrs.	35.00
01/05/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
01/05/2015	WHW	REVIEW CORRESPONDENCE TO MIKE MIERZWA REGARDING	0.10 hrs.	17.50
01/05/2015	WHW	REVIEW CORRESPONDENCE FROM MIKE MIERZWA REGARDING	0.10 hrs.	17.50

01/05/2015	WHW	REVIEW MEMO REGARDING	0.40 hrs.	70.00
01/05/2015	ADW	REVIEW	3.00 hrs.	450.00
01/05/2015	JMZ	PREPARE	2.10 hrs.	136.50
01/06/2015	APB	PREPARE FOR AND ATTEND	6.90 hrs.	1,207.50
01/06/2015	AVM	CONTINUE TO PREPARE	4.10 hrs.	717.50
01/06/2015	AVM	ANALYZE DOCUMENTS NECESSARY FOR	2.00 hrs.	350.00
01/06/2015	DEC	PREPARE FOR AND ATTEND	5.40 hrs.	945.00
01/06/2015	DEC	ADDITIONAL FACTUAL REVIEW REGARDING	2.00 hrs.	350.00
01/06/2015	DEC	EMAIL TO CURRAN ; REVIEW	0.90 hrs.	157.50
01/06/2015	MAH	CONTINUE PREPARATION OF	3.00 hrs.	195.00
01/06/2015	WHW	REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING NON-PRODUCTION OF CERTAIN ITEMS IN RESPONSE TO DISCOVERY REQUESTS	0.10 hrs.	17.50
01/06/2015	WHW	REVIEW ; REVIEW MEMO REGARDING	0.30 hrs.	52.50
01/06/2015	WHW	REVIEW CORRESPONDENCE FROM ANGIE RAMIREZ REGARDING	0.10 hrs.	17.50
01/06/2015	WHW	REVIEW AN ANALYZE ; REVIEW MEMO REGARDING SAME	0.60 hrs.	105.00
01/06/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
01/06/2015	ADW	PREPARE FOR	2.00 hrs.	300.00
01/06/2015	ADW	MEETING WITH MARK MURCHISON	7.00 hrs.	1,050.00
01/07/2015	APB	PREPARE FOR AND ATTEND MEETING WITH MIKE MIERZWA	6.30 hrs.	1,102.50

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01/07/2015	APB	LETTER TO OPPOSING COUNSEL REGARDING DOCUMENT PRODUCTION AND DISCOVERY MATTERS	0.20 hrs.	35.00
01/07/2015	AVM	EMAIL CORRESPONDENCE WITH TEAM REGARDING ; REVIEW OF SAME	0.30 hrs.	52.50
01/07/2015	AVM	RECEIVE AND REVIEW ALJ'S REQUIREMENTS REGARDING UPCOMING JOINT STATUS REPORT DEADLINE	0.30 hrs.	52.50
01/07/2015	AVM	ANALYZE	0.80 hrs.	140.00
01/07/2015	DEC	MEETING WITH MIKE MIERZWA	5.10 hrs.	892.50
01/07/2015	DEC	ANALYSIS OF	3.30 hrs.	577.50
		AND RESEARCH REGARDING		
01/07/2015	MAH	COMPLETE	1.00 hrs.	65.00
01/07/2015	WHW	REVIEW ;	0.50 hrs.	87.50
01/07/2015	WHW	CONFERENCE REGARDING SAME REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING PROBLEMS WITH PRODUCTION OF DOCUMENTS	0.10 hrs.	17.50
01/07/2015	WHW	REVIEW SUMMARY OF ;	0.40 hrs.	70.00
01/07/2015	WHW	CONFERENCE REGARDING SAME REVIEW MEMO REGARDING ; REVIEW CORRESPONDENCE FROM ANGIE RAMIREZ REGARDING	0.20 hrs.	35.00
01/07/2015	WHW	REVIEW	0.80 hrs.	140.00
01/07/2015	WHW	REVIEW ALJ ORDER REGARDING RULES FOR CONDUCTING DEPOSITIONS	0.30 hrs.	52.50
01/07/2015	WHW	PARTICIPATE IN	2.80 hrs.	490.00
01/07/2015	ADW	PREPARE FOR	2.00 hrs.	300.00
01/07/2015	ADW	MEETING WITH MIKE MIERZWA	6.00 hrs.	900.00
01/08/2015	APB	REVIEW AND ANALYZE	0.30 hrs.	52.50
01/08/2015	AVM	ANALYZE ; EMAIL WITH TEAM REGARDING	1.10 hrs.	192.50
01/08/2015	AVM	ANALYZE	2.40 hrs.	420.00

01/08/2015	DEC	RESEARCH ON	2.90 hrs.	507.50
01/08/2015	DEC	CONTINUE WORK ON BRIEFING FOR ISSUE OF	4.30 hrs.	752.50
01/08/2015	DEC	CONTINUE WORK ON DEFINING AND BRIEFING ISSUE OF	3.30 hrs.	577.50
01/08/2015	DEC	RESEARCH ON	1.00 hrs.	175.00
01/08/2015	DEC	CONTINUE RESEARCH ON	2.90 hrs.	507.50
01/08/2015	WHW	REVIEW MEMO REGARDING ; REVIEW CASES REGARDING	0.70 hrs.	122.50
01/08/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
01/08/2015	ADW	REVIEW DOCUMENTS RECEIVED FROM CLIENT AND PREPARE	3.00 hrs.	450.00
01/09/2015	APB	LEGAL RESEARCH ON	2.80 hrs.	490.00
01/09/2015	APB	REVIEW ANALYZED	0.70 hrs.	122.50
01/09/2015	APB	CONTINUE WORK ON JOINT STATUS REPORT DUE TO BE FILED WITH FMC ON JANUARY 12	1.30 hrs.	227.50
01/09/2015	APB	REVIEW CORRESPONDENCE FROM COUNSEL FOR COMPLAINANTS REGARDING STATUS OF DISCOVERY, RECORDS PRODUCTION AND DEPOSITIONS	0.20 hrs.	35.00
01/09/2015	APB	CONFERENCE CALL WITH OPPOSING COUNSEL REGARDING DISCOVERY ISSUES, DEPOSITION SCHEDULING AND JOINT STATUS REPORT	0.30 hrs.	52.50
01/09/2015	AVM	RECEIVE AND REVIEW ; STRATEGY CONFERENCE REGARDING	1.80 hrs.	315.00
01/09/2015	AVM	RECEIVE AND REVIEW ; EMAIL CORRESPONDENCE WITH TEAM	0.90 hrs.	157.50

Date	Initials	Description	Hours	Amount
01/09/2015	DEC	REGARDING SAME PHONE CALL WITH POTENTIAL EXPERT	0.30 hrs.	52.50
01/09/2015	DEC	REVIEW EMAILS ON DISCOVERY AGREEMENTS; REVIEW DRAFT STATUS REPORT TO FMC	0.70 hrs.	122.50
01/09/2015	DEC	CONTINUE WORK ON	6.70 hrs.	1,172.50
01/09/2015	DEC	REVIEW MURCHISON DATA ON	0.60 hrs.	105.00
01/09/2015	WHW	REVIEW LEGAL MEMORANDUM REGARDING	0.70 hrs.	122.50
01/09/2015	WHW	REVIEW DRAFT JOINT STATUS REPORT	0.30 hrs.	52.50
01/09/2015	WHW	REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING PRESENTATION OF WITNESSES FOR DEPOSITION TESTIMONY	0.10 hrs.	17.50
01/09/2015	WHW	REVIEW MEMO REGARDING	0.20 hrs.	35.00
01/09/2015	WHW	REVIEW COMPLAINANT'S EXPERT REPORT; REVIEW CORRESPONDENCE FROM MIKE MIERZWA REGARDING	0.40 hrs.	70.00
01/09/2015	WHW	REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING SCHEDULING OF DEPOSITIONS AND PRODUCTION OF DOCUMENTARY EVIDENCE	0.10 hrs.	17.50
01/09/2015	ADW	REVIEW COMPLAINANTS' EXPERT DESIGNATION AND REPORT	4.00 hrs.	600.00
01/09/2015	ADW	CORRESPONDENCE TO OPPOSING COUNSEL REGARDING OUTSTANDING DISCOVERY	0.10 hrs.	15.00
01/10/2015	APB	INITIAL REVIEW AND ANALYSIS OF	1.40 hrs.	245.00
01/10/2015	WHW	REVIEW CORRESPONDENCE FROM ALISON FINE REGARDING DELIVERY OF DOCUMENTS RESPONSIVE TO DISCOVERY REQUESTS; REVIEW MEMO REGARDING	0.10 hrs.	17.50
01/12/2015	APB	REVISE AND SUPPLEMENT PROPOSED JOINT STATUS REPORT; LETTER TO OPPOSING COUNSEL REGARDING SAME, AND PROPOSED JOINT REQUEST FOR EXTENSION OF DISCOVERY DEADLINE	0.30 hrs.	52.50
01/12/2015	APB	LETTER TO ADMINISTRATIVE LAW JUDGE TO	0.20 hrs.	35.00

		REQUEST COURT CONFERENCE		
01/12/2015	APB	TELEPHONE CALL WITH OPPOSING COUNSEL REGARDING JOINT REQUEST FOR COURT PHONE CONFERENCE AND DISCOVERY ISSUES	0.20 hrs.	35.00
01/12/2015	APB	PREPARE FOR AND PARTICIPATE IN CONFERENCE CALL WITH MARK MURCHISON REGARDING	1.10 hrs.	192.50
01/12/2015	APB	CONTINUE	2.90 hrs.	507.50
01/12/2015	APB	CONFERENCE CALL WITH ADMINISTRATIVE LAW JUDGE; TELEPHONE CALLS TO MIKE MIERZWA AND MARK MURCHISON REGARDING ; LETTER TO MARK MURCHISON AND PORT STAFF REGARDING	1.60 hrs.	280.00
01/12/2015	DEC	REVIEW ; REVIEW	1.30 hrs.	227.50
01/12/2015	DEC	CONTINUE WORK ON	2.00 hrs.	350.00
01/12/2015	DEC	PHONE CONFERENCE WITH MURCHISON	2.00 hrs.	350.00
01/12/2015	DEC	ATTEND TELEPHONIC CONFERENCE WITH PARTIES AND ALJ	1.30 hrs.	227.50
01/12/2015	DEC	BEGIN TO COORDINATE ISSUES RELATING TO DISCOVERY AND ALJ REQUESTS	0.90 hrs.	157.50
01/12/2015	DEC	EMAIL AND PHONE CALL WITH POTENTIAL EXPERT; REVIEW EXPERT INFORMATION	0.60 hrs.	105.00
01/12/2015	DEC	REVIEW EMAILS AND DOCUMENTS REGARDING	2.50 hrs.	437.50
01/12/2015	WHW	REVIEW AND REVISE DRAFT JOINT STATUS REPORT; PREPARE MEMO REGARDING SAME	0.40 hrs.	70.00
01/12/2015	WHW	REVIEW MEMO REGARDING PHONE CONFERENCE WITH ADMINISTRATIVE LAW JUDGE	0.10 hrs.	17.50
01/12/2015	WHW	REVIEW MEMO REGARDING SCHEDULING OF DEPOSITION PREPARATION FOR PORT WITNESSES	0.10 hrs.	17.50
01/12/2015	WHW	REVIEW ADDITIONAL REVISIONS TO JOINT STATUS REPORT; REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING REVIEW OF DRAFT JOINT STATUS REPORT	0.20 hrs.	35.00
01/12/2015	WHW	REVIEW CORRESPONDENCE TO THE FMC SECRETARY REGARDING REQUEST FOR TELEPHONE CONFERENCE WITH JUDGE GUTHRIDGE	0.10 hrs.	17.50
01/12/2015	WHW	REVIEW PROPOSED REVISIONS TO JOINT STATUS REPORT; REVIEW MEMO REGARDING ADDITIONAL CHANGES TO THE REPORT; REVIEW MEMO REGARDING EXTENSION OF TIME FOR DESIGNATION OF EXPERT	0.40 hrs.	70.00

		WITNESSES BECAUSE OF COMPLAINANT'S FAILURE TO PRODUCE DOCUMENTARY EVIDENCE		
01/12/2015	WHW	REVIEW CORRESPONDENCE FROM JUDGE GUTHRIDGE REGARDING PROCEDURE FOR PARTICIPATION ON CONFERENCE CALL WITH LEGAL COUNSEL	0.10 hrs.	17.50
01/12/2015	WHW	REVIEW CORRESPONDENCE TO MIKE MIERZWA REGARDING	0.20 hrs.	35.00
		; CONFERENCE REGARDING		
01/12/2015	ADW	PARTICIPATE IN TELECONFERENCE WITH ALJ GUTHRIDGE AND OPPOSING COUNSEL REGARDING UPCOMING DISCOVERY DEADLINES	0.80 hrs.	120.00
01/12/2015	ADW	FORWARD RELEVANT PLEADINGS TO DEFENSE EXPERT JEFF COMPTON	0.50 hrs.	75.00
01/12/2015	ADW	REVIEW	2.50 hrs.	375.00
01/13/2015	APB	LETTER TO OPPOSING COUNSEL PROPOSING DATES FOR MIERZWA AND MURCHISON DEPOSITIONS (JAN 30 AND FEB 2), AND REQUESTING DATES FOR COMPLAINANT WITNESSES	0.20 hrs.	35.00
01/13/2015	APB	REVIEW CORRESPONDENCE FROM JUDGE GUTHRIDGE REGARDING JANUARY 15 CONFERENCE CALL; MEMORANDUM REGARDING SAME	0.30 hrs.	52.50
01/13/2015	APB	LEGAL RESEARCH REGARDING	1.90 hrs.	332.50
01/13/2015	APB	CONFERENCE CALL WITH EXPERT WITNESS JEFF COMPTON	1.10 hrs.	192.50
01/13/2015	APB	LETTER TO MIKE MIERZWA REGARDING	0.30 hrs.	52.50
01/13/2015	APB	PREPARE FOR AND ATTEND MEETING WITH MARK MURCHISON ON	2.90 hrs.	507.50
01/13/2015	APB	RESEARCH	0.90 hrs.	157.50
		; LETTER TO OPPOSING COUNSEL REGARDING DELINQUENT PAYMENTS		
01/13/2015	AVM	ANALYZE	1.30 hrs.	227.50
01/13/2015	AVM	EMAIL CORRESPONDENCE	0.40 hrs.	70.00
01/13/2015	DEC	PHONE CONFERENCE WITH EXPERT;	4.10 hrs.	717.50
01/13/2015	DEC	MEETING WITH MURCHISON AT PORT	2.20 hrs.	385.00
01/13/2015	DEC	REVIEW ALJ ORDER AND INSTRUCTIONS ON	0.30 hrs.	52.50

		REQUIRED FILINGS FOR DECISION		
01/13/2015	WHW	REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING PROPOSED DEPOSITION SCHEDULE OF PORT WITNESSES	0.10 hrs.	17.50
01/13/2015	WHW	REVIEW MEMO REGARDING	0.40 hrs.	70.00
01/13/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
01/13/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
01/13/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
01/13/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
01/13/2015	WHW	REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING DOCUMENT REVIEW TO BE CONDUCTED AT HIS OFFICE; REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING SAME	0.20 hrs.	35.00
01/13/2015	WHW	REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING DISCREPANCIES IN PAYMENT OF FUNDS INTO THE REGISTRY OF THE COURT	0.10 hrs.	17.50
01/14/2015	APB	PREPARE FOR AND ATTEND INSPECTION OF RECORDS OF THE OFFICES OF COMPLAINANTS' COUNSEL IN PEARLAND, TEXAS	6.90 hrs.	1,207.50
01/14/2015	APB	REVIEW ORDER ENTERED BY ADMINISTRATIVE LAW JUDGE ON SCHEDULING ORDER FOR FMC LITIGATION; LETTER TO MIKE MIERZWA REGARDING ;	0.70 hrs.	122.50
01/14/2015	APB	INITIAL RESEARCH AND INVESTIGATION	0.80 hrs.	140.00
01/14/2015	AVM	PREPARE ; REVIEW	3.20 hrs.	560.00
01/14/2015	AVM	RESEARCH REGARDING	1.20 hrs.	210.00
01/14/2015	DEC	BEGIN WORK ON	4.40 hrs.	770.00
01/14/2015	WHW	REVIEW MEMO REGARDING ; REVIEW CORRESPONDENCE TO PORT STAFF REGARDING SAME; REVIEW	0.60 hrs.	105.00

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01/14/2015	WHW	REVIEW ORDER AMENDING DISCOVERY SCHEDULE AND ESTABLISHING BRIEFING SCHEDULE ENTERED BY THE ALJ; CONFERENCE REGARDING SAME	0.30 hrs.	52.50
01/14/2015	ADW	REVIEW	8.50 hrs.	1,275.00
01/15/2015	APB	RESEARCH	5.90 hrs.	1,032.50
01/15/2015	AVM	TELECONFERENCE WITH	0.80 hrs.	140.00
01/15/2015	AVM	TELECONFERENCE WITH	0.70 hrs.	122.50
01/15/2015	AVM	RECEIVE AND REVIEW	0.80 hrs.	140.00
01/15/2015	AVM	REVIEW	0.80 hrs.	140.00
01/15/2015	AVM	EMAIL CORRESPONDENCE REGARDING	0.70 hrs.	122.50
01/15/2015	DEC	CONTINUE WORK ON	4.40 hrs.	770.00
01/15/2015	DEC	REVIEW	1.00 hrs.	175.00
01/15/2015	WHW	REVIEW AND ANALYZE	0.40 hrs.	70.00
01/15/2015	WHW	REVIEW AND ANALYZE	0.80 hrs.	140.00
01/15/2015	WHW	EXTENDED CONFERENCE REGARDING SAME REVIEW AND ANALYZE	2.20 hrs.	385.00
		REGARDING ; REVIEW MEMO		
01/15/2015	WHW	REVIEW AND ANALYZE	0.30 hrs.	52.50
01/15/2015	ADW	REVIEW	2.50 hrs.	375.00
01/15/2015	ADW	SEARCH	2.00 hrs.	300.00

01/16/2015	APB	REVIEW	0.40 hrs.	70.00
		; LETTER TO MIKE MIERZWA AND PORT STAFF REGARDING SAME		
01/16/2015	APB	REVIEW AND ANALYSIS OF	4.60 hrs.	805.00
01/16/2015	DEC	REVIEW	1.00 hrs.	175.00
		; ADDITIONAL INTERNET RESEARCH		
01/16/2015	DEC	CONTINUE WORK ON	2.30 hrs.	402.50
01/16/2015	WHW	REVIEW MEMO REGARDING	0.30 hrs.	52.50
		; PREPARE MEMO REGARDING SAME; CONFERENCE REGARDING SAME		
01/16/2015	WHW	REVIEW AND ANALYZE	0.90 hrs.	157.50
		; EXTENDED CONFERENCE REGARDING SAME		
01/16/2015	WHW	REVIEW	0.10 hrs.	17.50
01/16/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
01/16/2015	WHW	REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING POSSIBLE DATES FOR HIS CLIENTS' DEPOSITIONS	0.10 hrs.	17.50
01/16/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
01/16/2015	ADW	TELEPHONE CONFERENCE WITH MARK MURCHISON REGARDING	0.50 hrs.	75.00
01/19/2015	APB	CONTINUE REVIEW OF	1.60 hrs.	280.00
01/19/2015	AVM	ANALYZE AND REVIEW	1.80 hrs.	315.00
01/19/2015	DEC	CONTINUE PREPARATION OF	3.00 hrs.	525.00
01/19/2015	DEC	REVIEW	0.90 hrs.	157.50
01/19/2015	DEC	CONTINUE WORK ON	2.00 hrs.	350.00
01/20/2015	AVM	PREPARE	2.80 hrs.	490.00

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01/20/2015	DEC	COORDINATE DEPOSITION SCHEDULES WITH COUNSEL	0.40 hrs.	70.00
01/20/2015	DEC	CONTINUE REVIEW	4.30 hrs.	752.50
01/20/2015	DEC	CONTINUE WORK	2.00 hrs.	350.00
01/20/2015	WHW	REVIEW MEMO REGARDING PROPOSED DEPOSITION SCHEDULE FOR THE COMPLAINANTS	0.10 hrs.	17.50
01/20/2015	WHW	REVIEW	0.90 hrs.	157.50
		; REVIEW		
		CORRESPONDENCE TO DOUG GILMAN REGARDING REVIEW OF SAME		
01/20/2015	WHW	EXTENDED CONFERENCE REGARDING	0.30 hrs.	52.50
01/20/2015	ADW	TELECONFERENCE WITH OPPOSING COUNSEL REGARDING POSSIBLE DEPOSITION SCHEDULE (.5); PREPARE EMAIL TO APB, WHW, AND DEC REGARDING SAME (.1)	0.60 hrs.	90.00
01/20/2015	ADW	REVIEW	4.00 hrs.	600.00
01/21/2015	APB	DEPOSITION PREPARATION - LIGHTHOUSE PARKING	2.90 hrs.	507.50
01/21/2015	AVM	ANALYZE	2.30 hrs.	402.50
01/21/2015	AVM	REVIEW	1.50 hrs.	262.50
01/21/2015	DEC	CONTINUE ANALYSIS OF	3.90 hrs.	682.50
01/21/2015	DEC	MARSHALL ADDITIONAL DOCUMENTS FOR EXPERT; CONTINUE WORK ON	2.40 hrs.	420.00
01/21/2015	DEC	EXCHANGE EMAILS WITH EXPERT ON CONFERENCE SCHEDULING	0.30 hrs.	52.50
01/22/2015	APB	REVIEW CORRESPONDENCE REGARDING	0.30 hrs.	52.50
		; TELEPHONE CALL		
		WITH MIKE MIERZWA REGARDING SAME		
01/22/2015	APB	CONTINUE	3.30 hrs.	577.50
01/22/2015	AVM	ANALYZE	2.80 hrs.	490.00
01/22/2015	AVM	RECEIVE AND BEGIN REVIEW	3.30 hrs.	577.50

01/22/2015	AVM	ATTEND TELEPHONE CONFERENCE WITH EXPERT COMPTON; STRATEGIC DISCUSSION FOLLOWING	1.40 hrs.	245.00
01/22/2015	DEC	CONTINUE WORK ON	2.00 hrs.	350.00
01/22/2015	DEC	PREPARE FOR AND ATTEND PHONE CONFERENCE WITH EXPERT	3.20 hrs.	560.00
01/22/2015	ADW	CONFERENCE CALL WITH JEFF COMPTON REGARDING EXPERT REPORT	1.80 hrs.	270.00
01/23/2015	APB	REVIEW CORRESPONDENCE FROM OPPOSING COUNSEL REGARDING DEPOSITION SCHEDULING; MEMORANDUM REGARDING SAME	0.30 hrs.	52.50
01/23/2015	APB	REVIEW CORRESPONDENCE FROM FMC SECRETARY REGARDING COMPLAINANTS' DESIGNATION OF EXPERT WITNESSES	0.20 hrs.	35.00
01/23/2015	APB	INITIAL REVIEW AND ANALYSIS OF	1.80 hrs.	315.00
01/23/2015	AVM	CONTINUE TO ANALYZE	1.70 hrs.	297.50
01/23/2015	DEC	CONTINUE PREPARATION OF	2.60 hrs.	455.00
01/23/2015	WHW	REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING POSSIBLE CHANGE TO DEPOSITION SCHEDULE; REVIEW MEMO REGARDING SUGGESTED RESPONSE TO REQUEST TO MODIFY THE SCHEDULE	0.20 hrs.	35.00
01/23/2015	WHW	REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING DEPOSITION SCHEDULE FOR COMPLAINANTS	0.10 hrs.	17.50
01/23/2015	ADW	EMAIL OPPOSING COUNSEL TO CONFIRM DEPOSITION SCHEDULE	0.10 hrs.	15.00
01/23/2015	ADW	IDENTIFY AND SEND DOCUMENTS REQUESTED BY JEFF COMPTON	1.50 hrs.	225.00
01/23/2015	ADW	REVIEW	3.00 hrs.	450.00
01/26/2015	APB	REVIEW PLAINTIFFS' NOTICE OF INTENT TO DEPOSE MIKE MIERZWA; MEMORANDUM REGARDING SAME	0.30 hrs.	52.50
01/26/2015	AVM	REVIEW	0.60 hrs.	105.00
		DISCUSSION REGARDING ;STRATEGY		
01/26/2015	AVM	RECEIVE AND ANALYZE	1.80 hrs.	315.00
01/26/2015	AVM	PREPARE DOCUMENTS REGARDING	1.20 hrs.	210.00

01/26/2015	DEC	CONTINUE WORK ON	6.10 hrs.	1,067.50
01/26/2015	DEC	MEETINGS WITH MIERZWA	9.00 hrs.	1,575.00
01/26/2015	WHW	REVIEW MEMO REGARDING	0.30 hrs.	52.50
		; CONFERENCE REGARDING		
01/26/2015	ADW	SAME REVIEW	2.00 hrs.	300.00
01/27/2015	APB	REVIEW	0.30 hrs.	52.50
01/27/2015	APB	PREPARE NOTICE OF INTENT TO DEPOSE CHARLES TOMPKINS, PREPARE NOTICE OF INTENT TO DEPOSE CINDY TOMPKINS; PREPARE NOTICE OF INTENT TO DEPOSE JASON HAYES; PREPARE NOTICE OF INTENT TO DEPOSE GEORGE TEMPLETON; PREPARE NOTICE TO DEPOSE SYLVIA ROBLEDO; LETTER TO OPPOSING COUNSEL REGARDING DEPOSITION NOTICES	2.90 hrs.	507.50
01/27/2015	APB	REVIEW CORRESPONDENCE FROM OPPOSING COUNSEL REGARDING SCHEDULING MARK MURCHISON'S AND PETER SIMON'S DEPOSITIONS; REVIEW CORRESPONDENCE FROM MARK MURCHISON REGARDING AVAILABILITY ON FEBRUARY 6; LETTER TO OPPOSING COUNSEL REGARDING MURCHISON AND SIMONS DEPOSITION SCHEDULING	0.40 hrs.	70.00
01/27/2015	APB	PREPARE FOR	3.60 hrs.	630.00
01/27/2015	AVM	ANALYZE AND REVIEW	2.70 hrs.	472.50
01/27/2015	DEC	DEPOSITION PREPARATION	4.50 hrs.	787.50
01/27/2015	WHW	REVIEW MEMO REGARDING RESCHEDULING OF MARK MURCHISON'S DEPOSITION	0.10 hrs.	17.50
01/27/2015	WHW	REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING CONFLICTS WITH SCHEDULING THE DEPOSITION OF PETER SIMONS	0.10 hrs.	17.50
01/27/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
01/27/2015	WHW	REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING REVIEW OF DOCUMENTARY EVIDENCE IN ADVANCE OF DEPOSITIONS	0.10 hrs.	17.50
01/27/2015	WHW	REVIEW	1.40 hrs.	245.00

; EXTENDED CONFERENCE
REGARDING SAME; REVIEW

01/27/2015	WHW	REVIEW CORRESPONDENCE FROM ALISON FINE REGARDING DEPOSITION OF MARK MURCHISON REVIEW DEPOSITION NOTICE	0.20 hrs.	35.00
01/27/2015	ADW	REVIEW	3.00 hrs.	450.00
01/28/2015	APB	PREPARE FOR AND ATTEND	7.80 hrs.	1,365.00
01/28/2015	APB	LETTER TO OPPOSING COUNSEL REGARDING EZ CRUISE DEPOSITIONS AND PRODUCTION OF DOCUMENTS	0.20 hrs.	35.00
01/28/2015	AVM	PREPARE	3.20 hrs.	560.00
01/28/2015	AVM	PREPARE	3.40 hrs.	595.00
01/28/2015	DEC	DEPOSITION PREPARATION ; CONFERENCE WITH EXPERT;	8.00 hrs.	1,400.00
01/28/2015	WHW	EXTENDED CONFERENCE REGARDING	0.30 hrs.	52.50
01/28/2015	WHW	REVIEW CORRESPONDENCE	0.10 hrs.	17.50
01/28/2015	WHW	REVIEW	0.20 hrs.	35.00
01/28/2015	WHW	REVIEW	0.80 hrs.	140.00
		; PREPARE		
01/28/2015	WHW	MEMO REGARDING REVIEW OF SAME REVIEW	0.50 hrs.	87.50
		PREPARE MEMO REGARDING		
01/28/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
01/28/2015	WHW	REVIEW	0.40 hrs.	70.00
01/28/2015	WHW	REVIEW	0.40 hrs.	70.00
01/28/2015	WHW	PARTICIPATE IN EXTENDED PREPARATION OF	3.20 hrs.	560.00
01/28/2015	WHW	REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING STATUS OF PRODUCTION OF DOCUMENTS	0.10 hrs.	17.50
01/28/2015	ADW	MEETING WITH MIKE MIERZWA	7.00 hrs.	1,050.00

01/29/2015	APB	PREPARE FOR AND ATTEND	7.40 hrs.	1,295.00
01/29/2015	AVM	RECEIVE AND REVIEW	0.90 hrs.	157.50
01/29/2015	AVM	FINALIZE REVIEW	2.80 hrs.	490.00
01/29/2015	DEC	CONTINUE WORK ON ;	8.00 hrs.	1,400.00
01/29/2015	WHW	REVIEW	0.50 hrs.	87.50
01/29/2015	WHW	EXTENDED CONFERENCE CALL WITH MARK MURCHISON	1.00 hrs.	175.00
01/29/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
01/29/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
01/29/2015	ADW	MEETING WITH MARK MURCHISON	8.00 hrs.	1,200.00
01/30/2015	APB	PREPARE FOR AND ATTEND , FOLLOWED	9.20 hrs.	1,610.00
01/30/2015	AVM	BY DEPOSITION OF MIKE MIERZWA PREPARE	6.30 hrs.	1,102.50
01/30/2015	AVM	EMAIL CORRESPONDENCE WITH TEAM REGARDING	0.80 hrs.	140.00
01/30/2015	AVM	RECEIVE AND REVIEW FINAL DRAFT OF JOINT STATUS REPORT	0.80 hrs.	140.00
01/30/2015	AVM	RESEARCH AND FACTUAL INVESTIGATION REGARDING	1.30 hrs.	227.50
01/30/2015	DEC	CONTINUE WORK ON ; ATTEND MIERZWA DEPOSITION	8.00 hrs.	1,400.00
01/30/2015	WHW	REVIEW MEMO REGARDING	2.40 hrs.	420.00
		; REVIEW REVIEW RESEARCH LAW REGARDING		
		; PREPARE MEMO REGARDING SAME		
01/30/2015	WHW	REVIEW ; EXTENDED CONFERENCE REGARDING SAME	0.50 hrs.	87.50
01/30/2015	ADW	PREPARE JOINT STATUS REPORT	1.80 hrs.	270.00

\$77,764.50
EXPENSES

01/06/2015	SHYKATZ - LUNCH ON 01/06/14 DURING DEPOSITION PREPARATION	41.13
01/07/2015	SHYKATZ - LUNCH ON 01/07/14 DURING DEPOSITION PREPARATION	38.97
01/08/2015	AMANDA D. WRIGHT - LUNCH DURING DEPOSITION PREPARATION ON 01/05/14	25.00
01/15/2015	AMANDA D. WRIGHT - TRAVEL ON 01/14/15 TO PEARLAND, TX FOR REVIEW OF DOCUMENTS OFFERED FOR PRODCUTION BY COMPLAINANTS	68.48
01/15/2015	ANTHONY P. BROWN - TRAVEL ON 01/14/15 TO PEARLAND, TX FOR REVIEW OF RECORDS PRODUCED FOR INSPECTION	52.90
01/15/2015	ANTHONY P. BROWN - ONLINE MEETING CHARGE	44.96
01/20/2015	FEDERAL EXPRESS - DELIVERY SENT ON 01/02/14 TO BRENT ALLISON	88.56
01/20/2015	FEDERAL EXPRESS - DELIVERY SENT ON 01/02/15 TO BRENT ALLISON	76.00
01/20/2015	FEDERAL EXPRESS - DELIVERY SENT ON 01/02/15 TO BRENT ALLISON	88.88
01/26/2015	FEDERAL EXPRESS - DELIVERY SENT ON 01/12/15 TO GILMAN & ALLISON	51.36
01/28/2015	SHYKATZ - LUNCH ON 01/28/15 DURING DEPOSITION PREPARATION	42.76
01/29/2015	SHYKATZ - LUNCH DURING DEPOSITION PREPARATION ON 01/29/15	39.51
01/30/2015	SHYKATZ - LUNCH ON 01/30/15 DURING DEPOSITION	47.63
01/31/2015	COPYING	194.00
01/31/2015	POSTAGE	15.91
01/31/2015	WEST LAW RESEARCH	2.89
01/31/2015	SCANNING	90.10
		\$1,009.04

Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>112.30 hrs</u>	<u>\$175.00 /hr</u>	<u>\$19,652.50</u>
<u>WAGNER, WILLIAM</u>	<u>33.50 hrs</u>	<u>\$175.00 /hr</u>	<u>\$5,862.50</u>
<u>HULSE</u>			
<u>COWEN, DAVID E.</u>	<u>147.90 hrs</u>	<u>\$175.00 /hr</u>	<u>\$25,882.50</u>
<u>MARBURGER, APRIL</u>	<u>79.40 hrs</u>	<u>\$175.00 /hr</u>	<u>\$13,895.00</u>
<u>HICKS, MELINDA</u>	<u>4.70 hrs</u>	<u>\$65.00 /hr</u>	<u>\$305.50</u>
<u>WRIGHT, AMANDA D.</u>	<u>80.20 hrs</u>	<u>\$150.00 /hr</u>	<u>\$12,030.00</u>
<u>ZEPEDA, JENNIFER M.</u>	<u>2.10 hrs</u>	<u>\$65.00 /hr</u>	<u>\$136.50</u>

Total professional services	\$77,764.50
Total expenses incurred	\$1,009.04

Total of new charges for this invoice	\$78,773.54
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PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

February 28, 2015

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 111929 WHW
Our file# 12432 14003
Billing through 02/28/2015

LIGHTHOUSE PARKING FMC COMPLAINT**PROFESSIONAL SERVICES**

02/02/2015	APB	REVISE AND SUPPLEMENT PROPOSED JOINT STATUS REPORT IN PARALLEL FEDERAL DISTRICT COURT LAWSUIT; LETTER TO OPPOSING COUNSEL REGARDING SAME	0.40 hrs.	70.00
02/02/2015	APB	REVIEW PROPOSED CHANGES TO PROPOSED JOINT STATUS REPORT IN PARALLEL FEDERAL DISTRICT COURT LAWSUIT; PREPARE SUPPLEMENTAL EDITS TO SAME; LETTER TO OPPOSING COUNSEL REGARDING SAME	0.40 hrs.	70.00
02/02/2015	APB	REVISE AND SUPPLEMENT DRAFT JOINT STATUS REPORT DUE TO BE FILED IN FMC PROCEEDING; LETTER TO OPPOSING COUNSEL REGARDING SAME	0.40 hrs.	70.00
02/02/2015	APB	REVIEW CORRESPONDENCE FROM OPPOSING COUNSEL AGREEING TO FINAL FORM OF JOINT STATUS REPORT IN PARALLEL FEDERAL DISTRICT COURT LAWSUIT; PREPARE FINAL FORM OF REPORT FOR FILING	0.30 hrs.	52.50
02/02/2015	APB	REVIEW CORRESPONDENCE FROM OPPOSING COUNSEL APPROVING FINAL FORM OF JOINT STATUS REPORT TO BE FILED WITH FMC; PREPARE FINAL FORM OF REPORT; LETTER TO FMC SECRETARY REGARDING SAME	0.40 hrs.	70.00
02/02/2015	APB	LETTER TO OPPOSING COUNSEL REGARDING MURCHISON DEPOSITION	0.20 hrs.	35.00
02/02/2015	APB	PREPARATION FOR	3.70 hrs.	647.50
02/02/2015	APB	RESEARCH	0.90 hrs.	157.50
02/02/2015	AVM	REVIEW	3.10 hrs.	542.50
02/02/2015	AVM	REVIEW ; PREPARE	3.20 hrs.	560.00

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02/02/2015	AVM	TELECONFERENCES WITH MARK MURCHISON REGARDING	0.90 hrs.	157.50
02/02/2015	DEC	REVIEW DRAFT EXCHANGES OF STATUS REPORT AND COMMENT ON SAME; CONTINUE	9.00 hrs.	1,575.00
02/02/2015	MAH	PERFORM	0.70 hrs.	45.50
02/02/2015	WHW	REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING STATUS OF FILING OF JOINT STATUS REPORT WITH THE DISTRICT CLERK	0.10 hrs.	17.50
02/02/2015	WHW	REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING PROPOSED REVISIONS TO JOINT STATUS REPORT IN DISTRICT COURT CASE; REVIEW MEMO REGARDING ; REVIEW ; REVIEW AND REVISE JOINT STATUS REPORT; PREPARE MEMO REGARDING	0.40 hrs.	70.00
02/02/2015	WHW	REVIEW JOINT STATUS REPORT TO BE FILED IN DISTRICT COURT CASE; REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING REVIEW OF STATUS REPORT	0.20 hrs.	35.00
02/02/2015	WHW	REVIEW CORRESPONDENCE TO THE FMC SECRETARY REGARDING FILING OF JOINT STATUS REPORT	0.10 hrs.	17.50
02/02/2015	WHW	REVIEW	0.10 hrs.	17.50
02/02/2015	WHW	REVIEW ; REVIEW ; EXTENDED CONFERENCE REGARDING SAME	0.50 hrs.	87.50
02/02/2015	WHW	REVIEW ADDITIONAL REVISIONS TO JOINT STATUS REPORT IN THE DISTRICT COURT CASE	0.10 hrs.	17.50
02/02/2015	WHW	REVIEW ADDITIONAL REVISIONS TO THE JOINT STATUS REPORT IN THE DISTRICT COURT ACTION; REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING SAME	0.20 hrs.	35.00
02/02/2015	WHW	REVIEW ADDITIONAL REVISIONS TO THE JOINT STATUS REPORT IN THE FMC ACTION; REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING REVIEW OF SAME; REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING APPROVAL OF FILING OF REVISED FMC STATUS REPORT	0.30 hrs.	52.50
02/02/2015	WHW	REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING APPROVAL AND FILING OF JOINT STATUS REPORT IN THE DISTRICT COURT ACTION	0.10 hrs.	17.50
02/02/2015	WHW	REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING POSSIBLE RESCHEDULING OF THE DEPOSITION OF MARK MURCHISON; REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING SAME	0.20 hrs.	35.00

02/02/2015	WHW	REVIEW CORRESPONDENCE FROM THE FEDERAL DISTRICT COURT CLERK REGARDING TENDER OF ACCESS FEES INTO THE REGISTRY OF THE COURT BY SYLVIA ROBLEDO AND EZ CRUISE PARKING	0.10 hrs.	17.50
02/02/2015	ADW	ASSIST	8.00 hrs.	1,200.00
02/03/2015	APB	CONTINUE	7.80 hrs.	1,365.00
02/03/2015	APB	MEETING WITH MARK MURCHISON REGARDING	2.10 hrs.	367.50
02/03/2015	AVM	CONFERENCE WITH MARK MURCHISON	2.10 hrs.	367.50
02/03/2015	AVM	STRATEGY CONFERENCE AND REVIEW OF	6.20 hrs.	1,085.00
02/03/2015	DEC	; MEETING WITH MURCHISON	8.70 hrs.	1,522.50
02/03/2015	MAH	SEARCH	0.50 hrs.	32.50
		/PREPARE		
02/03/2015	WHW	MEMO REGARDING SAME REVIEW	0.30 hrs.	52.50
		; CONFERENCE REGARDING		
02/03/2015	WHW	REVIEW AND ANALYZE ; EXTENDED	0.40 hrs.	70.00
02/03/2015	WHW	CONFERENCE REGARDING SAME REVIEW MEMO REGARDING	0.10 hrs.	17.50
02/03/2015	WHW	REVIEW MEMO REGARDING ; EXTENDED	0.40 hrs.	70.00
02/03/2015	ADW	CONFERENCE REGARDING SAME DEPOSITION PREPARATION	6.90 hrs.	1,035.00
02/03/2015	ADW	MEET WITH MARK MURCHISON	1.00 hrs.	150.00
02/03/2015	JMZ	CONFER WITH ADW/APB	1.40 hrs.	91.00
02/03/2015	JMZ	PICKED	0.90 hrs.	58.50
02/03/2015	AVM	REVIEW PREPARE ;	4.10 hrs.	717.50
02/04/2015	APB	PREPARE FOR AND ATTEND DEPOSITIONS OF CHARLES AND CYNTHIA TOMPKINS (EZ CRUISE)	10.20 hrs.	1,785.00
02/04/2015	AVM	REVIEW ;	2.60 hrs.	455.00

02/04/2015	DEC	CONTINUE PREPARATION ; CONTINUE PREPARATION PREPARATION ; CONTINUE	7.30 hrs.	1,277.50
02/04/2015	WHW	REVIEW DRAFT REPORT	0.60 hrs.	105.00
02/04/2015	WHW	REVIEW AND ANALYZE	0.80 hrs.	140.00
		; CONFERENCE REGARDING SAME		
02/04/2015	ADW	ATTEND AND ASSIST APB WITH	5.50 hrs.	825.00
02/04/2015	ADW	ATTEND AND ASSIST APB WITH	4.60 hrs.	690.00
02/04/2015	JMZ	PERFORMED	1.30 hrs.	84.50
02/04/2015	JMZ	MADE AN ADDITIONAL TRIP TO	0.80 hrs.	52.00
02/04/2015	JMZ	RESEARCH	0.30 hrs.	19.50
02/05/2015	APB	REVIEW	0.30 hrs.	52.50
02/05/2015	APB	LETTER TO OPPOSING COUNSEL REQUESTING PRODUCTION OF RECENT MONTHLY FINANCIAL STATEMENTS FOR EZ CRUISE	0.20 hrs.	35.00
02/05/2015	AVM	ANALYZE	3.20 hrs.	560.00
02/05/2015	AVM	FACTUAL INVESTIGATION REGARDING	0.90 hrs.	157.50
02/05/2015	AVM	FACTUAL INVESTIGATION REGARDING	0.60 hrs.	105.00
02/05/2015	AVM	ANALYZE	1.30 hrs.	227.50
02/05/2015	DEC	PREPARE FOR AND ATTEND	7.20 hrs.	1,260.00
02/05/2015	DEC	REVIEW	2.10 hrs.	367.50
02/05/2015	WHW	REVIEW CORRESPONDENCE FROM ALLISON FINE REGARDING SERVICE OF DISCOVERY RESPONSES; REVIEW AND ANALYZE DISCOVERY RESPONSES	0.40 hrs.	70.00
02/05/2015	WHW	REVIEW AND ANALYZE	0.70 hrs.	122.50
		CONFERENCE REGARDING SAME		
02/05/2015	WHW	REVIEW	1.00 hrs.	175.00

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02/05/2015	ADW	PREPARE FOR, ATTEND, AND ASSIST	7.00 hrs.	1,050.00
02/06/2015	APB	ASSIST WITH PREPARATION	1.80 hrs.	315.00
02/06/2015	APB	PARTICIPATE IN CONFERENCE	1.40 hrs.	245.00
02/06/2015	AVM	REVIEW ; PREPARE	3.10 hrs.	542.50
02/06/2015	AVM	ATTEND STRATEGY CONFERENCE REGARDING	0.90 hrs.	157.50
02/06/2015	AVM	REVIEW	0.90 hrs.	157.50
02/06/2015	AVM	ANALYZE AND REVIEW	1.30 hrs.	227.50
02/06/2015	DEC	CONTINUE WORK ON	3.20 hrs.	560.00
02/06/2015	DEC	PREPARE	2.30 hrs.	402.50
02/06/2015	DEC	PREPARE	2.60 hrs.	455.00
02/06/2015	MAH	RESEARCH ; OBTAIN COPIES OF	1.20 hrs.	78.00
02/06/2015	WHW	REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING DELIVERY OF 2014 GPFC OPERATING BUDGET; REVIEW	0.40 hrs.	70.00
02/06/2015	WHW	REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING REVIEW OF DOCUMENTS PRODUCED BY THE PORT IN RESPONSE TO DISCOVERY REQUESTS	0.10 hrs.	17.50
02/06/2015	WHW	REVIEW AND ANALYZE	1.20 hrs.	210.00
02/06/2015	WHW	PARTICIPATE IN EXTENDED CONFERENCE ; PREPARE MEMO REGARDING SAME; REVIEW ; PREPARE CORRESPONDENCE	2.40 hrs.	420.00
02/06/2015	ADW	REVIEW AND PARTICIPATE IN CONFERENCE CALL WITH COMPTON, APB, WHW, AND DEC REGARDING SAME	2.90 hrs.	435.00
02/06/2015	ADW	REVIEW ; RESPOND TO CORRESPONDENCE FROM OPPOSING COUNSEL REGARDING DOCUMENTS REQUESTED.	0.40 hrs.	60.00
02/08/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50

12432	GALVESTON WHARVES		Invoice# 111929	Page 6
02/09/2015	APB	REVISE AND SUPPLEMENT ; MEMORANDUM REGARDING SAME	0.40 hrs.	70.00
02/09/2015	APB	TELEPHONE CALL WITH JEFF COMPTON REGARDING REPORT	0.20 hrs.	35.00
02/09/2015	APB	LETTER TO OPPOSING COUNSEL REGARDING EXPERT WITNESS DESIGNATION AND COMPTON REPORT	0.20 hrs.	35.00
02/09/2015	AVM	RECEIVE AND REVIEW ; EMAIL CORRESPONDENCE WITH TEAM REGARDING SAME	0.70 hrs.	122.50
02/09/2015	DEC	TRAVEL TO AND ATTEND ; CONFERENCES ; COORDINATE AND REVIEW ; PREPARE	9.20 hrs.	1,610.00
02/09/2015	WHW	REVIEW CORRESPONDENCE FROM ALLISON FINE REGARDING FILING OF ANSWERS AND OBJECTIONS TO INTERROGATORIES	0.10 hrs.	17.50
02/09/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
02/09/2015	WHW	REVIEW	0.50 hrs.	87.50
02/09/2015	WHW	REVIEW	0.10 hrs.	17.50
02/09/2015	WHW	REVIEW ; PREPARE MEMO REGARDING SAME; CONFERENCE REGARDING	0.50 hrs.	87.50
02/09/2015	WHW	REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING DEPOSITION AVAILABILITY OF MARK MURCHISON; REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING SAME	0.20 hrs.	35.00
02/09/2015	WHW	REVIEW ; REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING SAME	0.30 hrs.	52.50
02/09/2015	WHW	REVIEW ; CONFERENCE REGARDING SAME	0.20 hrs.	35.00
02/09/2015	WHW	REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING DISCLOSURE OF CORPORATE DOCUMENTS FOR GPFC	0.10 hrs.	17.50
02/09/2015	ADW	REVIEW FILE AND PREPARE ; CALL JEFF COMPTON REGARDING ; CONTACT PORT PERSONNEL	6.00 hrs.	900.00
02/09/2015	ADW	REVIEW ; TELEPHONE CALL WITH COMPTON REGARDING	0.50 hrs.	75.00
02/10/2015	AVM	REVIEW	3.10 hrs.	542.50

12432	GALVESTON WHARVES		Invoice# 111929	Page 7
02/10/2015	DEC	PREPARE	9.00 hrs.	1,575.00
		CONFERENCES WITH COUNSEL ON DEPOSITION AND FURTHER SCHEDULING		
02/10/2015	WHW	REVIEW AND ANALYZE	0.70 hrs.	122.50
		; EXTENDED		
		CONFERENCE REGARDING SAME		
02/10/2015	WHW	ANALYZE AND EVALUATE	0.70 hrs.	122.50
02/10/2015	ADW	PREPARE FOR, ATTEND AND ASSIST WITH	7.50 hrs.	1,125.00
02/10/2015	ADW	RECEIVE AND REVIEW	0.70 hrs.	105.00
02/11/2015	APB	EVALUATE	0.60 hrs.	105.00
		; MEMORANDUM REGARDING		
02/11/2015	AVM	REVIEW	1.60 hrs.	280.00
02/11/2015	AVM	CONTINUE TO REVIEW	2.20 hrs.	385.00
02/11/2015	DEC	COORDINATE	3.70 hrs.	647.50
		; COORDINATE REVIEW AND IDENTIFICATION		
		; DEVELOP		
02/11/2015	WHW	REVIEW MEMO REGARDING	0.30 hrs.	52.50
		REVIEW		
02/12/2015	APB	RESEARCH AND EVALUATE	2.70 hrs.	472.50
02/12/2015	AVM	REVIEW	2.40 hrs.	420.00
02/12/2015	DEC	COORDINATE	2.00 hrs.	350.00
		; OUTLINE		
02/12/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
02/12/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
02/12/2015	WHW	REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING PRESENTATION OF MARK MURCHISON FOR DEPOSITION TESTIMONY	0.10 hrs.	17.50

02/12/2015	WHW	REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING DEPOSITION SCHEDULING	0.10 hrs.	17.50
02/12/2015	ADW	TELECONFERENCE WITH MARK MURCHISON REGARDING	0.50 hrs.	75.00
02/12/2015	ADW	EMAIL OPPOSING COUNSEL REGARDING MARK MURCHISON'S AVAILABILITY FOR DEPOSITION	0.10 hrs.	15.00
02/12/2015	ADW	PREPARE LETTER TO OPPOSING COUNSEL REGARDING OUTSTANDING DOCUMENTS OWED BY COMPLAINANT 81ST DOLPHIN	0.70 hrs.	105.00
02/13/2015	APB	REVIEW	1.60 hrs.	280.00
02/13/2015	APB	ASSIST WITH PREPARATION OF	0.30 hrs.	52.50
02/13/2015	AVM	REVIEW	1.60 hrs.	280.00
02/13/2015	DEC	CONTINUE	3.30 hrs.	577.50
; WORK ON IDENTIFICATION				
02/13/2015	WHW	REVIEW	0.10 hrs.	17.50
02/13/2015	WHW	REVIEW	0.10 hrs.	17.50
02/13/2015	WHW	REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING SYLVIA ROBLEDO'S AGREEMENT TO SUPPLEMENT PRODUCTION OF DOCUMENTARY EVIDENCE	0.10 hrs.	17.50
02/13/2015	WHW	REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING SCHEDULING OF DEPOSITION OF MARK MURCHISON	0.10 hrs.	17.50
02/13/2015	ADW	PREPARE	2.30 hrs.	345.00
02/13/2015	ADW	EMAIL MARK MURCHISON	0.10 hrs.	15.00
02/15/2015	WHW	REVIEW AND ANALYZE	1.80 hrs.	315.00
02/16/2015	APB	RESEARCH	1.90 hrs.	332.50
02/16/2015	DEC	WORK ON PREPARING	3.70 hrs.	647.50
02/16/2015	DEC	WORK ON OUTLINING	2.90 hrs.	507.50
02/16/2015	DEC	WORK ON	0.60 hrs.	105.00

12432	GALVESTON WHARVES		Invoice# 111929	Page 9
02/16/2015	WHW	REVIEW CORRESPONDENCE TO JUDGE GUTHRIE REGARDING FILING OF NOTICE OF THIRD PARTY SUBPOENAS	0.10 hrs.	17.50
02/17/2015	DEC	CONTINUE WORK ON	4.10 hrs.	717.50
02/18/2015	APB	REVIEW	0.90 hrs.	157.50
02/18/2015	APB	PREPARE FOR AND ATTEND	2.30 hrs.	402.50
02/18/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
02/18/2015	ADW	ADDITIONAL DEPOSITION PREPARATION WITH MARK MURCHISON AND APB	2.30 hrs.	345.00
02/19/2015	APB	PREPARE FOR ; ATTEND	8.30 hrs.	1,452.50
02/19/2015	DEC	PREPARE FOR AND ATTEND	8.80 hrs.	1,540.00
02/19/2015	DEC	IDENTIFY AND CATEGORIZE ; COORDINATE	0.80 hrs.	140.00
02/19/2015	ADW	ASSIST IN	3.00 hrs.	450.00
02/20/2015	APB	MEMORANDUM REGARDING	0.40 hrs.	70.00
02/20/2015	AVM	EMAIL CORRESPONDENCE WITH TEAM REGARDING	0.90 hrs.	157.50
02/20/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
02/20/2015	WHW	REVIEW AND EVALUATE	0.50 hrs.	87.50
02/20/2015	ADW	; CONFERENCE REGARDING SAME TELECONFERENCE WITH MARK MURCHISON REGARDING ; REVIEW	3.00 hrs.	450.00
02/23/2015	AVM	MEMORANDUM TO APB REVIEW	3.10 hrs.	542.50
02/23/2015	DEC	BEGIN REVIEW OF	1.00 hrs.	175.00
02/24/2015	DEC	REVIEW	1.00 hrs.	175.00
02/24/2015	WHW	REVIEW AND ANALYZE ; EXTENDED CONFERENCE REGARDING SAME	2.20 hrs.	385.00

12432	GALVESTON WHARVES		Invoice# 111929	Page 10
02/24/2015	CCK	REVIEW AND EVALUATE ; PREPARE	3.90 hrs.	585.00
02/25/2015	APB	TELEPHONE CALL WITH ALJ'S OFFICE REGARDING SUBPOENAS; MEMORANDUM REGARDING SAME	0.30 hrs.	52.50
02/25/2015	AVM	RESEARCH REGARDING TEAM DISCUSSION REGARDING	2.10 hrs.	367.50
02/25/2015	WHW	REVIEW MEMO REGARDING REVIEW AND EVALUATE ; REVIEW MEMO REGARDING	0.30 hrs.	52.50
02/25/2015	WHW	REVIEW AND ANALYZE	1.40 hrs.	245.00
02/25/2015	WHW	REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING COMPLAINANT'S DEFICIENCIES IN RESPONDING TO DISCOVERY REQUESTS	0.10 hrs.	17.50
02/25/2015	ADW	REVIEW ; EMAIL TO DEC REGARDING SAME	0.80 hrs.	120.00
02/25/2015	ADW	PREPARE FOLLOW-UP CORRESPONDENCE TO OPPOSING COUNSEL REGARDING DOCUMENTS OWED BY 81ST DOLPHIN; EMAIL OPPOSING COUNSEL ATTACHING SAID CORRESPONDENCE	0.70 hrs.	105.00
02/26/2015	DEC	COORDINATE REVIEW OF ; WORK ON	3.00 hrs.	525.00
02/26/2015	WHW	REVIEW AND ANALYZE	2.40 hrs.	420.00
02/26/2015	CCK	REVIEW AND EVALUATE ; PREPARE	2.90 hrs.	435.00
02/26/2015	ADW	TELECONFERENCE WITH ALJ REGARDING SUBPOENAS	0.20 hrs.	30.00
02/27/2015	WHW	REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING CORRECTION OF DEFICIENCIES IN COMPLAINANTS' DISCOVERY RESPONSES	0.10 hrs.	17.50
02/28/2015	WHW	REVIEW MEMO REGARDING REVIEW AND ANALYZE	1.90 hrs.	332.50
				\$50,579.00

EXPENSES

02/03/2015	SHYKATZ - LUNCH DURING DEPOSITION PREPARATION	64.41
02/05/2015	ANTHONY P. BROWN - TRAVEL ON 02/04/15 TO PEARLAND, TX FOR	62.23

02/06/2015	AMANDA D. WRIGHT - TRAVEL ON 02/04/15 AND 02/05/15 TO PEARLAND, TX FOR DEPOSITION OF CHARLES AND CINDY TOMPKINS AND JASON HAYES	135.41
02/12/2015	DAVID E. COWEN - TRAVEL ON 02/09/15 TO PEARLAND, TX FOR DEPOSITIONS AT DOUG GILMAN'S OFFICE	34.50
02/12/2015	DAVID E. COWEN - TRAVEL ON 02/05/15 TO PEARLAND, TX FOR DEPOSITIONS AT DOUG GILMAN'S OFFICE	34.50
02/12/2015	DAVID E. COWEN - TRAVEL ON 02/10/15 TO PEARLAND, TX FOR DEPOSITIONS AT DOUG GILMAN'S OFFICE	34.50
02/12/2015	ANTHONY P. BROWN - SERVICE CHARGE FROM GO TO MEETING ON 02/09/15	44.96
02/13/2015	MELINDA HICKS - CERTIFIED COPIES FROM COURT HOUSE	39.50
02/19/2015	SHYKATZ - DEPOSITION LUNCH	53.04
02/24/2015	COURT REPORTER'S CLEARINGHOUSE, INC. - SERVICE FEE FOR CERTIFIED TRANSCRIPT REGARDING CHARLES TOMPKINS	984.05
02/24/2015	COURT REPORTER'S CLEARINGHOUSE, INC. - SERVICE FEE FOR CERTIFIED TRANSCRIPTS REGARDING CYNTHIA TOMPKINS	822.35
02/28/2015	COPYING	912.60
02/28/2015	WEST LAW RESEARCH	103.06
02/28/2015	SCANNING	20.06
		\$3,345.17

Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>50.60 hrs</u>	<u>\$175.00 /hr</u>	<u>\$8,855.00</u>
<u>WAGNER, WILLIAM HULSE</u>	<u>26.90 hrs</u>	<u>\$175.00 /hr</u>	<u>\$4,707.50</u>
<u>COWEN, DAVID E.</u>	<u>95.50 hrs</u>	<u>\$175.00 /hr</u>	<u>\$16,712.50</u>
<u>MARBURGER, APRIL</u>	<u>52.10 hrs</u>	<u>\$175.00 /hr</u>	<u>\$9,117.50</u>
<u>HICKS, MELINDA</u>	<u>2.40 hrs</u>	<u>\$65.00 /hr</u>	<u>\$156.00</u>
<u>KING, CHRIS C.</u>	<u>6.80 hrs</u>	<u>\$150.00 /hr</u>	<u>\$1,020.00</u>
<u>WRIGHT, AMANDA D.</u>	<u>64.70 hrs</u>	<u>\$150.00 /hr</u>	<u>\$9,705.00</u>
<u>ZEPEDA, JENNIFER M.</u>	<u>4.70 hrs</u>	<u>\$65.00 /hr</u>	<u>\$305.50</u>

Total professional services	\$50,579.00
Total expenses incurred	\$3,345.17

Total of new charges for this invoice	\$53,924.17
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PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

March 31, 2015

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 112176 WHW
Our file# 12432 14003
Billing through 03/31/2015

LIGHTHOUSE PARKING FMC COMPLAINT**PROFESSIONAL SERVICES**

03/02/2015	APB	INITIAL REVIEW OF	0.60 hrs.	105.00
03/02/2015	AVM	FACTUAL INVESTIGATION REGARDING	0.80 hrs.	140.00
03/02/2015	WHW	REVIEW CORRESPONDENCE FROM COURT REPORTER REGARDING EXECUTION OF DEPOSITION SIGNATURE PAGE BY DEPONENT	0.10 hrs.	17.50
03/02/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
03/03/2015	APB	CONTINUE REVIEW AND ANALYSIS OF	1.90 hrs.	332.50
03/04/2015	APB	REVIEW CORRESPONDENCE FROM OPPOSING COUNSEL REGARDING PRODUCTION OF DEPRECIATION SCHEDULES AND DEMAND TO RE-DEPOSE MARK MURCHISON	0.20 hrs.	35.00
03/04/2015	APB	RESEARCH REGARDING	2.30 hrs.	402.50
03/04/2015	WHW	REVIEW CORRESPONDENCE FROM ALISON FINE REGARDING THREAT TO WITHHOLD SUPPLEMENTATION OF DISCOVERY RESPONSES; REVIEW MEMO REGARDING ; REVIEW	0.40 hrs.	70.00
03/04/2015	ADW	RECEIVE AND REVIEW CORRESPONDENCE FROM OPPOSING COUNSEL REGARDING OUTSTANDING DISCOVERY FRO PLAINTIFF ROBLEDO	0.10 hrs.	15.00
03/05/2015	APB	REVIEW AND ANALYZE CORRESPONDENCE FROM OPPOSING COUNSEL REGARDING DOCUMENT PRODUCTION ISSUES; REVIEW AND ANALYSIS OF	2.40 hrs.	420.00

		; TELEPHONE CONFERENCE WITH MARK MURCHISON ; LETTER TO OPPOSING COUNSEL REGARDING DEPRECIATION SCHEDULES; ROBLEDO DOCUMENTS AND HAYES NOTES		
03/05/2015	AVM	RECEIVE AND REVIEW ; TEAM DISCUSSION REGARDING SAME	0.70 hrs.	122.50
03/05/2015	AVM	EMAIL CORRESPONDENCE WITH GILLMAN'S OFFICE REGARDING REPEATED REQUESTS FOR DOCUMENTS FROM ROBLEDO; TEAM DISCUSSION REGARDING SAME	1.10 hrs.	192.50
03/05/2015	AVM	RESEARCH AND ANALYSIS OF	1.90 hrs.	332.50
03/05/2015	DEC	REVIEW DEMANDS FROM GILMAN ON DISCOVERY; REVIEW DOCUMENTS SENT TO GILMAN PREVIOUSLY IN RESPONSE TO PRIOR REQUESTS; COORDINATE RESPONSE	0.50 hrs.	87.50
03/05/2015	DEC	REVIEW DEPOSITION INVOICES AND ATTACHMENTS FROM COURT REPORTERS AND FORWARD FOR HANDLING	0.20 hrs.	35.00
03/05/2015	DEC	REVIEW JEFF COMPTON INVOICE AND FORWARD FOR PAYMENT; EXCHANGE EMAIL ON STATUS OF PRIOR INVOICE	0.20 hrs.	35.00
03/05/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
03/05/2015	WHW	REVIEW AND ANALYZE	0.30 hrs.	52.50
03/05/2015	WHW	REVIEW	0.20 hrs.	35.00
03/05/2015	WHW	REVIEW MEMO REGARDING	0.40 hrs.	70.00
CONFERENCE REGARDING				
03/05/2015	WHW	REVIEW CORRESPONDENCE FROM JEFF COMPTON REGARDING EXPERT WITNESS REPORT	0.10 hrs.	17.50
03/06/2015	APB	RESEARCH	1.90 hrs.	332.50
03/06/2015	AVM	ANALYZE ; DISCUSSION WITH TEAM REGARDING	0.90 hrs.	157.50
03/06/2015	AVM	ANALYZE	0.90 hrs.	157.50

03/06/2015	WHW	REVIEW CORRESPONDENCE TO ALLISON REGARDING OBLIGATION OF COMPLAINANTS TO SUPPLEMENT DISCOVERY RESPONSES	0.10 hrs.	17.50
03/06/2015	WHW	REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING SUPPLEMENTATION OF DISCOVERY RESPONSES	0.10 hrs.	17.50
03/09/2015	APB	PREPARE FOR AND ATTEND MEETING REGARDING	0.50 hrs.	87.50
03/09/2015	AVM	STRATEGY CONFERENCE REGARDING	0.80 hrs.	140.00
03/09/2015	DEC	WORK ON	4.70 hrs.	822.50
		; WORK ON		
		; CONFERENCE WITH COUNSEL ON OPEN ISSUES AND FINISHING DISCOVERY; REVIEW		
03/09/2015	WHW	REVIEW CORRESPONDENCE FROM ALLISON FINE REGARDING SERVICE OF SUPPLEMENTAL DISCOVERY FROM SYLVIA ROBLEDO; ANALYZE AND EVALUATE	1.60 hrs.	280.00
03/09/2015	WHW	EXTENDED CONFERENCE REGARDING SAME EXTENDED CONFERENCE REGARDING	0.50 hrs.	87.50
03/09/2015	ADW	MEETING WITH DEC AND APB TO DISCUSS	1.00 hrs.	150.00
03/09/2015	ADW	RECEIVE AND REVIEW	1.00 hrs.	150.00
03/10/2015	APB	REVIEW	1.80 hrs.	315.00
03/10/2015	AVM	STRATEGY CONFERENCE REGARDING	0.80 hrs.	140.00
03/10/2015	AVM	RECEIVE AND ANALYZE	1.20 hrs.	210.00
		; FACTUAL ANALYSIS AND INVESTIGATION REGARDING		
03/10/2015	ADW	PREPARE	1.50 hrs.	225.00
		AND BRIEF STAFF		
03/10/2015	ADW	REGARDING SAME (.5) EMAIL TO ANGIE RAMIREZ	0.10 hrs.	15.00
03/11/2015	APB	REVIEW AND ANALYZE	0.90 hrs.	157.50

; REVIEW

03/11/2015	AVM	DISCUSSION WITH TEAM REGARDING	0.50 hrs.	87.50
03/11/2015	AVM	RECEIVE AND REVIEW	1.10 hrs.	192.50
03/11/2015	WHW	REVIEW AND ANALYZE	0.40 hrs.	70.00
03/11/2015	ADA	CONTACT	1.50 hrs.	97.50
03/11/2015	ADW	RECEIVE AND REVIEW	0.40 hrs.	60.00
03/11/2015	ADW	REVIEW	2.00 hrs.	300.00
03/11/2015	JMZ	RESEARCH	0.80 hrs.	52.00
03/11/2015	JMZ	CONTACT	2.30 hrs.	149.50
03/11/2015	MSA	RESEARCH	1.10 hrs.	71.50
03/12/2015	APB	CONFERENCE CALL WITH MARK MURCHISON REGARDING ; RESEARCH	1.10 hrs.	192.50
03/12/2015	AVM	CONFERENCE WITH TEAM REGARDING	1.10 hrs.	192.50
03/12/2015	DEC	REVIEW	2.40 hrs.	420.00
03/12/2015	RCS	PHONE CONFERENCE WITH MURCHISON CONTACT	1.50 hrs.	97.50
03/12/2015	ADW	INTEROFFICE MEETING WITH AVM AND STAFF REGARDING	1.50 hrs.	225.00
03/12/2015	ADW	TELECONFERENCE WITH DEC, APB AND MARK MURCHISON REGARDING	1.00 hrs.	150.00

03/12/2015	JMZ	CONTACT	0.70 hrs.	45.50
03/13/2015	APB	CONFERENCE WITH MARK MURCHISON REGARDING	0.40 hrs.	70.00
03/13/2015	APB	ASSIST WITH	2.70 hrs.	472.50
03/13/2015	AVM	RECEIVE AND REVIEW	1.20 hrs.	210.00
03/13/2015	DEC	COORDINATE ; REVIEW AND COORDINATE	1.20 hrs.	210.00
03/13/2015	DEC	COORDINATE	1.90 hrs.	332.50
03/13/2015	DEC	REVIEW GILMAN'S INQUIRY ON DISCOVERY AND ON STATUS REPORT; EXCHANGE EMAILS ON DEADLINES	0.40 hrs.	70.00
03/13/2015	WHW	REVIEW ; REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING SAME	0.80 hrs.	140.00
03/13/2015	ADW	PREPARE AND FINALIZE	0.90 hrs.	135.00
03/13/2015	ADW	IDENTIFY AND FORWARD DOCUMENTS PREVIOUSLY PRODUCED BUT REQUESTED BY OPPOSING COUNSEL	0.40 hrs.	60.00
03/13/2015	ADW	FOLLOW-UP TELECONFERENCE WITH MARK MURCHISON AND APB REGARDING	0.30 hrs.	45.00
03/16/2015	APB	CONTINUE WORK ON	2.20 hrs.	385.00
03/16/2015	AVM	ANALYZE	2.10 hrs.	367.50
03/16/2015	DEC	BEGIN REVIEW OF ; EXCHANGE EMAILS	1.20 hrs.	210.00
03/16/2015	ADW	TELECONFERENCE WITH OPPOSING COUNSEL REGARDING DISCOVERY SCHEDULE AND OUTSTANDING DISCOVERY	0.70 hrs.	105.00
03/17/2015	AVM	TELECONFERENCE	0.80 hrs.	140.00
03/18/2015	AVM	RESEARCH REGARDING	0.90 hrs.	157.50
03/18/2015	AVM	PREPARE	3.90 hrs.	682.50
03/18/2015	AVM	PREPARE	2.20 hrs.	385.00

12432	GALVESTON WHARVES		Invoice# 112176	Page 6
03/19/2015	AVM	PREPARE	2.00 hrs.	350.00
03/20/2015	APB	RESEARCH REGARDING	2.30 hrs.	402.50
03/23/2015	AVM	PREPARE	4.30 hrs.	752.50
		; STRATEGY DISCUSSION WITH TEAM REGARDING SAME		
03/24/2015	DEC	REVIEW GILMAN DEMAND FOR MORE DOCUMENTS AND ASSIST IN RESPONSE	0.20 hrs.	35.00
03/25/2015	MAH	REVIEW	0.30 hrs.	19.50
03/25/2015	ADW	TELECONFERENCE WITH OPPOSING COUNSEL REGARDING DOCUMENTS PRODUCED DURING DISCOVERY	0.70 hrs.	105.00
03/27/2015	AVM	RECEIVE AND REVIEW	0.60 hrs.	105.00
		; EMAIL CORRESPONDENCE WITH TEAM DISCUSSING SAME		
03/27/2015	DEC	REVIEW EMAIL EXCHANGE ; REVIEW EMAIL EXCHANGE ON	0.30 hrs.	52.50
03/27/2015	ADW	PREPARE EMAIL CORRESPONDENCE TO OPPOSING COUNSEL REGARDING DOCUMENTS PRODUCED DURING DISCOVERY	0.20 hrs.	30.00
03/30/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
03/30/2015	WHW	REVIEW NOTICE FROM THE COURT REGARDING RECEIPT OF PAYMENT INTO THE REGISTRY OF THE COURT	0.10 hrs.	17.50
03/30/2015	WHW	REVIEW CORRESPONDENCE TO JUDGE GUTHRIDGE REGARDING SERVICE OF SUBPOENAS ON THIRD PARTY FOR PRODUCTION OF DOCUMENTS	0.10 hrs.	17.50
03/31/2015	APB	REVIEW NOTICE OF PAYMENT BY EZ CRUISE INTO COURT REGISTRY IN DISTRICT COURT LAWSUIT; REVIEW ; MEMORANDUM REGARDING	0.70 hrs.	122.50
03/31/2015	APB	REVIEW AND ANALYZE	5.30 hrs.	927.50
03/31/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
03/31/2015	WHW	REVIEW JOINT STATUS REPORT; PREPARE MEMO REGARDING	0.20 hrs.	35.00
03/31/2015	WHW	REVIEW MEMO REGARDING ; REVIEW ADDITIONAL REVISIONS TO THE STATUS	0.20 hrs.	35.00

03/31/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
03/31/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
03/31/2015	ADW	PREPARE	2.80 hrs.	420.00
03/31/2015	ADW	RESERACH	0.90 hrs.	135.00
				\$16,228.00

EXPENSES

03/11/2015	FEDERAL EXPRESS - DELIVERY SENT ON 02/26/15 TO JUDGE CLAY GUTHRIDGE	26.99
03/19/2015	ANTHONY P. BROWN - ONLINE CHARGE FOR GO TO MEETING	44.96
03/19/2015	COURT REPORTER'S CLEARINGHOUSE, INC. - SERVICE FEE FOR CERTIFIED TRANSCRIPT REGARDING DEPOSITION OF JASON HAYES	1,222.05
03/19/2015	COURT REPORTER'S CLEARINGHOUSE, INC. - SERVICE FEE FOR CERTIFIED TRANSCRIPT REGARDING DEPOSITION OF GEORGE TEMPLETON	695.35
03/26/2015	CONFIDENTIAL COMMUNICATIONS INTERNATIONAL, LTD; - SERVICE FEE FOR SUBPOENA REGARDING RJR ENTERPRISES	121.00
03/31/2015	COPYING	32.20
03/31/2015	POSTAGE	56.96
		\$2,199.51

Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>27.20 hrs</u>	<u>\$175.00 /hr</u>	<u>\$4,760.00</u>
<u>WAGNER, WILLIAM</u>	<u>6.20 hrs</u>	<u>\$175.00 /hr</u>	<u>\$1,085.00</u>
<u>HULSE</u>			
<u>COWEN, DAVID E.</u>	<u>13.20 hrs</u>	<u>\$175.00 /hr</u>	<u>\$2,310.00</u>
<u>MARBURGER, APRIL</u>	<u>29.80 hrs</u>	<u>\$175.00 /hr</u>	<u>\$5,215.00</u>
<u>HICKS, MELINDA</u>	<u>0.30 hrs</u>	<u>\$65.00 /hr</u>	<u>\$19.50</u>
<u>ARNOLD, MENDY S.</u>	<u>1.10 hrs</u>	<u>\$65.00 /hr</u>	<u>\$71.50</u>
<u>ATKINS, AMBER</u>	<u>1.50 hrs</u>	<u>\$65.00 /hr</u>	<u>\$97.50</u>
<u>DAWN</u>			
<u>SMITH, RACHELL C.</u>	<u>1.50 hrs</u>	<u>\$65.00 /hr</u>	<u>\$97.50</u>
<u>WRIGHT, AMANDA D.</u>	<u>15.50 hrs</u>	<u>\$150.00 /hr</u>	<u>\$2,325.00</u>
<u>ZEPEDA, JENNIFER M.</u>	<u>3.80 hrs</u>	<u>\$65.00 /hr</u>	<u>\$247.00</u>

Total professional services	\$16,228.00
Total expenses incurred	\$2,199.51

Total of new charges for this invoice		\$18,427.51
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PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

April 30, 2015

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 112602 WHW
Our file# 12432 14003
Billing through 04/30/2015

LIGHTHOUSE PARKING FMC COMPLAINT**PROFESSIONAL SERVICES**

04/01/2015	APB	REVIEW	0.40 hrs.	70.00
04/01/2015	APB	LETTER TO OPPOSING COUNSEL REGARDING JOINT STATUS REPORT AND DEFICIENCY IN PAYMENTS REQUIRED FOR LIGHTHOUSE PARKING UNDER COURT ORDER	0.20 hrs.	35.00
04/01/2015	APB	REVIEW CORRESPONDENCE FROM OPPOSING COUNSEL REGARDING JOINT STATUS REPORT	0.10 hrs.	17.50
04/01/2015	DEC	REVIEW DRAFT STATUS REPORT TO FEDERAL COURT AND RECOMMEND CHANGES; REVIEW EMAIL EXCHANGE WITH GILMAN ON DELINQUENT PAYMENTS; REVIEW	0.80 hrs.	140.00
04/01/2015	WHW	REVIEW AND ANALYZE	0.20 hrs.	35.00
04/01/2015	WHW	REVIEW FINAL DRAFT OF JOINT STATUS REPORT; CONFERENCE REGARDING SAME; REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING DETERMINATION OF PAYMENT DELINQUENCIES INTO THE REGISTRY OF THE COURT; REVIEW CORRESPONDENCE FROM BRENT ALLISON REGARDING SAME	0.50 hrs.	87.50
04/01/2015	ADW	COMPLETE ANALYSIS OF	1.50 hrs.	225.00
04/02/2015	APB	REVIEW CORRESPONDENCE FROM OPPOSING COUNSEL TRANSMITTING PAYMENT TO DISTRICT COURT REGISTRY; RESEARCH FILE DOCUMENTS REGARDING SAME	0.50 hrs.	87.50
04/02/2015	APB	REVISE PROPOSED JOINT STATUS REPORT; LETTER TO OPPOSING COUNSEL REGARDING SAME	0.40 hrs.	70.00
04/02/2015	APB	MEMORANDUM REGARDING	0.20 hrs.	35.00
04/02/2015	APB	REVIEW NOTICE FROM COURT CLERK REGARDING PAYMENT BY SYLVIA ROBLEDO INTO FEDERAL COURT REGISTRY PER AGREED	0.40 hrs.	70.00

		INTERIM ORDER; MEMORANDUM REGARDING SAME		
04/02/2015	AVM	CONTINUE TO PREPARE AND FINALIZE	1.20 hrs.	210.00
04/02/2015	AVM	CONTINUE TO PREPARE AND FINALIZE THE	1.00 hrs.	175.00
04/02/2015	WHW	REVIEW CORRESPONDENCE FROM BRENT ALLISON REGARDING PROOF OF PAYMENT OF FUNDS INTO THE REGISTRY OF THE COURT; REVIEW COPIES OF CHECKS FOR PAYMENT OF FEES INTO THE REGISTRY OF THE COURT; CONFERENCE REGARDING SAME	0.30 hrs.	52.50
04/02/2015	WHW	REVIEW NOTICE FROM THE DISTRICT COURT CLERK REGARDING DEPOSIT OF FUNDS INTO THE REGISTRY OF THE COURT BY SYLVIA ROBLEDO	0.10 hrs.	17.50
04/02/2015	WHW	REVIEW CORRESPONDENCE TO BRENT ALLISON REGARDING AGREED MODIFICATIONS TO JOINT STATUS REPORT; REVIEW CORRESPONDENCE FROM BRENT ALLISON REGARDING FILING OF MODIFIED STATUS REPORT; REVIEW FINAL REVISIONS TO JOINT STATUS REPORT	0.30 hrs.	52.50
04/03/2015	AVM	TELEPHONE CONFERENCES	1.30 hrs.	227.50
04/04/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
04/04/2015	WHW	REVIEW NOTICE FROM THE DISTRICT CLERK REGARDING TENDER OF FUNDS INTO THE REGISTRY OF THE COURT BY SYLVIA ROBLEDO	0.10 hrs.	17.50
04/06/2015	WHW	REVIEW NOTICE FROM JUDGE GUTHRIDGE THAT THE SUBPOENA FOR THIRD PARTY PRODUCTION OF DOCUMENTS HAD BEEN QUASHED; REVIEW	0.70 hrs.	122.50
		EXTENDED CONFERENCE REGARDING SAME; REVIEW MEMO REGARDING		
04/06/2015	WHW	REVIEW NOTICE FROM THE DISTRICT COURT CLERK REGARDING PAYMENT OF FUNDS INTO THE REGISTRY OF THE COURT BY SYLVIA ROBLEDO	0.10 hrs.	17.50
04/06/2015	WHW	REVIEW MEMO REGARDING	0.20 hrs.	35.00
		; REVIEW		
04/06/2015	WHW	REVIEW CORRESPONDENCE FROM FMC COURT CLERK REGARDING QUASHING OF SUBPOENA	0.10 hrs.	17.50
04/06/2015	CCK	REVIEW AND RECONCILIATION OF	5.30 hrs.	795.00

; EVALUATE

CONFERENCE.

; T/C

; PREPARE MEMO TO TONY BROWN
REGARDING SAME

04/07/2015	APB	REVIEW	1.90 hrs.	332.50
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; RESEARCH

04/07/2015	WHW	REVIEW	0.10 hrs.	17.50
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04/07/2015	WHW	REVIEW	0.10 hrs.	17.50
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04/07/2015	ADW	UPDATE	0.20 hrs.	30.00
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(.1); FOLLOW-UP WITH MARK
MURCHISON REGARDING

(.1)

04/08/2015	DEC	REVIEW	0.40 hrs.	70.00
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04/08/2015	WHW	REVIEW	0.20 hrs.	35.00
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04/08/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
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04/08/2015	WHW	REVIEW CORRESPONDENCE FROM MARK MURCHISON REGARDING	0.30 hrs.	52.50
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; REVIEW

04/08/2015	ADW	UPDATE	0.10 hrs.	15.00
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04/08/2015	ADW	PREPARE	0.50 hrs.	75.00
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(.4);

PREPARE

(.1)

04/09/2015	AVM	CONTINUE TO PREPARE	3.10 hrs.	542.50
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REVIEW

04/13/2015	APB	REVIEW	2.40 hrs.	420.00
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04/14/2015	CCK	IN-DEPTH ANALYSIS	3.00 hrs.	450.00
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; DETERMINE

; COMPLETE AND

FINALIZE

04/15/2015	APB	REVIEW	0.90 hrs.	157.50
04/15/2015	AVM	LETTER TO OPPOSING COUNSEL REGARDING DELINQUENT PAYMENTS ANALYZE	0.60 hrs.	105.00
04/15/2015	CCK	IN-DEPTH ANALYSIS ; DETERMINE ; COMPLETE AND FINALIZE	3.20 hrs.	480.00
04/16/2015	APB	CONTINUE WORK O	1.90 hrs.	332.50
04/17/2015	APB	REVIEW CORRESPONDENCE FROM COURT REGARDING PAYMENT INTO REGISTRY BY LIGHTHOUSE PARKING, INC.	0.20 hrs.	35.00
04/17/2015	APB	RESEARCH	2.90 hrs.	507.50
04/17/2015	WHW	REVIEW NOTICE FROM THE DISTRICT CLERK REGARDING DEPOSIT OF FUNDS INTO THE REGISTRY OF THE COURT BY LIGHTHOUSE PARKING	0.10 hrs.	17.50
04/21/2015	AVM	FACTUAL INVESTIGATION OF	2.30 hrs.	402.50
04/22/2015	AVM	EMAIL DISCUSSIONS WITH TEAM REGARDING	0.40 hrs.	70.00
04/22/2015	AVM	TELEPHONE CONVERSATIONS	0.90 hrs.	157.50
04/23/2015	APB	CONTINUE RESEARCH ON	2.40 hrs.	420.00
04/24/2015	AVM	PREPARE	5.40 hrs.	945.00
04/24/2015	DEC	; ANALYZE REVIEW LITIGATION TEAM ON ; EMAIL TO	0.40 hrs.	70.00
04/24/2015	WHW	REVIEW	0.80 hrs.	140.00
04/24/2015	WHW	; EXTENDED CONFERENCE REGARDING SAME REVIEW AND ANALYZE	0.80 hrs.	140.00
04/24/2015	ADW	REVIEW AND ANALYSIS OF	3.00 hrs.	450.00

04/26/2015	WHW	REVIEW MEMO REGARDING ; CONFERENCE REGARDING	0.20 hrs.	35.00
04/26/2015	WHW	REVIEW CORRESPONDENCE TO THE FMC SECRETARY REGARDING OPPOSITION TO EMERGENCY MOTION TO ENLARGE TIME	0.10 hrs.	17.50
04/27/2015	AVM	PREPARE ; ANALYZE	5.10 hrs.	892.50
04/27/2015	AVM	REVIEW	3.10 hrs.	542.50
04/27/2015	DEC	COORDINATE TEAM PROJECT TO BEGIN TO: ; COORDINATE	1.30 hrs.	227.50
04/27/2015	DEC	CONTINUAL WORK ON	2.00 hrs.	350.00
04/28/2015	APB	RESEARCH AND REVIEW	2.30 hrs.	402.50
04/28/2015	AVM	ANALYZE	2.10 hrs.	367.50
04/28/2015	AVM	ANALYZE ; EMAIL CORRESPONDENCE WITH TEAM REGARDING SAME	2.10 hrs.	367.50
04/28/2015	AVM	FACTUAL INVESTIGATION AND ANALYSIS OF	3.10 hrs.	542.50
04/28/2015	AVM	EMAIL WITH TEAM REGARDING STRATEGY REGARDING	0.60 hrs.	105.00
04/28/2015	WHW	REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING FILING OF MOTION TO ENLARGE TIME; REVIEW DRAFT MOTION	0.50 hrs.	87.50
04/28/2015	WHW	REVIEW AND ANALYZE	0.80 hrs.	140.00
04/28/2015	ADW	RECEIVE AND REVIEW	0.20 hrs.	30.00

04/28/2015	ADW	REVIEW AND ANALYSIS	4.50 hrs.	675.00
04/29/2015	APB	REVIEW AND ANALYZE	0.50 hrs.	87.50
04/29/2015	APB	MEMORANDUM TO LEGAL TEAM REGARDING	0.40 hrs.	70.00
		; LETTER TO MIKE MIERZWA AND		
		PORT STAFF REGARDING SAME		
04/29/2015	APB	REVIEW	1.60 hrs.	280.00
		; PREPARE		
		; LETTER		
		TO FMC SECRETARY REGARDING SAME		
04/29/2015	APB	REVIEW CORRESPONDENCE FROM PETER	0.10 hrs.	17.50
		SIMONS REGARDING		
04/29/2015	APB	TELEPHONE CALL WITH MIKE MIERZWA	0.20 hrs.	35.00
		REGARDING		
04/29/2015	APB	REVIEW DOCUMENTS REGARDING	0.20 hrs.	35.00
04/29/2015	AVM	CONTINUE TO ANALYZE	3.30 hrs.	577.50
		; CORRESPONDENCE WITH TEAM REGARDING		
04/29/2015	AVM	REVISE AND ANALYZE	2.20 hrs.	385.00
		; TELEPHONE		
		CONVERSATIONS WITH SAME		
04/29/2015	AVM	STRATEGY CONFERENE AND EMAIL	1.00 hrs.	175.00
		CORRESPONDENCE WITH TEAM REGARDING		
04/29/2015	AVM	ANALYZE	4.30 hrs.	752.50
04/29/2015	DEC	REVIEW ; WORK	2.40 hrs.	420.00
		ON		
04/29/2015	WHW	REVIEW MEMO REGARDING	0.20 hrs.	35.00
		; PREPARE MEMO REGARDING SAME		
04/29/2015	WHW	REVIEW	0.10 hrs.	17.50
04/29/2015	WHW	REVIEW CORRESPONDENCE FROM RACHEL	0.10 hrs.	17.50
		DICKON, FMC ASSISTANT SECRETARY,		

04/29/2015	WHW	REGARDING REQUIREMENTS FOR FILING RESPONSIVE PLEADINGS WITH THE FMC REVIEW CORRESPONDENCE FROM MARK MURCHISON REGARDING	0.90 hrs.	157.50
		REVIEW ; REVIEW CORRESPONDENCE FROM PETER SIMONS REGARDING		
		REVIEW ; PREPARE MEMO REGARDING		
		EXTENDED CONFERENCE REGARDING		
04/29/2015	WHW	REVIEW CORRESPONDENCE FROM ALLISON FINE REGARDING FILING OF OPPOSED MOTION TO ENLARGE TIME; REVIEW OPPOSED MOTION; CONFERENCE REGARDING	0.60 hrs.	105.00
04/29/2015	WHW	REVIEW	0.10 hrs.	17.50
04/29/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
04/29/2015	WHW	REVIEW CORRESPONDENCE TO MARK MURCHISON REGARDING	0.10 hrs.	17.50
04/29/2015	WHW	REVIEW	0.20 hrs.	35.00
04/29/2015	WHW	; CONFERENCE REGARDING SAME REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING OPPOSITION TO MOTION TO ENLARGE TIME; REVIEW MOTION; REVIEW CORRESPONDENCE TO PORT STAFF REGARDING	0.40 hrs.	70.00
04/29/2015	WHW	REVIEW	0.40 hrs.	70.00
04/29/2015	ADW	; REVIEW PREPARE MEMO REGARDING SAME REVIEW	4.80 hrs.	720.00
04/29/2015	ADW	REVIEW AND ANALYSIS OF	3.00 hrs.	450.00
04/30/2015	APB	CONTINUE RESEARCH AND PREPARATION OF	3.60 hrs.	630.00
04/30/2015	AVM	; MEMORANDUM REGARDING SAME REVISE	0.90 hrs.	157.50
04/30/2015	AVM	CONFERENCE	0.70 hrs.	122.50

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04/30/2015	AVM	STRATEGY CONFERENCES WITH TEAM REGARDING	0.70 hrs.	122.50
04/30/2015	AVM	REVISE AND FINALIZE	2.10 hrs.	367.50
04/30/2015	AVM	ANALYZE ; STRATEGIZE REGARDING	0.70 hrs.	122.50
04/30/2015	AVM	ANALYZE	1.90 hrs.	332.50
04/30/2015	DEC	CONTINUE WORK ON	3.60 hrs.	630.00
		; REVIEW		
		; EMAIL TO PETER SIMON		
04/30/2015	WHW	REVIEW	0.40 hrs.	70.00
04/30/2015	WHW	REVIEW	0.40 hrs.	70.00
04/30/2015	WHW	REVIEW	0.30 hrs.	52.50
04/30/2015	WHW	REVIEW CORRESPONDENCE TO PETER SIMONS REGARDING	0.10 hrs.	17.50
04/30/2015	WHW	CONFERENCE REGARDING	0.20 hrs.	35.00
04/30/2015	WHW	REVIEW CORRESPONDENCE FROM BERNIE CURRAN REGARDING	0.40 hrs.	70.00
		; EXTENDED		
		CONFERENCE REGARDING		
04/30/2015	WHW	REVIEW ; REVIEW	0.30 hrs.	52.50
		CORRESPONDENCE TO SECRETARY GREGORY REGARDING FILING OF SAME WITH THE FMC		
04/30/2015	ADA	TRAVEL TO/FROM STAFFORD TO NOTARIZE DOCUMENT FROM COLONY LIMO	3.50 hrs.	227.50
04/30/2015	ADA	CALL	4.00 hrs.	260.00
04/30/2015	ADW	REVIEW AND ANALYSIS	5.00 hrs.	750.00

\$22,572.50

EXPENSES

04/16/2015	ANTHONY P. BROWN - ONLINE MEETING CHARGE ON 04/09/15	44.96
04/21/2015	FEDERAL EXPRESS - DELIVERY SENT ON 03/30/15 TO FEDERAL MARITIME COMMISSION	25.62
04/29/2015	PACER SERVICE CENTER - SERVICE FEE FOR COURT COPIES	11.20
04/29/2015	COMPTON & WENDLER, P.C. - SERVICE FEE FOR CONSULTATION THROUGH TELECONFERENCE ON 02/06/15	49.36
04/30/2015	COPYING	9.80
04/30/2015	POSTAGE	0.48
04/30/2015	SCANNING	1.36
		\$142.78

Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>23.70 hrs</u>	<u>\$175.00 /hr</u>	<u>\$4,147.50</u>
<u>WAGNER, WILLIAM</u>	<u>12.10 hrs</u>	<u>\$175.00 /hr</u>	<u>\$2,117.50</u>
<u>HULSE</u>			
<u>COWEN, DAVID E.</u>	<u>10.90 hrs</u>	<u>\$175.00 /hr</u>	<u>\$1,907.50</u>
<u>MARBURGER, APRIL</u>	<u>50.10 hrs</u>	<u>\$175.00 /hr</u>	<u>\$8,767.50</u>
<u>ATKINS, AMBER</u>	<u>7.50 hrs</u>	<u>\$65.00 /hr</u>	<u>\$487.50</u>
<u>DAWN</u>			
<u>KING, CHRIS C.</u>	<u>11.50 hrs</u>	<u>\$150.00 /hr</u>	<u>\$1,725.00</u>
<u>WRIGHT, AMANDA D.</u>	<u>22.80 hrs</u>	<u>\$150.00 /hr</u>	<u>\$3,420.00</u>

Total professional services	\$22,572.50
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Total expenses incurred	\$142.78
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Total of new charges for this invoice		\$22,715.28
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PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

May 31, 2015

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 112687 WHW
Our file# 12432 14003
Billing through 05/31/2015

LIGHTHOUSE PARKING FMC COMPLAINT**PROFESSIONAL SERVICES**

05/01/2015	APB	REVIEW NOTICE FROM COURT REGARDING FILING OF DEPOSIT BY EZ CRUISE; MEMORANDUM REGARDING SAME	0.20 hrs.	35.00
05/01/2015	AVM	RECEIVE AND REVIEW ; EMAIL CORRESPONDENCE WITH TEAM REGARDING SAME	2.40 hrs.	420.00
05/01/2015	AVM	RECEIVE AND REVIEW	1.30 hrs.	227.50
05/01/2015	WHW	REVIEW NOTICE FROM THE DISTRICT COURT CLERK REGARDING DEPOSIT OF FUNDS INTO THE REGISTRY OF THE COURT BY SANTA FE DISCOUNT CRUISE PARKING	0.10 hrs.	17.50
05/01/2015	WHW	REVIEW CORRESPONDENCE FROM ALLISON FINE REGARDING FILING OF PROPOSED FINDINGS OF FACT, BRIEF, AND APPENDIX WITH THE FMC; REVIEW AND ANALYZE SAME	3.20 hrs.	560.00
05/01/2015	ADW	RECEIVE AND REVIEW	3.40 hrs.	510.00
05/02/2015	APB	INITIAL REVIEW AND ANALYSIS OF	2.40 hrs.	420.00
05/04/2015	APB	CONTINUE REVIEW AND RESEARCH OF	3.60 hrs.	630.00
05/04/2015	AVM	REVIEW	2.60 hrs.	455.00
05/04/2015	DEC	REVIEW	3.60 hrs.	630.00
05/04/2015	DEC	COORDINATE	0.50 hrs.	87.50
05/04/2015	WHW	ANALYZE AND EVALUATE ; REVIEW	2.60 hrs.	455.00
05/04/2015	ADA	REVIEW	4.00 hrs.	260.00

05/04/2015	ADW	CHECK IDENTIFYING ;	6.20 hrs.	930.00
05/04/2015	ADW	FOLLOW-UP WITH OPPOSING COUNSEL REGARDING STATUS OF APPENDIX DOCUMENTS TO BE RECEIVED	0.20 hrs.	30.00
05/04/2015	ADW	PREPARE	1.60 hrs.	240.00
05/05/2015	APB	CONTINUE RESEARCH ON	2.70 hrs.	472.50
05/05/2015	AVM	EMAIL CORRESPONDENCE WITH TEAM REGARDING	0.20 hrs.	35.00
05/05/2015	WHW	REVIEW MEMO REGARDING	0.20 hrs.	35.00
05/05/2015	ADW	CHECK IDENTIFYING ;	7.90 hrs.	1,185.00
05/06/2015	APB	REVIEW CORRESPONDENCE FROM MIKE MIERZWA AND CHIEF PIERCE REGARDING	0.20 hrs.	35.00
05/06/2015	APB	REVIEW AND ANALYZE	0.50 hrs.	87.50
05/06/2015	APB	MEMORANDUM REGARDING SAME CONTINUE RESEARCH REGARDING ;	3.30 hrs.	577.50
05/06/2015	AVM	STRATEGY CONFERENCE REGARDING	0.60 hrs.	105.00
05/06/2015	AVM	CONTINUE TO EVALUATE	1.70 hrs.	297.50
05/06/2015	AVM	CONFERENCE WITH TEAM REGARDING	0.40 hrs.	70.00
05/06/2015	AVM	FACTUAL INVESTIGATION AND ANALYSIS OF	0.90 hrs.	157.50
05/06/2015	AVM	EMAIL CORRESPONDENCE WITH TEAM REGARDING	0.80 hrs.	140.00
05/06/2015	AVM	TELECONFERENCES	0.70 hrs.	122.50
05/06/2015	MAH	STRATEGY CONFERENCE REGARDING	0.50 hrs.	32.50
05/06/2015	MAH	DETAILED REVIEW AND ANALYSIS OF	0.70 hrs.	45.50

05/06/2015	GER	INITIAL REVIEW AND ANALYSIS OF	1.50 hrs.	97.50
05/06/2015	ADA	PERFORM DETAILED REVIEW OF	0.40 hrs.	26.00
05/06/2015	ADW	CHECK	8.00 hrs.	1,200.00
05/07/2015	APB	CONTINUE LEGAL RESEARCH ON	2.90 hrs.	507.50
05/07/2015	AVM	ANALYZE IN PREPARATION OF	2.70 hrs.	472.50
05/07/2015	AVM	CORRESPONDENCE WITH TEAM REGARDING	0.60 hrs.	105.00
05/07/2015	CLC	DETAILED REVIEW AND ANALYSIS OF	0.50 hrs.	32.50
05/07/2015	GER	CONTINUE REVIEW AND ANALYSIS OF	1.70 hrs.	110.50
05/07/2015	ADW	CHECK IDENTIFYING	8.00 hrs.	1,200.00
05/08/2015	APB	CONTINUE RESEARCH ON	3.60 hrs.	630.00
05/08/2015	AVM	FACTUAL INVESTIGATION REGARDING	1.90 hrs.	332.50
05/08/2015	ADW	CHECK IDENTIFYING	8.00 hrs.	1,200.00

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05/08/2015	MSA	DETAILED REVIEW AND ANALYSIS OF	3.20 hrs.	208.00
05/10/2015	AVM	EMAIL CORRESPONDENCE AND STRATEGY CONFERENCES WITH TEAM REGARDING	0.60 hrs.	105.00
05/11/2015	APB	LETTER TO MIKE MIERZWA AND PORT STAFF REGARDING	0.20 hrs.	35.00
05/11/2015	APB	CONTINUE RESEARCH ON	2.70 hrs.	472.50
05/11/2015	CLC	DETAILED REVIEW AND ANALYSIS OF	1.00 hrs.	65.00
05/11/2015	ADW	CHECK ; IDENTIFYING	8.00 hrs.	1,200.00
05/11/2015	MSA	DETAILED REVIEW AND ANALYSIS OF	5.00 hrs.	325.00
05/12/2015	APB	CONTINUE RESEARCH ON	3.70 hrs.	647.50
05/12/2015	MAH	DETAILED REVIEW AND ANALYSIS	1.50 hrs.	97.50
05/12/2015	RCS	DETAILED REVIEW AND ANALYSIS OF	0.80 hrs.	52.00
05/12/2015	ADW	CHECK ACCURACY OF ; IDENTIFYING	6.00 hrs.	900.00

05/13/2015	APB	REVIEW ORDER FROM ADMINISTRATIVE LAW JUDGE REQUIRING COMPLAINANTS TO SUPPLEMENT THEIR FINDINGS OF FACT TO CITE EACH FACT LISTED TO THE APPENDIX; LETTER ACKNOWLEDGING RECEIPT OF THE ORDER; MEMORANDUM TO LEGAL TEAM REGARDING ORDER	0.50 hrs.	87.50
05/13/2015	APB	REVIEW	1.70 hrs.	297.50
05/13/2015	AVM	EMAIL CORRESPONDENCE AND STRATEGY DISCUSSIONS WITH TEAM REGARDING	0.40 hrs.	70.00
05/13/2015	DEC	BEGIN WORK ON	3.90 hrs.	682.50
05/13/2015	MAH	CONTINUE DETAILED REVIEW AND ANALYSIS OF	3.00 hrs.	195.00
05/13/2015	RCS	REVIEW AND COMPARE	0.40 hrs.	26.00
05/13/2015	RCS	REVIEW AND COMPARE	0.30 hrs.	19.50
05/13/2015	ADA	FOLLOW UP	0.50 hrs.	32.50
05/13/2015	ADW	CHECK IDENTIFYING	7.40 hrs.	1,110.00
05/14/2015	APB	REVIEW CORRESPONDENCE	0.20 hrs.	35.00
05/14/2015	AVM	EMAIL CORRESPONDENCE AND STRATEGY DISCUSSIONS WITH TEAM REGARDING	0.20 hrs.	35.00

05/14/2015	MAH	CONTINUE DETAILED REVIEW OF	1.00 hrs.	65.00
05/14/2015	MAH	DETAILED REVIEW AND ANALYSIS OF	2.00 hrs.	130.00
05/14/2015	WHW	REVIEW ; CONFERENCE REGARDING	1.80 hrs.	315.00
05/14/2015	ADW	PREPARE	6.60 hrs.	990.00
05/15/2015	APB	ASSIST	3.90 hrs.	682.50
05/15/2015	APB	REVIEW AND ANALYSIS OF ; MEMORANDUM TO LEGAL TEAM REGARDING SAME; LETTER TO MIKE MIERZWA AND PORT STAFF REGARDING SAME	1.60 hrs.	280.00
05/15/2015	APB	CONTINUE RESEARCH REGARDING	1.90 hrs.	332.50
05/15/2015	AVM	EMAIL CORRESPONDENCE AND STRATEGY DISCUSSIONS WITH TEAM REGARDING	0.90 hrs.	157.50
05/15/2015	AVM	DRAFT ; PREPARE	3.10 hrs.	542.50
05/15/2015	AVM	STRATEGY CONFERENCE AND REVIEW OF ANALYZE ;	4.30 hrs.	752.50
05/15/2015	DEC	CONTINUE WORK ON . AND PREPARATION OF	4.00 hrs.	700.00
05/15/2015	WHW	EXTENDED MEETING TO ADDRESS	2.50 hrs.	437.50
05/15/2015	WHW	REVIEW ; CONFERENCE REGARDING	0.40 hrs.	70.00

Date	Initials	Description	Hours	Amount
05/15/2015	WHW	REVIEW	0.80 hrs.	140.00
05/15/2015	ADW	PREPARE	8.00 hrs.	1,200.00
05/16/2015	WHW	REVIEW CORRESPONDENCE TO PORT STAFF REGARDING	0.10 hrs.	17.50
05/18/2015	APB	REVIEW	0.50 hrs.	87.50
05/18/2015	AVM	; MEMORANDUM TO LEGAL TEAM REGARDING EMAIL CORRESPONDENCE AND STRATEGY DISCUSSIONS WITH TEAM REGARDING	0.70 hrs.	122.50
05/18/2015	DEC	CONTINUE WORK ON	3.00 hrs.	525.00
05/18/2015	WHW	REVIEW	0.60 hrs.	105.00
05/18/2015	WHW	REVIEW ORDER DISMISSING MOTION FOR LEASE TO EXTEND TIME FILED BY COMPLAINANTS	0.10 hrs.	17.50
05/18/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
05/18/2015	ADW	PREPARE	8.00 hrs.	1,200.00
05/19/2015	APB	REVIEW CORRESPONDENCE REGARDING	0.30 hrs.	52.50
05/19/2015	APB	; LETTER REGARDING SAME PREPARE FOR AND PARTICIPATE	0.50 hrs.	87.50
05/19/2015	APB	ASSIST	0.40 hrs.	70.00
05/19/2015	APB	CONTINUE RESEARCH AND FORMULATION OF ARGUMENTS ON	2.90 hrs.	507.50
05/19/2015	AVM	EMAIL CORRESPONDENCE AND STRATEGY DISCUSSIONS WITH TEAM REGARDING	0.90 hrs.	157.50
05/19/2015	AVM	PREPARE ; EMAIL CORRESPONDENCE WITH TEAM REGARDING SAME	2.10 hrs.	367.50
05/19/2015	DEC	CONTINUE WORK ON	5.00 hrs.	875.00

05/19/2015	DEC	CONFERENCE WITH EXPERT; WORK ON	1.70 hrs.	297.50
05/19/2015	ADA	EXTRACT/ORGANIZE	4.00 hrs.	260.00
05/19/2015	ADW	CONFERENCE CALL WITH EXPERT REGARDING AFFIDAVIT	0.50 hrs.	75.00
05/19/2015	ADW	CONTINUE PREPARATION OF	2.00 hrs.	300.00
05/20/2015	APB	CONTINUE WORK ON	2.90 hrs.	507.50
05/20/2015	AVM	PREPARE	4.20 hrs.	735.00
05/20/2015	AVM	FACTUAL INVESTIGATION AND REVIEW OF	3.50 hrs.	612.50
05/20/2015	AVM	EMAIL CORRESPONDENCE AND STRATEGY DISCUSSIONS WITH TEAM REGARDING	0.30 hrs.	52.50
05/20/2015	AVM	REVIEW	2.10 hrs.	367.50
05/20/2015	DEC	CONTINUE WORK ON	4.80 hrs.	840.00
05/20/2015	DEC	WITH EXPERT REVIEW	4.00 hrs.	700.00
05/20/2015	DEC	WORK ON	0.00 hrs.	N/C
05/20/2015	MAH	DETAILED REVIEW AND ANALYSIS OF	0.70 hrs.	45.50
05/20/2015	ADW	PREPARE	7.50 hrs.	1,125.00
05/21/2015	AVM	REVIEW	4.20 hrs.	735.00

; REVIEW

05/21/2015	DEC	WORK ON	6.90 hrs.	1,207.50
05/21/2015	WHW	REVIEW MEMO REGARDING	0.20 hrs.	35.00
		; CONFERENCE		
		REGARDING SAME		
05/21/2015	ADW	PREPARE	6.70 hrs.	1,005.00
05/22/2015	AVM	EMAIL CORRESPONDENCE AND STRATEGY CONFERENCES WITH TEAM REGARDING	1.00 hrs.	175.00
05/22/2015	DEC	CONTINUE WORK ON	5.90 hrs.	1,032.50
05/22/2015	DEC	CONTINUE WORKING ON	2.00 hrs.	350.00
05/22/2015	WHW	REVIEW AND ANALYZE	2.20 hrs.	385.00
		; REVIEW		
05/22/2015	WHW	ANALYZE AND EVALUATE	2.20 hrs.	385.00
		; REVIEW		
05/22/2015	ADW	PREPARE	1.50 hrs.	225.00
05/22/2015	ADW	REVIEW	6.60 hrs.	990.00
05/23/2015	AVM	PREPARE	1.70 hrs.	297.50
		; EMAIL CORRESPONDENCE WITH TEAM REGARDING SAME		
05/24/2015	DEC	CONTINUE WORK ON	7.00 hrs.	1,225.00
05/25/2015	APB	DETAILED REVIEW AND ANALYSIS OF	3.40 hrs.	595.00
05/25/2015	APB	MEMORANDUM REGARDING	0.20 hrs.	35.00
05/25/2015	AVM	PREPARE	5.70 hrs.	997.50
		; REVIEW AND PREPARE		
05/25/2015	DEC	CONTINUE WORK ON	8.00 hrs.	1,400.00
05/25/2015	WHW	REVIEW	0.90 hrs.	157.50

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05/25/2015	WHW	REVIEW AND ANALYZE	0.30 hrs.	52.50
05/25/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.	17.50
05/25/2015	ADW	INSERT	6.00 hrs.	900.00
05/26/2015	APB	DRAFT	1.30 hrs.	227.50
		; MEMORANDUM TO		
		LEGAL TEAM REGARDING SAME		
05/26/2015	APB	PREPARE FOR AND ATTEND BOARD OF	1.90 hrs.	332.50
		TRUSTEES MEETING TO DISCUSS LITIGATION		
		STATUS AND PENDING ISSUES		
05/26/2015	APB	CONTINUE RESEARCH ON	2.80 hrs.	490.00
05/26/2015	APB	TELEPHONE CONFERENCE	0.30 hrs.	52.50
05/26/2015	AVM	ANALYZE	5.10 hrs.	892.50
		; PREPARE		
		; REVIEW		
05/26/2015	AVM	EMAIL CORRESPONDENCE AND STRATEGY	0.90 hrs.	157.50
		CONFERENCES WITH TEAM REGARDING		
05/26/2015	AVM	FINALIZE REVIEW	0.80 hrs.	140.00
05/26/2015	WHW	REVIEW NOTICE FROM THE DISTRICT CLERK	0.10 hrs.	17.50
		REGARDING PAYMENT OF FUNDS BY		
		LIGHTHOUSE PARKING INTO THE REGISTRY OF		
		THE COURT		
05/26/2015	WHW	REVIEW	0.10 hrs.	17.50
05/26/2015	ADW	CONTINUE	8.00 hrs.	1,200.00
05/27/2015	APB	CONTINUE WORK ON	7.60 hrs.	1,330.00
05/27/2015	AVM	CONTINUE TO ANALYZE	6.30 hrs.	1,102.50
05/27/2015	AVM	CONTINUE TO ANALYZE	3.80 hrs.	665.00
		EVALUATE		
		; PREPARE		
05/27/2015	DEC	CONTINUE WORK ON	3.90 hrs.	682.50
05/27/2015	WHW	REVIEW AND ANALYZE	2.40 hrs.	420.00

; REVIEW

05/27/2015	WHW	REVIEW AND ANALYZE , AND REVIEW	2.40 hrs.	420.00
05/27/2015	WHW	REVIEW AND ANALYZE	1.00 hrs.	175.00
05/27/2015	ADW	COMPLETE	6.00 hrs.	900.00
05/28/2015	APB	TELEPHONE CALL	0.30 hrs.	52.50
05/28/2015	APB	CONTINUE WORK ON	3.40 hrs.	595.00
05/28/2015	APB	ATTEND TEAM MEETING REGARDING	1.90 hrs.	332.50
05/28/2015	APB	CONTINUE RESEARCH ON	2.30 hrs.	402.50
05/28/2015	AVM	EMAIL CORRESPONDENCE AND TELECONFERENCES WITH EXPERT AND TEAM REGARDING	0.80 hrs.	140.00
05/28/2015	AVM	STRATEGY CONFERENCE AND REVIEW OF	2.00 hrs.	350.00
05/28/2015	AVM	PREPARE	4.40 hrs.	770.00
05/28/2015	DEC	ANALYZE ; CONTINUE WORK ON	5.00 hrs.	875.00
05/28/2015	WHW	REVIEW ; REVIEW AND REVISE PREPARE MEMO REGARDING ; MEMO REGARDING SAME ; REVIEW	0.50 hrs.	87.50
05/28/2015	WHW	EXTENDED CONFERENCE REGARDING	0.40 hrs.	70.00
05/28/2015	WHW	EXTENDED MEETING TO DISCUSS	2.00 hrs.	350.00
05/28/2015	WHW	REVIEW ; REVIEW	0.50 hrs.	87.50
05/28/2015	WHW	REVIEW MEMO REGARDING ; PREPARE MEMO REGARDING ; REVIEW ; PREPARE MEMO REGARDING	0.60 hrs.	105.00
05/28/2015	ADW	TEAM MEETING TO REVIEW AND DISCUSS	1.90 hrs.	285.00

05/28/2015	ADW	PREPARE	6.00 hrs.	900.00
05/29/2015	APB	CONFERENCE CALL	0.80 hrs.	140.00
05/29/2015	APB	CONTINUE PREPARATION OF	2.80 hrs.	490.00
05/29/2015	APB	CONTINUE RESEARCH AND WORK ON	4.90 hrs.	857.50
05/29/2015	AVM	PREPARE RESPONSE TO	3.40 hrs.	595.00
; ANALYSIS REGARDING				
05/29/2015	AVM	PREPARE RESPONSE	6.20 hrs.	1,085.00
; DETERMINE				
05/29/2015	AVM	EMAIL CORRESPONDENCE AND STRATEGY CONFERENCES WITH TEAM REGARDING	0.70 hrs.	122.50
05/29/2015	DEC	CONTINUE WORK ON	6.10 hrs.	1,067.50
05/29/2015	GGW	ASSIST WITH PREPARATION OF	2.00 hrs.	130.00
05/29/2015	ADA	COLLECT/PREPARE	4.00 hrs.	260.00
05/29/2015	ADW	CONFERENCE CALL	0.50 hrs.	75.00
05/29/2015	ADW	CONTINUE PREPARATION OF	7.50 hrs.	1,125.00
05/29/2015	JMZ	RETRIEVE	0.40 hrs.	26.00
05/30/2015	APB	CONTINUE RESEARCH AND WORK ON	4.90 hrs.	857.50
05/30/2015	AVM	CONTINUE TO PREPARE	3.20 hrs.	560.00
05/30/2015	AVM	EMAIL CORRESPONDENCE AND STRATEGY CONFERENCES WITH TEAM REGARDING	1.10 hrs.	192.50
05/30/2015	DEC	CONTINUE WORK ON	3.70 hrs.	647.50
05/30/2015	GGW	ASSIST WITH PREPARATION OF	4.00 hrs.	260.00

05/30/2015	RCS	ASSIST WITH COLLECTION, PREPARATION AND COMPILATION OF	1.20 hrs.	78.00
05/30/2015	RCS	ASSIST WITH COLLECTION, PREPARATION AND COMPILATION OF	1.80 hrs.	117.00
05/30/2015	ADA	ASSIST WITH COLLECTION/PREPARATION/COMPILATION OF	4.00 hrs.	260.00
05/30/2015	ADW	COORDINATE	1.50 hrs.	225.00
05/30/2015	ADW	CONTINUE PREPARATION OF	8.00 hrs.	1,200.00
05/30/2015	JMZ	ASSIST WITH COLLECTION/PREPARATION/COMPILATION OF	4.30 hrs.	279.50
05/31/2015	APB	RESEARCH	5.80 hrs.	1,015.00
05/31/2015	APB	CONTINUE WORK ON	2.90 hrs.	507.50
05/31/2015	AVM	CONTINUE TO PREPARE AND DRAFT	5.10 hrs.	892.50
05/31/2015	AVM	EMAIL CORRESPONDENCE AND TELECONFERENCES WITH TEAM REGARDING	1.20 hrs.	210.00
05/31/2015	DEC	CONTINUE WORK ON	3.20 hrs.	560.00
05/31/2015	GGW	ASSIST WITH PREPARATION OF	4.00 hrs.	260.00
05/31/2015	RCS	CONTINUED ASSISTANCE WITH COLLECTION, PREPARATION AND COMPILATION OF	1.40 hrs.	91.00
05/31/2015	RCS	CONTINUE ASSISTANCE WITH PREPARATION AND COMPILATION OF	1.10 hrs.	71.50
05/31/2015	RCS	CONTINUE ASSISTANCE WITH PREPARATION	1.30 hrs.	84.50

05/31/2015	ADA	ASSIST WITH COLLECTION/PREPARATION/COMPILATION OF	5.00 hrs.	325.00
05/31/2015	ADW	COMPLETE PREPARATION OF	6.00 hrs.	900.00
05/31/2015	ADW	COORDINATE	0.80 hrs.	120.00
05/31/2015	JMZ	ASSIST WITH COLLECTION/PREPARATION/COMPILATION OF	5.00 hrs.	325.00
				\$81,680.50

EXPENSES

05/14/2015	AMBER ATKINS - TRAVEL ON 04/30/15 TO STAFFORD, TX AT COLONY LIMO TO NOTARIZE AFFIDAVIT	74.75
05/21/2015	ANTHONY P. BROWN - GO TO MEETING CHARGE	44.96
05/26/2015	SHYKATZ - LUNCH MEETING ON 05/26/15	28.01
05/28/2015	SHYKATZ - LUNCH MEETING ON 05/28/15	74.82
05/31/2015	COPYING	111.00
05/31/2015	POSTAGE	66.80
05/31/2015	SCANNING	16.66
		\$417.00

Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>90.80 hrs</u>	<u>\$175.00 /hr</u>	<u>\$15,890.00</u>
<u>WAGNER, WILLIAM</u>	<u>28.40 hrs</u>	<u>\$175.00 /hr</u>	<u>\$4,970.00</u>
<u>HULSE</u>			
<u>COWEN, DAVID E.</u>	<u>82.20 hrs</u>	<u>\$175.00 /hr</u>	<u>\$14,385.00</u>
<u>MARBURGER, APRIL</u>	<u>97.70 hrs</u>	<u>\$175.00 /hr</u>	<u>\$17,097.50</u>
<u>WILLIAMS, GINA G.</u>	<u>10.00 hrs</u>	<u>\$65.00 /hr</u>	<u>\$650.00</u>
<u>CONSTANTINE,</u>	<u>1.50 hrs</u>	<u>\$65.00 /hr</u>	<u>\$97.50</u>
<u>CONNIE L.</u>			
<u>HICKS, MELINDA</u>	<u>9.40 hrs</u>	<u>\$65.00 /hr</u>	<u>\$611.00</u>
<u>ARNOLD, MENDY S.</u>	<u>8.20 hrs</u>	<u>\$65.00 /hr</u>	<u>\$533.00</u>
<u>ATKINS, AMBER</u>	<u>21.90 hrs</u>	<u>\$65.00 /hr</u>	<u>\$1,423.50</u>
<u>DAWN</u>			
<u>ROBLEDO, GLORIA</u>	<u>3.20 hrs</u>	<u>\$65.00 /hr</u>	<u>\$208.00</u>
<u>SMITH, RACHELL C.</u>	<u>8.30 hrs</u>	<u>\$65.00 /hr</u>	<u>\$539.50</u>
<u>WRIGHT, AMANDA D.</u>	<u>164.30 hrs</u>	<u>\$150.00 /hr</u>	<u>\$24,645.00</u>
<u>ZEPEDA, JENNIFER M.</u>	<u>9.70 hrs</u>	<u>\$65.00 /hr</u>	<u>\$630.50</u>

Total professional services	\$81,680.50
Total expenses incurred	\$417.00

Total of new charges for this invoice	\$82,097.50
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PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

June 30, 2015

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 113164 WHW
Our file# 12432 14003
Billing through 06/30/2015

LIGHTHOUSE PARKING FMC COMPLAINT

PROFESSIONAL SERVICES

06/01/2015	APB	CONTINUE PREPARATION	9.70 hrs.	1,697.50
06/01/2015	AVM	FINALIZE	11.90 hrs.	2,082.50
06/01/2015	GGW	ASSIST WITH PREPARATION	4.00 hrs.	260.00
06/01/2015	MAH	ASSIST WITH FINALIZATION OF	1.50 hrs.	97.50
06/01/2015	WHW	REVIEW CORRESPONDENCE TO THE FMC SECRETARY REGARDING FILING OF BRIEF IN RESPONSE AND PROPOSED FINDINGS OF FACT; REVIEW CORRESPONDENCE TO PORT STAFF REGARDING ; REVIEW	0.70 hrs.	122.50
06/01/2015	JAH	PREPARE	1.00 hrs.	150.00
06/01/2015	ADA	ASSIST WITH PREPARATION/COMPILATION	5.00 hrs.	325.00
06/01/2015	ADW	FINALIZE	5.00 hrs.	750.00
06/01/2015	ADW	FINALIZE	9.50 hrs.	1,425.00
06/01/2015	ADW	PREPARE	0.80 hrs.	120.00
06/01/2015	JMZ	ASSIST WITH COLLECTION/PREPARATION/COMPILATION	5.00 hrs.	325.00
06/02/2015	APB	MEMORANDUM REGARDING		
06/02/2015	APB	LETTER TO FMC AND COUNSEL REGARDING	0.20 hrs.	35.00

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		APPENDIX DOCUMENTS				
06/02/2015	APB	REVISE AND SUPPLEMENT PROPOSED JOINT STATUS REPORT TO BE FILED IN FEDERAL DISTRICT COURT CASE; LETTER TO OPPOSING COUNSEL REGARDING SAME	0.50 hrs.		87.50	
06/02/2015	APB	REVIEW CORRESPONDENCE REGARDING PAYMENT BY 81ST DOLPHIN PARKING INTO FEDERAL COURT REGISTRY; MEMORANDUM REGARDING SAME	0.30 hrs.		52.50	
06/02/2015	APB	REVIEW CORRESPONDENCE FROM OPPOSING COUNSEL REGARDING PROPOSED FEDERAL COURT JOINT STATUS REPORT; REVISE AND SUPPLEMENT DRAFT REPORT; MEMORANDUM REGARDING FILING JOINT STATUS REPORT	0.40 hrs.		70.00	
06/02/2015	DEC	REVIEW	0.80 hrs.		140.00	
06/02/2015	ADW	UPLOAD APPENDIX DOCUMENTS TO DROPBOX FOR IMMEDIATE ACCESS BY FMC AND OPPOSING COUNSEL (104 DOCUMENTS)	1.50 hrs.		225.00	
06/02/2015	ADW	PREPARE STATUS REPORT FOR FEDERAL COURT CASE	0.70 hrs.		105.00	
06/03/2015	AVM	EMAIL CORRESPONDENCE WITH TEAM REGARDING	0.80 hrs.		140.00	
06/04/2015	ADW	EMAIL WORD VERSIONS OF 6/1/2015 FILINGS TO APB FOR FORWARDING TO FMC	0.10 hrs.		15.00	
06/05/2015	APB	TELEPHONE CALL WITH JUANITA HUTCHINS REGARDING PAGINATION ISSUES WITH PLEADINGS AND APPENDIX AND REQUESTING PRODUCTION IN MODIFIED FORMAT; PREPARE MEMO REGARDING SAME	0.30 hrs.		52.50	
06/05/2015	APB	REVIEW RESPONDENTS' BRIEF, RESPONDENTS' PROPOSED FINDINGS OF FACT AND RESPONDENTS' RESPONSE TO COMPLAINANTS' PROPOSED FINDINGS OF FACT REGARDING FORMATS TRANSLATION ISSUES; LETTER TO JUANITA HUTCHINS AT FMC REGARDING SAME	0.40 hrs.		70.00	
06/05/2015	WHW	REVIEW CORRESPONDENCE TO THE FMC REGARDING PROPOSED FINDINGS OF FACT	0.10 hrs.		17.50	
06/08/2015	AVM	RECEIVE AND REVIEW EMAIL CORRESPONDENCE REGARDING	0.60 hrs.		105.00	
06/08/2015	ADW	REVIEW	1.00 hrs.		150.00	
06/09/2015	APB	ASSIST WITH	2.70 hrs.		472.50	
06/09/2015	AVM	REVIEW AND ANALYZE	3.30 hrs.		577.50	
06/09/2015	WHW	EXTENDED CONFERENCE REGARDING	0.30 hrs.		52.50	
06/09/2015	CCK	ASSIST WITH	2.10 hrs.		315.00	

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06/09/2015	ADW	REVIEW	4.00 hrs.		600.00	
06/09/2015	ADW	NOTE AND UPDATE	1.50 hrs.		225.00	
06/10/2015	APB	PREPARE	1.80 hrs.		315.00	
06/10/2015	AVM	; LETTER TO OPPOSING COUNSEL REGARDING SAME EMAIL CORRESPONDENCE WITH OPPOSING COUNSEL REGARDING MOTION FOR LEAVE	0.20 hrs.		35.00	
06/10/2015	AVM	EMAIL CORRESPONDENCE WITH TEAM REGARDING	0.70 hrs.		122.50	
06/10/2015	AVM	CONTINUE TO ANALYZE AND PREPARE	8.30 hrs.		1,452.50	
06/10/2015	DEC	REVIEW AND REVISE	0.30 hrs.		52.50	
06/10/2015	WHW	REVIEW REVISIONS AND CORRECTIONS TO	0.80 hrs.		140.00	
06/10/2015	WHW	; CONFERENCE REGARDING SAME; REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING REVIEW OF SAME REVIEW FMC REGULATIONS REGARDING	0.10 hrs.		17.50	
06/10/2015	WHW	REVIEW	0.10 hrs.		17.50	
06/10/2015	CCK	ASSIST WITH PREPARATION OF	4.80 hrs.		720.00	
06/10/2015	ADW	CONTINUE WORKING ON	1.50 hrs.		225.00	
06/10/2015	ADW	CONTINUED WORK TO UPDATE	5.00 hrs.		750.00	
06/10/2015	ADW	REVIEW AND REVISE	0.50 hrs.		75.00	
06/10/2015	ADW	PREPARE	0.60 hrs.		90.00	
06/11/2015	AVM	EMAIL CORRESPONDENCE WITH TEAM REGARDING	0.60 hrs.		105.00	
06/11/2015	DEC	REVIEW EMAIL EXCHANGE ON	0.10 hrs.		17.50	
06/11/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.		17.50	
06/11/2015	WHW	REVIEW	0.30 hrs.		52.50	
06/11/2015	WHW	; REVIEW MEMO REGARDING SAME REVIEW CORRESPONDENCE TO DOUG GILMAN REGARDING UPDATES OF CITES TO BRIEF	0.10 hrs.		17.50	
06/11/2015	ADW	RESEARCH PREPARE MEMORANDUM TO APB	1.00 hrs.		150.00	

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06/12/2015	APB	REGARDING REVIEW CORRESPONDENCE FROM FMC SECRETARY'S OFFICE REQUESTING 3 SETS OF PAPER COPIES OF RESPONDENTS' EVIDENTIARY APPENDIX SUPPORTING PROOF OF FACTS AND RESPONSE BRIEF; MEMORANDUM TO LEGAL TEAM REGARDING SAME	0.40 hrs.		70.00	
06/12/2015	APB	CONFERENCE WITH LEGAL TEAM REGARDING	0.40 hrs.		70.00	
		;				
06/12/2015	APB	LETTER TO FMC SECRETARY FOR TRANSMITTAL OF DOCUMENTS UPON COMPLETION REVIEW CORRESPONDENCE TO FMC FROM OPPOSING COUNSEL REGARDING MOTION TO FILE UPDATED DOCUMENTS; LETTER TO FMC SECRETARY REGARDING SAME, AND DISPUTING CONTENTIONS ASSERTED BY OPPOSING COUNSEL	0.50 hrs.		87.50	
06/12/2015	APB	PREPARE FOR AND PARTICIPATE IN TELEPHONIC HEARING REQUESTED BY ADMINISTRATIVE LAW JUDGE CLAY GUTHRIDGE	1.10 hrs.		192.50	
06/12/2015	APB	CORRESPONDENCE WITH FMC SECRETARY REGARDING RECENT CASE FILINGS	0.20 hrs.		35.00	
06/12/2015	AVM	RECEIVE AND REVIEW	0.80 hrs.		140.00	
		;				
06/12/2015	WHW	EMAIL CORRESPONDENCE WITH TEAM REGARDING SAME REVIEW	0.40 hrs.		70.00	
		;				
06/12/2015	WHW	REVIEW ; CONFERENCE REGARDING SAME REVIEW CORRESPONDENCE FROM FMC SECRETARY REGARDING REQUIREMENT THAT PAPER COPIES OF THE APPENDIX BE FILED WITH THE ALJ; CONFERENCE REGARDING COMPLIANCE WITH FILING REQUIREMENTS	0.20 hrs.		35.00	
06/12/2015	WHW	REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING CLAIM THAT DOCUMENTS WERE NOT SERVED ON HIM; EXTENDED CONFERENCE REGARDING	0.30 hrs.		52.50	
		;				
06/12/2015	WHW	REVIEW CORRESPONDENCE TO THE FMC SECRETARY REGARDING PROOF OF SERVICE OF DOCUMENTS ON OPPOSING COUNSEL REVIEW MEMO REGARDING	0.10 hrs.		17.50	
06/12/2015	ADW	PREPARE	0.80 hrs.		120.00	
06/12/2015	ADW	TELECONFERENCE WITH FMC REGARDING REQUEST FOR PAPER COPIES	0.10 hrs.		15.00	
06/12/2015	ADW	COORDINATE COMPLETION OF COPY	0.60 hrs.		90.00	

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06/15/2015	APB	REQUEST FROM FMC REVIEW ORDER FROM JUDGE GUTHRIDGE EXTENDING TIME FOR COMPLAINANTS TO FILE THEIR REPLY BRIEF; MEMORANDUM REGARDING SAME; LETTER TO FMC SECRETARY ACKNOWLEDGING RECEIPT OF ORDER	0.50 hrs.		87.50	
06/15/2015	WHW	REVIEW CORRESPONDENCE TO FMC SECRETARY REGARDING FILING OF CORRECTED PLEADINGS	0.10 hrs.		17.50	
06/16/2015	APB	REVIEW CORRESPONDENCE AND NOTICE OF EXTENSION OF TIME ISSUED BY FEDERAL MARITIME COMMISSION; LETTER ACKNOWLEDGING RECEIPT OF SAME PER FMC REQUIREMENTS	0.30 hrs.		52.50	
06/16/2015	WHW	REVIEW ORDER EXTENDING DEADLINES FOR RULING BY THE ALJ AND THE COMMISSION	0.10 hrs.		17.50	
06/17/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.		17.50	
06/18/2015	AVM	EMAIL CORRESPONDENCE REGARDING	0.80 hrs.		140.00	
06/23/2015	APB	REVIEW CORRESPONDENCE FROM FMC OFFICE REGARDING PAPER COPIES OF RECENTLY FILED PLEADINGS; MEMORANDUM REGARDING SAME	0.30 hrs.		52.50	
06/23/2015	WHW	REVIEW CORRESPONDENCE FROM FMC SECRETARY REGARDING FILING OF DOCUMENTS WITH THE CLERK	0.10 hrs.		17.50	
06/25/2015	APB	INITIAL REVIEW AND ANALYSIS OF	2.40 hrs.		420.00	
		;				
06/25/2015	DEC	MEMORANDUM TO LEGAL TEAM REGARDING SAME REVIEW	7.60 hrs.		1,330.00	
		; BEGIN WORK				
06/25/2015	WHW	ON REVIEW CORRESPONDENCE FROM ALISON FINE REGARDING FILING OF RESPONSIVE PLEADINGS; REVIEW AND ANALYZE	0.90 hrs.		157.50	
06/25/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.		17.50	
06/25/2015	WHW	REVIEW MEMO REGARDING	0.10 hrs.		17.50	
06/25/2015	ADW	RECEIVE AND REVIEW	8.50 hrs.		1,275.00	
06/26/2015	APB	CONTINUE RESEARCH REGARDING	3.80 hrs.		665.00	

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06/26/2015	DEC	CONTINUE WORK ON ANALYSIS AND REVIEW OF RESEARCH ;	7.00 hrs.	1,225.00	
06/26/2015	WHW	REVIEW CORRESPONDENCE FROM ROGER QUIROGA REGARDING	0.10 hrs.	17.50	
06/26/2015	WHW	REVIEW DETAILED MEMO REGARDING ; CONFERENCE REGARDING	0.30 hrs.	52.50	
06/26/2015	WHW	REVIEW	0.40 hrs.	70.00	
06/26/2015	ADW	PREPARE MEMORANDUM REGARDING	0.90 hrs.	135.00	
06/26/2015	ADW	REVIEW	5.50 hrs.	825.00	
06/29/2015	APB	CONTINUE RESEARCH AND EVALUATION	2.40 hrs.	420.00	
06/29/2015	AVM	EMAIL CORRESPONDENCE WITH TEAM AND REVIEW	0.20 hrs.	35.00	
06/29/2015	DEC	CONTINUE RESEARCH	3.00 hrs.	525.00	
06/29/2015	WHW	REVIEW CORRESPONDENCE FROM THE DISTRICT CLERK REGARDING PAYMENT OF FUNDS INTO THE REGISTRY OF THE COURT BY LIGHTHOUSE PARKING	0.10 hrs.	17.50	
06/29/2015	WHW	REVIEW CORRESPONDENCE FROM THE DISTRICT CLERK REGARDING PAYMENT OF FUNDS INTO THE REGISTRY OF THE COURT BY SYLVIA ROBLEDO	0.10 hrs.	17.50	
06/29/2015	WHW	REVIEW ; CONFERENCE REGARDING SAME	0.40 hrs.	70.00	
06/29/2015	ADW	REVIEW AND REVISE	5.00 hrs.	750.00	
06/30/2015	APB	REVIEW NOTICE FROM COURT REGARDING TENDER OF DEPOSIT BY EZ CRUISE; MEMORANDUM REGARDING SAME	0.30 hrs.	52.50	
06/30/2015	APB	CONTINUE RESEARCH ON	2.70 hrs.	472.50	

06/30/2015	DEC	CONTINUE RESEARCH, BRIEFING AND PREPARATION WORK	4.00 hrs.	700.00
06/30/2015	WHW	REVIEW MEMO REGARDING ; CONFERENCE	0.30 hrs.	52.50
06/30/2015	WHW	REGARDING SAME		
06/30/2015	WHW	REVIEW AND ANALYZE	0.80 hrs.	140.00
06/30/2015	WHW	REVIEW NOTICE FROM THE DISTRICT CLERK REGARDING PAYMENT OF FUNDS INTO THE REGISTRY OF THE COURT BY SANTA FE DISCOUNT CRUISE PARKING	0.10 hrs.	17.50
06/30/2015	WHW	REVIEW NOTICE FROM THE DISTRICT CLERK REGARDING DELIVERY OF FUNDS IN THE REGISTRY OF THE COURT BY COMPLAINANT	0.10 hrs.	17.50
06/30/2015	WHW	REVIEW	0.30 hrs.	52.50
06/30/2015	JAH	REVIEW AND REVISE	2.40 hrs.	360.00
06/30/2015	ADW	ADDITIONAL REVISION OF	3.00 hrs.	450.00

\$27,620.00

EXPENSES

06/04/2015	ANTHONY P. BROWN - TRAVEL ON 05/31/15 TO UNIVERSITY OF HOUSTON FOR RESEARCH REGARDING FMC DECISIONS	69.15
06/11/2015	ANTHONY P. BROWN - GO TO MEETING, ONLINE CHARGE	44.96
06/30/2015	COPYING	417.80
06/30/2015	POSTAGE	147.38
06/30/2015	WEST LAW RESEARCH	3.98
06/30/2015	SCANNING	78.20
		<u>\$761.47</u>

Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>33.30 hrs</u>	<u>\$175.00 /hr</u>	<u>\$5,827.50</u>
<u>WAGNER, WILLIAM</u>	<u>8.10 hrs</u>	<u>\$175.00 /hr</u>	<u>\$1,417.50</u>
<u>HULSE</u>			
<u>COWEN, DAVID E.</u>	<u>43.20 hrs</u>	<u>\$175.00 /hr</u>	<u>\$7,560.00</u>
<u>MARBURGER, APRIL</u>	<u>29.00 hrs</u>	<u>\$175.00 /hr</u>	<u>\$5,075.00</u>
<u>WILLIAMS, GINA G.</u>	<u>4.00 hrs</u>	<u>\$65.00 /hr</u>	<u>\$260.00</u>
<u>HICKS, MELINDA</u>	<u>1.50 hrs</u>	<u>\$65.00 /hr</u>	<u>\$97.50</u>
<u>ATKINS, AMBER</u>	<u>5.00 hrs</u>	<u>\$65.00 /hr</u>	<u>\$325.00</u>
<u>DAWN</u>			
<u>HOLLAND, JOCELYN</u>	<u>3.40 hrs</u>	<u>\$150.00 /hr</u>	<u>\$510.00</u>
<u>A.</u>			
<u>KING, CHRIS C.</u>	<u>6.90 hrs</u>	<u>\$150.00 /hr</u>	<u>\$1,035.00</u>
<u>WRIGHT, AMANDA D.</u>	<u>58.30 hrs</u>	<u>\$150.00 /hr</u>	<u>\$8,745.00</u>
<u>ZEPEDA, JENNIFER M.</u>	<u>5.00 hrs</u>	<u>\$65.00 /hr</u>	<u>\$325.00</u>

Total professional services \$27,620.00

12432 GALVESTON WHARVES

Invoice# 113164 Page 8

Total expenses incurred \$761.47

Total of new charges for this invoice \$28,381.47

PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

July 31, 2015

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 113334 WHW
Our file# 12432 14003
Billing through 07/31/2015

LIGHTHOUSE PARKING FMC COMPLAINT

PROFESSIONAL SERVICES

07/06/2015	APB	REVIEW	0.80 hrs.	140.00
07/30/2015	APB	REVIEW PLEADINGS AND CORRESPONDENCE REGARDING	0.70 hrs.	122.50
07/30/2015	APB	PREPARE	0.80 hrs.	140.00
07/31/2015	WHW	REVIEW	0.10 hrs.	17.50
07/31/2015	ADW	REVISE	0.70 hrs.	105.00

\$717.50

EXPENSES

07/06/2015	FEDERAL EXPRESS - DELIVERY SENT ON 06/12/15 TO KAREN GREGURY AT FEDERAL MARITIME	366.19
07/30/2015	PACER SERVICE CENTER - SERVICE FEE FOR COURT COPIES	0.70
07/31/2015	COPYING	0.40
07/31/2015	POSTAGE	6.74
07/31/2015	SCANNING	0.34
		<u>\$374.37</u>

Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>2.70</u> hrs	<u>\$175.00</u> /hr	<u>\$472.50</u>
<u>WAGNER, WILLIAM</u>	<u>0.10</u> hrs	<u>\$175.00</u> /hr	<u>\$17.50</u>
<u>HULSE</u>			
<u>COWEN, DAVID E.</u>	<u>0.70</u> hrs	<u>\$175.00</u> /hr	<u>\$122.50</u>
<u>WRIGHT, AMANDA D.</u>	<u>0.70</u> hrs	<u>\$150.00</u> /hr	<u>\$105.00</u>
Total professional services			\$717.50
Total expenses incurred			\$374.37
Total of new charges for this invoice			<u>\$1,091.87</u>

PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

August 31, 2015

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 113676 WHW
Our file# 12432 14003
Billing through 08/31/2015

LIGHTHOUSE PARKING FMC COMPLAINT**PROFESSIONAL SERVICES**

08/03/2015	APB	REVIEW CORRESPONDENCE FROM PETER SIMONS REGARDING ; LETTER TO PETER SIMONS REGARDING	0.30 hrs.	52.50
08/03/2015	APB	PREPARE REVISIONS TO ; LETTER TO OPPOSING COUNSEL REGARDING SAME	0.40 hrs.	70.00
08/03/2015	APB	REVIEW CORRESPONDENCE FROM OPPOSING COUNSEL APPROVING E-FILING JOINT STATUS REPORT; MEMORANDUM REGARDING SAME	0.20 hrs.	35.00
08/03/2015	DEC	REVIEW	0.30 hrs.	52.50
08/03/2015	WHW	REVIEW ; REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING APPROVAL OF FORM OF STATUS REPORT	0.10 hrs.	17.50
08/07/2015	APB	REVIEW CORRESPONDENCE FROM MIKE MIERZWA REGARDING ; INITIAL RESEARCH REGARDING	0.50 hrs.	87.50
08/07/2015	APB	REVIEW	1.30 hrs.	227.50
08/07/2015	WHW	REVIEW ; CONFERENCE REGARDING	0.60 hrs.	105.00
08/07/2015	ADW	CONDUCT LEGAL RESEARCH REGARDING ; EMAIL TO APB REGARDING SAME (.1)	0.90 hrs.	135.00
08/31/2015	APB	REVIEW CORRESPONDENCE FROM MIKE MIERZWA REGARDING ; LETTER TO MIKE MIERZWA REGARDING SAME	0.30 hrs.	52.50
08/31/2015	WHW	REVIEW CORRESPONDENCE FROM TRUSTEE	0.20 hrs.	35.00

DEVRIES REGARDING

; REVIEW
 CORRESPONDENCE FROM MIKE MIERZWA
 REGARDING SAME; CONFERENCE REGARDING

08/31/2015	WHW	PREPARE CORRESPONDENCE TO MIKE MIERZWA REGARDING ; REVIEW CORRESPONDENCE FROM MIKE MIERZWA REGARDING SAME; PREPARE CORRESPONDENCE TO TRUSTEE DEVRIES REGARDING	0.20 hrs.	35.00
		; REVIEW CORRESPONDENCE FROM TRUSTEE DEVRIES REGARDING SAME		
				\$905.00

EXPENSES

08/06/2015	RICOH USA, INC. - SERVICE FEE FOR HEAVY LITIGATION SUPPORT; 8,205 COPIES WITH ASSEMBLY	532.91
08/31/2015	COPYING	0.20
08/31/2015	SCANNING	0.34
		\$533.45

Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>3.00 hrs</u>	<u>\$175.00 /hr</u>	<u>\$525.00</u>
<u>WAGNER, WILLIAM</u>	<u>1.10 hrs</u>	<u>\$175.00 /hr</u>	<u>\$192.50</u>
<u>HULSE</u>			
<u>COWEN, DAVID E.</u>	<u>0.30 hrs</u>	<u>\$175.00 /hr</u>	<u>\$52.50</u>
<u>WRIGHT, AMANDA D.</u>	<u>0.90 hrs</u>	<u>\$150.00 /hr</u>	<u>\$135.00</u>
Total professional services			\$905.00
Total expenses incurred			\$533.45
Total of new charges for this invoice			\$1,438.45

PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

September 30, 2015

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 113969 WHW
Our file# 12432 14003
Billing through 09/30/2015

LIGHTHOUSE PARKING FMC COMPLAINT**PROFESSIONAL SERVICES**

09/02/2015	WHW	REVIEW CORRESPONDENCE FROM MIKE MIERZWA REGARDING	0.20 hrs.	35.00
09/02/2015	WHW	CONFERENCE REGARDING SAME REVIEW	0.20 hrs.	35.00
09/21/2015	APB	PREPARE MEMO REGARDING REVIEW NOTICE FROM FMC REGARDING EXTENSION OF DEADLINE FOR INITIAL DECISION; LETTER TO MIKE MIERZWA AND PORT STAFF REGARDING	0.40 hrs.	70.00
09/21/2015	APB	REVIEW	0.70 hrs.	122.50
09/21/2015	WHW	REVIEW ORDER EXTENDING TIME FOR ALJ TO RULE ON THE MERITS OF THE CASE	0.10 hrs.	17.50
09/28/2015	ADW	RESEARCH	0.20 hrs.	30.00
09/29/2015	APB	(.1); EMAIL TO MARK MURCHISON (.1) REVIEW	0.30 hrs.	52.50
09/29/2015	APB	LETTER TO MARK MURCHISON REVIEW CORRESPONDENCE FROM MARK MURCHISON REGARDING	0.40 hrs.	70.00
09/29/2015	WHW	; LETTER TO MARK MURCHISON REGARDING SAME REVIEW	0.10 hrs.	17.50
09/29/2015	ADW	PREPARE	0.50 hrs.	75.00

\$525.00

Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>1.80 hrs</u>	<u>\$175.00 /hr</u>	<u>\$315.00</u>
<u>WAGNER, WILLIAM</u>	<u>0.60 hrs</u>	<u>\$175.00 /hr</u>	<u>\$105.00</u>
<u>HULSE</u>			
<u>WRIGHT, AMANDA D.</u>	<u>0.70 hrs</u>	<u>\$150.00 /hr</u>	<u>\$105.00</u>
Total professional services			\$525.00
Total of new charges for this invoice			\$525.00

PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.
802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

October 31, 2015

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 114178 WHW
Our file# 12432 14003
Billing through 10/31/2015

LIGHTHOUSE PARKING FMC COMPLAINT

PROFESSIONAL SERVICES

10/02/2015	WHW	REVIEW	0.10 hrs.	17.50
10/02/2015	ADW	EMAIL JOINT STATUS REPORT TO OPPOSING COUNSEL FOR REVIEW AND APPROVAL OF FILING	0.20 hrs.	30.00
10/06/2015	APB	REVIEW	0.70 hrs.	122.50
10/20/2015	APB	TELEPHONE CALL WITH SECRETARY'S OFFICE AT FMC REGARDING THEIR REQUEST FOR MS WORD COPIES OF RESPONSE BRIEF AND PROPOSED FINDINGS OF FACT; MEMORANDUM REGARDING SAME	0.40 hrs.	70.00
10/20/2015	APB	REVIEW	0.60 hrs.	105.00
10/20/2015	WHW	REVIEW MEMO REGARDING	0.20 hrs.	35.00
10/30/2015	APB	CONFERENCE REGARDING SAME; REVIEW CORRESPONDENCE TO THE ALJ REGARDING SAME REVIEW NOTICE FROM COURT REGARDING FILING OF DEPOSIT BY SYLVIA ROBLEDO - \$2,818	0.10 hrs.	17.50
				<u>\$572.50</u>

EXPENSES

10/30/2015	PACER SERVICE CENTER - SERVICE FEE FOR COPIES FROM COURT	0.90
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10/31/2015 SCANNING

0.51

\$1.41Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>2.00 hrs</u>	<u>\$175.00 /hr</u>	<u>\$350.00</u>
<u>WAGNER, WILLIAM</u>	<u>0.30 hrs</u>	<u>\$175.00 /hr</u>	<u>\$52.50</u>
<u>HULSE</u>			
<u>COWEN, DAVID E.</u>	<u>0.80 hrs</u>	<u>\$175.00 /hr</u>	<u>\$140.00</u>
<u>WRIGHT, AMANDA D.</u>	<u>0.20 hrs</u>	<u>\$150.00 /hr</u>	<u>\$30.00</u>
Total professional services			\$572.50
Total expenses incurred			\$1.41
Total of new charges for this invoice			<u>\$573.91</u>

PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

November 30, 2015

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 114495 WHW
Our file# 12432 14003
Billing through 11/30/2015

LIGHTHOUSE PARKING FMC COMPLAINT**PROFESSIONAL SERVICES**

11/11/2015	APB	REVIEW	1.10 hrs.	192.50
11/13/2015	APB	REVIEW CORRESPONDENCE FROM FEDERAL MARITIME COMMISSION; ASSIST WITH COMPILATION OF ADDITIONAL DOCUMENTATION REQUESTED BY FMC IN RESPONSE TO REQUEST	2.40 hrs.	420.00
11/13/2015	ADW	REVIEW BOTH PARTIES' APPENDIX DOCUMENTS FOR INVOICES REQUESTED BY FMC ALJ (.7); LOCATE AND PULL REQUESTED DOCUMENTS FROM WHARVES' DISCOVERY RESPONSES (.3); BATES NUMBER (.1); PREPARE TRANSMITTAL LETTER TO FMS SECRETARY (.2); FILE REQUESTED DOCUMENTS (.1)	1.40 hrs.	210.00
11/23/2015	APB	REVIEW NOTICE FROM FMC EXTENDING DEADLINE FOR RULING TO DECEMBER 4; MEMORANDUM REGARDING SAME	0.40 hrs.	70.00
11/24/2015	APB	LETTER TO MIKE MIERZEWA REGARDING	0.20 hrs.	35.00
11/24/2015	WHW	REVIEW MEMO REGARDING REQUEST BY THE ADMINISTRATIVE LAW JUDGE TO DELAY ISSUANCE OF PRELIMINARY OPINION	0.10 hrs.	17.50
11/24/2015	WHW	REVIEW NOTICE OF EXTENSION OF TIME FOR THE FMC TO ISSUE A FINAL DECISION IN THE CASE	0.10 hrs.	17.50
11/30/2015	APB	REVIEW	1.20 hrs.	210.00
11/30/2015	APB	REVISE AND SUPPLEMENT ; LETTER TO OPPOSING COUNSEL REGARDING SAME	0.40 hrs.	70.00
11/30/2015	WHW	REVIEW	0.10 hrs.	17.50
				\$1,260.00

EXPENSES

11/30/2015	COPYING	8.00
11/30/2015	POSTAGE	15.29
11/30/2015	SCANNING	1.19
		\$24.48

Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>5.70 hrs</u>	<u>\$175.00 /hr</u>	<u>\$997.50</u>
<u>WAGNER, WILLIAM</u>	<u>0.30 hrs</u>	<u>\$175.00 /hr</u>	<u>\$52.50</u>
<u>HULSE</u>			
<u>WRIGHT, AMANDA D.</u>	<u>1.40 hrs</u>	<u>\$150.00 /hr</u>	<u>\$210.00</u>
Total professional services			\$1,260.00
Total expenses incurred			\$24.48
Total of new charges for this invoice			\$1,284.48

PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

December 31, 2015

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 115071 APB
Our file# 12432 14003
Billing through 12/31/2015

LIGHTHOUSE PARKING FMC COMPLAINT

PROFESSIONAL SERVICES

12/02/2015	APB	REVIEW CORRESPONDENCE AND FILINGS REGARDING DEPOSITS BY PRIVATE LOT OWNERS INTO FEDERAL COURT REGISTRY	0.30 hrs.	52.50
12/04/2015	APB	REVIEW AND ANALYSIS	1.60 hrs.	280.00
		; MEMORANDUM TO LEGAL TEAM REGARDING SAME		
12/04/2015	APB	TELEPHONE CALL WITH MIKE MIERZWA REGARDING	0.20 hrs.	35.00
12/04/2015	APB	DRAFT ; LETTER TO MIKE MIERZWA AND PORT STAFF REGARDING SAME	0.90 hrs.	157.50
12/04/2015	APB	LETTER TO FEDERAL MARITIME COMMISSION ACKNOWLEDGING RECEIPT OF JUDGE'S ORDER, PER FMC REQUIREMENTS	0.20 hrs.	35.00
12/04/2015	APB	REVIEW CORRESPONDENCE FROM DAILY NEWS REPORTER LAURA ELDER AND REQUEST FOR "FACT CHECK" OF ITEMS IN VARIOUS ARTICLES; LETTER REGARDING SAME	0.60 hrs.	105.00
12/04/2015	APB	REVIEW AND COMPILE	0.80 hrs.	140.00
		;		
12/04/2015	DEC	LETTER TO MIKE MIERZWA REGARDING SAME REVIEW ; EMAIL TO CURRAN; BEGIN	3.00 hrs.	525.00
12/04/2015	WHW	REVIEW CORRESPONDENCE FROM LAURA ELDER REGARDING BACKGROUND FACTS TO BE INCLUDED IN NEWS ARTICLE	0.10 hrs.	17.50
12/04/2015	WHW	REVIEW MEMO REGARDING	1.50 hrs.	262.50
		; CONFERENCE REGARDING SAME; PREPARE CORRESPONDENCE TO PORT STAFF REGARDING		
		; PREPARE CORRESPONDENCE TO LAURA ELDER REVIEW REVIEW OF THE INITIAL DECISION; REVIEW		

CORRESPONDENCE FROM LAURA ELDER
REGARDING SAME; REVIEW AND ANALYZE

12/04/2015	WHW	PREPARE CORRESPONDENCE TO DON GLYWASKY REGARDING ISSUANCE OF INITIAL DECISION BY THE ALJ	0.10 hrs.	17.50
12/04/2015	WHW	REVIEW CORRESPONDENCE FROM LAURA ELDER REGARDING ARTICLE TO BE PUBLISHED IN THE NEWSPAPER; REVIEW DRAFT COPY; PREPARE CORRESPONDENCE REGARDING REVIEW OF DRAFT COPY; CONFERENCE REGARDING SAME; PREPARE CORRESPONDENCE TO LAURA ELDER REGARDING ACCURACY OF BACKGROUND INFORMATION	0.50 hrs.	87.50
12/04/2015	WHW	REVIEW CORRESPONDENCE FROM LAURA ELDER REGARDING FMC INITIAL DECISION; CONFERENCE REGARDING SAME; PREPARE CORRESPONDENCE TO LAURA ELDER REGARDING SAME	0.30 hrs.	52.50
12/04/2015	WHW	REVIEW CORRESPONDENCE FROM CRISTINA GALEGO REGARDING	0.30 hrs.	52.50
12/04/2015	WHW	REVIEW CORRESPONDENCE FROM MIKE MIERZWA REGARDING	0.10 hrs.	17.50
12/04/2015	WHW	REVIEW ; PREPARE MEMO REGARDING	0.20 hrs.	35.00
12/04/2015	ADW	RECEIVE AND REVIEW	0.60 hrs.	90.00
12/07/2015	ADW	CONTACT FEDERAL COURT REGISTRY REGARDING AMOUNT DEPOSITED INTO CURT REGISTRY BY COMPLAINANTS (.10); EMAIL REGARDING SAME (.10)	0.20 hrs.	30.00
12/07/2015	APB	REVIEW CORRESPONDENCE FROM FEDERAL COURT REGARDING ADDITIONAL DEPOSITS BY EZ CRUISE AND SYLVIA ROBLEDO INTO FEDERAL COURT REGISTRY; MEMORANDUM REQUESTING UPDATED BALANCE ON FUNDS HELD IN COURT REGISTRY	0.40 hrs.	70.00
12/07/2015	APB	INITIAL RESEARCH REGARDING	2.70 hrs.	472.50
12/07/2015	DEC	CONTINUE WORK ON ; RESEARCH	2.70 hrs.	472.50
12/07/2015	DEC	REVIEW	0.20 hrs.	35.00
12/07/2015	WHW	REVIEW	0.10 hrs.	17.50

12432	GALVESTON WHARVES		Invoice# 115071	Page 3
12/07/2015	ADW	CONDUCT LEGAL RESEARCH REGARDING (2.5) AND (2.0)	4.50 hrs.	675.00
12/08/2015	APB	TELEPHONE CALL WITH OPPOSING COUNSEL REGARDING HIS REQUEST WHETHER RESPONDENTS WILL OPPOSE HIS REQUEST FOR AN EXTENSION OF TIME TO FILE EXCEPTIONS; LETTER TO OPPOSING COUNSEL REQUESTING A CLARIFICATION OF THE REQUEST	0.40 hrs.	70.00
12/08/2015	DEC	REVIEW COURT NOTICES ON DEPOSITS	0.10 hrs.	17.50
12/08/2015	DEC	CONTINUE RESEARCH	2.00 hrs.	350.00
12/08/2015	ADW	REVIEW (.50); CALCULATE AMOUNTS PAID INTO FEDERAL REGISTRY AND THE DATES OF THE RESPECTIVE PAYMENTS (.80); CONTACT FEDERAL DISTRICT CLERK REGARDING UNLISTED PAYMENTS PAID INTO REGISTRY (.20)	1.50 hrs.	225.00
12/09/2015	WHW	REVIEW MEMO REGARDING	0.20 hrs.	35.00
12/10/2015	APB	LETTER TO MIKE MIERZWA REGARDING	0.20 hrs.	35.00
12/10/2015	APB	REVIEW CORRESPONDENCE FROM MIKE MIERZWA REGARDING	0.30 hrs.	52.50
12/10/2015	WHW	TO OPPOSING COUNSEL REGARDING SAME REVIEW CORRESPONDENCE FROM DOUG GILMAN REGARDING REQUEST FOR EXTENSION OF TIME TO FILE EXCEPTIONS TO THE INITIAL DECISION; REVIEW MEMO REGARDING OTHER ISSUES BEING CONSIDERED BY GILMAN	0.20 hrs.	35.00
12/11/2015	APB	REVIEW AND ANALYZE ; LETTER TO MIKE MIERZWA AND PORT STAFF REGARDING SAME	0.50 hrs.	87.50
12/11/2015	WHW	REVIEW CONFERENCE REGARDING SAME; REVIEW MEMO REGARDING SAME	0.30 hrs.	52.50
12/11/2015	WHW	REVIEW CORRESPONDENCE FROM ALISON FINE REGARDING FILING OF AGREED MOTION TO EXTEND TIME	0.10 hrs.	17.50
12/14/2015	APB	REVIEW CORRESPONDENCE AND NOTICE FROM FMC GRANTING EXTENSION FOR COMPLAINANTS TO FILE EXCEPTIONS TO INITIAL DECISION BY ADMINISTRATIVE LAW JUDGE; LETTER TO FMC SECRETARY ACKNOWLEDGING RECEIPT OF NOTICE AS REQUIRED BY FMC RULES; LETTER TO MIKE	0.50 hrs.	87.50

MIERZWA AND PETER SIMONS REGARDING

12/17/2015	APB	REVIEW	1.40 hrs.	245.00
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; PREPARE TO REPORT
ON SAME AT BOARD OF TRUSTEES MEETING

12/31/2015	APB	SUPPLEMENTAL REVIEW	3.20 hrs.	560.00
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\$5,605.00

EXPENSES

12/31/2015	WEST LAW RESEARCH
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139.17

\$139.17

Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>14.20 hrs</u>	<u>\$175.00 /hr</u>	<u>\$2,485.00</u>
<u>WAGNER, WILLIAM</u>	<u>4.00 hrs</u>	<u>\$175.00 /hr</u>	<u>\$700.00</u>
<u>HULSE</u>			
<u>COWEN, DAVID E.</u>	<u>8.00 hrs</u>	<u>\$175.00 /hr</u>	<u>\$1,400.00</u>
<u>WRIGHT, AMANDA D.</u>	<u>6.80 hrs</u>	<u>\$150.00 /hr</u>	<u>\$1,020.00</u>

Total professional services	\$5,605.00
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Total expenses incurred	\$139.17
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Total of new charges for this invoice	\$5,744.17
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PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

January 30, 2016

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 115283 APB
Our file# 12432 14003
Billing through 01/31/2016

LIGHTHOUSE PARKING FMC COMPLAINT

PROFESSIONAL SERVICES

01/05/2016	APB	REVIEW ; LETTER TO MIKE MIERZWA AND PORT STAFF REGARDING SAME	0.70 hrs.	122.50
01/05/2016	ADW	RESEARCH COMPLAINANTS' STATUS ON PAYMENTS TO THE DISTRICT COURT REGISTRY UNDER THE AGREED INTERIUM ORDER (.2); UPDATE SPREADSHEET REFLECTING PAYMENTS (.2); EMAIL CORRESPONDENCE TO APB REGARDING STATUS AND CURRENT REGISTRY TOTALS (.1)	0.50 hrs.	75.00
01/06/2016	DEC	COORDINATE	0.40 hrs.	70.00
01/06/2016	DEC	REVIEW EMAILS ON REGISTRY; CONTINUE TO REVIEW	1.00 hrs.	175.00
01/11/2016	APB	REVIEW NOTICE FROM FEDERAL COURT REGARDING NOTICE OF STATUS CONFERENCE IN THAT PROCEEDING; MEMORANDUM REGARDING SAME	0.30 hrs.	52.50
01/11/2016	DEC	REVIEW COURT FILINGS AND NOTICE FROM FEDERAL JUDGE ON CONFERENCE SETTING; CONTINUE WORK ON	2.70 hrs.	472.50
01/12/2016	APB	INITIAL REVIEW AND ANALYSIS OF ; MEMORANDUM TO LEGAL TEAM REGARDING SAME; LETTER TO MIKE MIERZWA AND PORT STAFF REGARDING SAME	1.90 hrs.	332.50
01/12/2016	APB	RESEARCH	2.70 hrs.	472.50
01/12/2016	DEC	SAME ; MEMORANDUM REGARDING SAME BEGIN REVIEW AND ANALYSIS OF	4.00 hrs.	700.00

01/12/2016	DEC	REVIEW	2.80 hrs.	490.00
01/12/2016	ADW	RECEIVE AND REVIEW	8.00 hrs.	1,200.00
01/13/2016	APB	SUPPLEMENTAL RESEARCH REGARDING	0.90 hrs.	157.50
		; MEMORANDUM		
01/13/2016	DEC	REGARDING SAME ANALYSIS OF	3.70 hrs.	647.50
01/13/2016	DEC	WORK ON	2.00 hrs.	350.00
01/13/2016	ADW	REVIEW	2.50 hrs.	375.00
01/14/2016	APB	REVIEW CORRESPONDENCE FROM U.S. DISTRICT COURT CLERK REGARDING COURT CONFERENCE TO DISCUSS CASE STATUS; MEMORANDUM REGARDING SAME	0.30 hrs.	52.50
01/14/2016	ADW	CONTINUE REVIEW	5.50 hrs.	825.00
01/14/2016	ADW	PREPARE	0.80 hrs.	120.00
01/15/2016	APB	MEMORANDUM REGARDING	0.20 hrs.	35.00
01/15/2016	APB	ASSIST WITH	0.80 hrs.	140.00
01/15/2016	DEC	BEGIN	6.80 hrs.	1,190.00
01/15/2016	ADW	REVIEW	6.40 hrs.	960.00
01/17/2016	DEC	CONTINUE PREPARATION OF	7.50 hrs.	1,312.50
01/18/2016	DEC	CONTINUE WORK ON	6.00 hrs.	1,050.00
01/18/2016	ADW	SEND PROPOSED JOINT STATUS REPORT TO OPPOSING COUNSEL FOR REVIEW AND SUGGESTED REVISIONS	0.10 hrs.	15.00
01/19/2016	APB	ASSIST WITH PREPARATION OF	0.60 hrs.	105.00

01/19/2016	JAH	LEGAL RESEARCH REGARDING	1.70 hrs.	255.00
01/19/2016	JAH	; PREPARE MEMORANDUM TO DEC REGARDING SAME REVIEW	3.90 hrs.	585.00
01/19/2016	ADW	RECEIVE AND REVIEW OPPOSING COUNSEL'S SUGGESTED REVISIONS TO JOINT STATUS REPORT (.5) AND MAKE FURTHER REVISIONS (.2); SEND REVISED JOINT STATUS REPORT TO OPPOSING COUNSEL FOR COMMENT (.1)	0.80 hrs.	120.00
01/19/2016	ADW	REVIEW NOTING	6.80 hrs.	1,020.00
01/20/2016	APB	REVIEW MEMORANDUM REGARDING SAME, AND ADDITIONAL	0.40 hrs.	70.00
01/20/2016	DEC	CONTINUE WORK ON RESEARCH ; REVIEW	6.30 hrs.	1,102.50
01/20/2016	JAH	WORK ON PREPARING RESPOND TO	3.50 hrs.	525.00
01/20/2016	JAH	LEGAL RESEARCH ON	0.70 hrs.	105.00
01/20/2016	JAH	LEGAL RESEARCH ON	0.50 hrs.	75.00
01/20/2016	ADW	CONTINUE LEGAL RESEARCH AND DRAFTING OF	6.80 hrs.	1,020.00
01/21/2016	APB	REVIEW REVISIONS ON PROPOSED JOINT STATUS REPORT RECEIVED FROM OPPOSING COUNSEL; MEMORANDUM REGARDING SAME	0.40 hrs.	70.00
01/21/2016	DEC	CONTINUE WORK ON	3.00 hrs.	525.00
01/21/2016	JAH	CONTINUE PREPARING	4.50 hrs.	675.00

01/21/2016	JAH	REVIEW AND REVISE	2.10 hrs.	315.00
01/21/2016	ADW	PREPARE EMAIL CORRESPONDENCE TO OPPOSING COUNSEL REGARDING ATTACHMENT OF FMC INITIAL DECISION TO JOINT STATUS REPORT	0.20 hrs.	30.00
01/21/2016	ADW	CONTINUE DRAFTING OF	6.50 hrs.	975.00
01/22/2016	DEC	CONTINUE WORK ON	2.00 hrs.	350.00
01/25/2016	APB	ASSIST WITH REVIEW OF	1.40 hrs.	245.00
01/25/2016	APB	RESEARCH	0.40 hrs.	70.00
01/25/2016	JAH	CONFERENCE WITH ADW REGARDING	0.40 hrs.	60.00
01/25/2016	JAH	LEGAL RESEARCH REGARDING	1.80 hrs.	270.00
01/25/2016	ADW	CONTINUE DRAFTING AND REVISION OF	6.90 hrs.	1,035.00
01/26/2016	APB	REVIEW, REVISE AND EDIT	3.20 hrs.	560.00
01/26/2016	DEC	REVIEW	4.60 hrs.	805.00
01/26/2016	ADW	CONTINUE LEGAL RESEARCH AND DRAFTING AND REVISION OF	5.60 hrs.	840.00
01/27/2016	APB	RESEARCH AND PREPARATION OF ; FORMULATE .	6.90 hrs.	1,207.50
01/27/2016	DEC	CONTINUE PREPARATION OF	5.00 hrs.	875.00
01/27/2016	JAH	CONTINUED RESEARCH AND PREPARATION OF	4.60 hrs.	690.00

01/27/2016	ADW	CONTINUE DRAFTING OF	6.50 hrs.	975.00
01/28/2016	APB	CONTINUE REVISIONS, EDITS AND SUPPLEMENTATION TO	5.80 hrs.	1,015.00
01/28/2016	APB	LETTER TO MIKE MIERZWA AND COURT STAFF REGARDING	0.20 hrs.	35.00
01/28/2016	DEC	CONTINUE WORK ON	5.70 hrs.	997.50
01/28/2016	JAH	CONTINUE RESEARCH AND PREPARATION FOR	2.40 hrs.	360.00
01/28/2016	ADW	FINALIZE	4.50 hrs.	675.00

 \$30,030.00
EXPENSES

01/29/2016	PACER SERVICE CENTER - SEVRICE FEE FOR COPIES OF COURT DOCUMENTS AND RESEARCH	5.30
01/31/2016	COPYING	1.60
01/31/2016	WEST LAW RESEARCH	337.73
		\$344.63

Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>27.10 hrs</u>	<u>\$175.00 /hr</u>	<u>\$4,742.50</u>
<u>COWEN, DAVID E.</u>	<u>63.50 hrs</u>	<u>\$175.00 /hr</u>	<u>\$11,112.50</u>
<u>HOLLAND, JOCELYN</u>	<u>26.10 hrs</u>	<u>\$150.00 /hr</u>	<u>\$3,915.00</u>
<u>A.</u>			
<u>WRIGHT, AMANDA D.</u>	<u>68.40 hrs</u>	<u>\$150.00 /hr</u>	<u>\$10,260.00</u>

Total professional services	\$30,030.00
Total expenses incurred	\$344.63

Total of new charges for this invoice	\$30,374.63
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PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 115531 APB
Our file# 12432 14003
Billing through 02/29/2016

PROFESSIONAL SERVICES

02/02/2016	APB	FINAL REVIEW AND PREPARATIONS OF	3.60 hrs.	630.00
02/02/2016	DEC	; TELEPHONE CALL WITH MIKE MIERZWA REGARDING SAME FINAL REVIEW OF	1.40 hrs.	245.00
02/02/2016	JAH	PREPARE	0.60 hrs.	90.00
02/02/2016	ADW	FINALIZE (.5); PREPARE CORRESPONDENCE TO FMC SECRETARY REGARDING FILING (.1); AND FILE REPLY BRIEF (.1)	0.70 hrs.	105.00
02/08/2016	APB	REVIEW NOTICE FROM DISTRICT CLERK REGARDING CANCELLATION OF STATUS CONFERENCE; MEMORANDUM REGARDING SAME	0.20 hrs.	35.00
02/08/2016	ADW	REVIEW	0.50 hrs.	75.00
				<u>\$1,372.50</u>
<u>EXPENSES</u>				
02/29/2016	COPYING			78.40
02/29/2016	POSTAGE			31.69
02/29/2016	SCANNING			8.50
				<u>\$118.59</u>

Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>4.90 hrs</u>	<u>\$175.00 /hr</u>	<u>\$857.50</u>
<u>COWEN, DAVID E.</u>	<u>1.40 hrs</u>	<u>\$175.00 /hr</u>	<u>\$245.00</u>
<u>HOLLAND, JOCELYN</u>	<u>0.60 hrs</u>	<u>\$150.00 /hr</u>	<u>\$90.00</u>
<u>A.</u>			
<u>WRIGHT, AMANDA D.</u>	<u>1.20 hrs</u>	<u>\$150.00 /hr</u>	<u>\$180.00</u>
Total professional services			\$1,372.50
Total expenses incurred			\$118.59
Total of new charges for this invoice			<u>\$1,491.09</u>

PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.
802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

March 31, 2016

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 115808 APB
Our file# 12432 14003
Billing through 03/31/2016

LIGHTHOUSE PARKING FMC COMPLAINT

PROFESSIONAL SERVICES

03/02/2016	DEC	REVIEW	2.20 hrs.	385.00
03/03/2016	APB	EMAILS WITH CLIENT REVIEW TO MIKE MIERZWA REGARDING	0.90 hrs.	157.50
03/03/2016	DEC	CONTINUE REVIEW ON EXCHANGE EMAILS WITH MIERZWA ON	1.20 hrs.	210.00
03/07/2016	DEC	PREPARE	1.40 hrs.	245.00
03/11/2016	ADW	CHECK STATUS OF PLAINTIFFS' PAYMENTS UNDER INTERIM ORDER (.3); AND PREPARE JOINT STATUS REPORT FOR FEDERAL CASE (.5)	0.80 hrs.	120.00
03/14/2016	DEC	REVIEW	0.30 hrs.	52.50
03/16/2016	APB	REVIEW	0.60 hrs.	105.00
03/16/2016	APB	TELEPHONE CALL WITH OPPOSING COUNSEL REGARDING REQUEST BY LIGHTHOUSE PARKING, INC. TO DISCUSS SETTLEMENT; LETTER TO MIKE MIERZWA AND PORT STAFF REGARDING SAME	0.40 hrs.	70.00

03/16/2016	DEC	REVIEW ; REVIEW ; REVIEW ; EXCHANGE	1.00 hrs.	175.00
03/17/2016	APB	EMAILS WITH CLIENT TELEPHONE CALL WITH MIKE MIERZWA REGARDING	0.60 hrs.	105.00
03/21/2016	APB	; TELEPHONE CALL WITH COUNSEL FOR COMPLAINANTS; MEMORANDUM REGARDING SAME REVIEW AND ANALYZE ; LETTER TO MIKE MIERZWA AND PORT STAFF REGARDING SAME; MEMORANDUM REGARDING	0.70 hrs.	122.50
03/22/2016	DEC	CONTINUE WORK ON RESEARCH ON	7.00 hrs.	1,225.00
03/22/2016	JAH	LEGAL RESEARCH REGARDING	1.80 hrs.	270.00
03/23/2016	APB	COMPILE MATERIALS REGARDING	2.30 hrs.	402.50
03/23/2016	DEC	CONTINUE WORK ON ; REVIEW	1.40 hrs.	245.00
03/24/2016	DEC	REVIEW	1.00 hrs.	175.00
03/31/2016	APB	ASSIST WITH FORMULATION OF STRATEGY FOR	0.40 hrs.	70.00
03/31/2016	DEC	REVIEW	2.30 hrs.	402.50
03/31/2016	JAH	CONFERENCE WITH DEC AND ADW TO DISCUSS STRATEGY FOR	1.30 hrs.	195.00

12432	GALVESTON WHARVES	Invoice# 115808	Page 3
03/31/2016	ADW MEETING WITH DEC AND JAH REGARDING	1.00 hrs.	150.00

\$5,040.00

EXPENSES

03/31/2016	WEST LAW RESEARCH	149.28
		<u>\$149.28</u>

Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>6.10 hrs</u>	<u>\$175.00 /hr</u>	<u>\$1,067.50</u>
<u>COWEN, DAVID E.</u>	<u>18.50 hrs</u>	<u>\$175.00 /hr</u>	<u>\$3,237.50</u>
<u>HOLLAND, JOCELYN</u>	<u>3.10 hrs</u>	<u>\$150.00 /hr</u>	<u>\$465.00</u>
<u>A.</u>			
<u>WRIGHT, AMANDA D.</u>	<u>1.80 hrs</u>	<u>\$150.00 /hr</u>	<u>\$270.00</u>

Total professional services	\$5,040.00
Total expenses incurred	\$149.28

Total of new charges for this invoice	<u>\$5,189.28</u>
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PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

April 30, 2016

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 116028 APB
Our file# 12432 14003
Billing through 04/30/2016

LIGHTHOUSE PARKING FMC COMPLAINT

PROFESSIONAL SERVICES

04/01/2016	APB	REVIEW NOTIFICATIONS FROM DISTRICT CLERK REGARDING PAYMENTS BY SYLVIA ROBLEDO AND EZ CRUISE INTO FEDERAL COURT REGISTRY	0.20 hrs.	35.00
04/05/2016	DEC	REVIEW	1.80 hrs.	315.00
04/05/2016	JAH	REVIEW	0.70 hrs.	105.00
04/06/2016	APB	SUPPLEMENTAL RESEARCH ON	1.20 hrs.	210.00
04/22/2016	JAH	LEGAL RESEARCH	1.50 hrs.	225.00

04/25/2016	JAH	LEGAL RESEARCH	1.10 hrs.	165.00
04/26/2016	JAH	LEGAL RESEARCH	1.70 hrs.	255.00
04/26/2016	JAH	LEGAL RESEARCH REGARDING	1.40 hrs.	210.00
				<u>\$1,730.00</u>

EXPENSES

04/29/2016	PACER SERVICE CENTER - SERVICE FEE FOR RECORDS SEARCH AND COURT COPIES	0.80
04/29/2016	PACER SERVICE CENTER - SERVICE FEE FOR SEARCH AND COURT COPIES	1.20
04/30/2016	WEST LAW RESEARCH	97.38
		<u>\$99.38</u>

Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>2.60 hrs</u>	<u>\$175.00 /hr</u>	<u>\$455.00</u>
<u>COWEN, DAVID E.</u>	<u>1.80 hrs</u>	<u>\$175.00 /hr</u>	<u>\$315.00</u>
<u>HOLLAND, JOCELYN</u>	<u>6.40 hrs</u>	<u>\$150.00 /hr</u>	<u>\$960.00</u>
<u>A.</u>			

Total professional services	\$1,730.00
Total expenses incurred	\$99.38

Total of new charges for this invoice	<u>\$1,829.38</u>
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PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

May 31, 2016

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 116357 APB
Our file# 12432 14003
Billing through 05/31/2016

LIGHTHOUSE PARKING FMC COMPLAINT

PROFESSIONAL SERVICES

05/02/2016	JAH	BEGIN PREPARING MEMORANDUM TO APB AND DEC REGARDING	3.70 hrs.	555.00
05/18/2016	DEC	COORDINATE	0.40 hrs.	70.00
05/19/2016	ADW	TELECONFERENCE WITH MARK MURCHINSON REGARDING	0.70 hrs.	105.00
		(.10); RESEARCH PLAINTIFFS' PAYMENTS TO THE COURT REGISTRY UNDER INTERIM ORDER (.10); AND PREPARE JOINT STATUS REPORT (.50)		
05/20/2016	APB	REVISE AND SUPPLEMENT DRAFT JOINT STATUS REPORT IN FEDERAL DISTRICT COURT PROCEEDING; LETTER TO OPPOSING COUNSEL REQUESTING APPROVAL AND AGREEMENT TO FILE JOINT STATUS REPORT WITH FEDERAL DISTRICT COURT	0.40 hrs.	70.00
05/20/2016	APB	REVIEW CORRESPONDENCE FROM OPPOSING COUNSEL APPROVING JOINT STATUS REPORT; LETTER REGARDING SAME	0.30 hrs.	52.50
				\$852.50

EXPENSES

05/31/2016	WEST LAW RESEARCH			28.61
				\$28.61

Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>0.70 hrs</u>	<u>\$175.00</u>	<u>/hr</u>	<u>\$122.50</u>
<u>COWEN, DAVID E.</u>	<u>0.40 hrs</u>	<u>\$175.00</u>	<u>/hr</u>	<u>\$70.00</u>
<u>HOLLAND, JOCELYN</u>	<u>3.70 hrs</u>	<u>\$150.00</u>	<u>/hr</u>	<u>\$555.00</u>
<u>A.</u>				
<u>WRIGHT, AMANDA D.</u>	<u>0.70 hrs</u>	<u>\$150.00</u>	<u>/hr</u>	<u>\$105.00</u>

Total professional services	\$852.50
Total expenses incurred	\$28.61
Total of new charges for this invoice	\$881.11

PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

June 30, 2016

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 116584 APB
Our file# 12432 14003
Billing through 06/30/2016

LIGHTHOUSE PARKING FMC COMPLAINT

PROFESSIONAL SERVICES

06/06/2016	APB	REVIEW	0.40 hrs.	70.00
06/20/2016	APB	REVIEW CORRESPONDENCE FROM OPPOSING COUNSEL ACKNOWLEDGING RECEIPT OF NOTICE OF EXTENSION; REVIEW	0.60 hrs.	105.00
06/20/2016	DEC	REVIEW ; LETTER TO FMC STAFF REGARDING FAILURE TO SEND US THE NOTICE OF EXTENSION AND REQUESTING COPY OF SAME	0.30 hrs.	52.50
06/20/2016	DEC	EXCHANGE EMAILS ON REVIEW ;	2.70 hrs.	472.50
06/20/2016	ADW	RECIEVE AND REVIEW FMC'S NOTICE OF EXTENSION OF TIME	0.10 hrs.	15.00
06/22/2016	DEC	REVIEW	1.40 hrs.	245.00
06/27/2016	APB	REVIEW CORRESPONDENCE FROM DISTRICT CLERK REGARDING DEPOSIT OF FUNDS INTO COURT REGISTRY BY LIGHTHOUSE PARKING, INC.	0.10 hrs.	17.50
06/27/2016	ADW	CALCULATE	0.20 hrs.	30.00
06/27/2016	ADW	CONTACT FMC SECRETARY INQUIRING AS TO REASON FOR EXTENSION OF DEADLINE FOR COMMISSION'S OPINION (.40); EMAIL TO APB AND DEC REGARDING SAME (.10)	0.50 hrs.	75.00
06/28/2016	APB	REVIEW NOTICE FROM DISTRICT CLERK REGARDING DEPOSIT OF FUNDS INTO COURT REGISTRY BY SANTA FE DISCOUNT CRUISE PARKING, INC. D/B/A EZ CRUISE	0.10 hrs.	17.50

\$1,100.00

Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>1.20 hrs</u>	<u>\$175.00 /hr</u>	<u>\$210.00</u>
<u>COWEN, DAVID E.</u>	<u>4.40 hrs</u>	<u>\$175.00 /hr</u>	<u>\$770.00</u>
<u>WRIGHT, AMANDA D.</u>	<u>0.80 hrs</u>	<u>\$150.00 /hr</u>	<u>\$120.00</u>

Total professional services	\$1,100.00
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Total of new charges for this invoice	\$1,100.00
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PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

August 31, 2016

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 117253 APB
Our file# 12432 14003
Billing through 08/31/2016

LIGHTHOUSE PARKING FMC COMPLAINT

PROFESSIONAL SERVICES

08/08/2016	ADW	RESEARCH AND UPDATE	0.70 hrs.	105.00
08/17/2016	APB	TELEPHONE CALL WITH MIKE MIERZWA REGARDING	0.20 hrs.	35.00
08/17/2016	APB	RESEARCH	0.60 hrs.	105.00
08/17/2016	APB	; LETTER TO MIKE MIERZWA AND PORT STAFF REGARDING SAME TELEPHONE CALL WITH OPPOSING COUNSEL REGARDING TRANSFER OF OWNERSHIP OF LIGHTHOUSE PARKING, INC. AND PRIOR SETTLEMENT DISCUSSIONS; RESEARCH	1.40 hrs.	245.00
		; TELEPHONE CALL WITH MIKE MIERZWA AND MARK MURCHISON REGARDING SAME; LETTER TO MARK MURCHISON		
		; MEMORANDUM REGARDING		
08/17/2016	DEC	REVIEW	0.40 hrs.	70.00
08/31/2016	ADW	PREPARE JOINT STATUS REPORT TO BE FILED IN FEDERAL COURT CASE (.4); EMAIL SAME TO OPPOSING COUNSEL FOR REVIEW AND APPROVAL (.1)	0.50 hrs.	75.00
				\$635.00
<u>EXPENSES</u>				
07/22/2016		PACER SERVICE CENTER - SERVICE FEE FOR COURT COPIES		0.40
				\$0.40

Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>2.20 hrs</u>	<u>\$175.00 /hr</u>	<u>\$385.00</u>
<u>COWEN, DAVID E.</u>	<u>0.40 hrs</u>	<u>\$175.00 /hr</u>	<u>\$70.00</u>
<u>WRIGHT, AMANDA D.</u>	<u>1.20 hrs</u>	<u>\$150.00 /hr</u>	<u>\$180.00</u>
Total professional services			\$635.00
Total expenses incurred			\$0.40
Total of new charges for this invoice			\$635.40

PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

September 30, 2016

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 117461 APB
Our file# 12432 14003
Billing through 09/30/2016

LIGHTHOUSE PARKING FMC COMPLAINT

PROFESSIONAL SERVICES

09/01/2016	APB	REVIEW ; LETTER TO COUNSEL FOR COMPLAINANTS REGARDING STATUS REPORT AND PRIOR SETTLEMENT DISCUSSIONS	0.70 hrs.	122.50
09/06/2016	DEC	REVIEW FEDERAL COURT ORDER CLOSING CASE AND EXCHANGE EMAILS ON REGISTRY DEPOSTI ISSUES	0.20 hrs.	35.00
09/06/2016	ADW	RETRIEVE AND REVIEW COURT ORDER ADMINISTRATIVELY CLOSING FEDERAL COURT PROCEEDINGS (.1); EMAIL CORRESPONDENCE TO APB AND DEC REGARDING (.1)	0.20 hrs.	30.00
09/07/2016	APB	REVIEW CORRESPONDENCE AND COURT ORDER "ADMINISTRATIVELY CLOSING" PARALLEL DISTRICT COURT SUIT; MEMORANDUM REGARDING SAME; LETTER TO MIKE MIERZWA REGARDING SAME	0.50 hrs.	87.50
09/07/2016	DEC	REVIEW	0.30 hrs.	52.50
09/07/2016	ADW	PREPARE	2.50 hrs.	375.00
09/07/2016	ADW	IN PERSON MEETING WITH FEDERAL DISTRICT CLERK AND JUDGE HANKS' COORDINATOR AND CLERK TO DISCUSS IMPLICATIONS OF RECENT ORDER THAT FEDERAL PROCEEDING BE ADMINISTRATIVELY CLOSED (.8); IN FIRM MEETING WITH APB REGARDING (.1)	0.90 hrs.	135.00
09/13/2016	APB	CONTINUE PREPARATION OF ; MEMORANDUM REGARDING SAME	0.80 hrs.	140.00
09/13/2016	DEC	REVIEW	0.50 hrs.	87.50
09/13/2016	ADW	REVIEW AND PREPARE	0.70 hrs.	105.00

\$1,170.00EXPENSES

09/30/2016 WEST LAW RESEARCH

34.71

\$34.71Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>2.00</u> <u>hrs</u>	<u>\$175.00</u> <u>/hr</u>	<u>\$350.00</u>
<u>COWEN, DAVID E.</u>	<u>1.00</u> <u>hrs</u>	<u>\$175.00</u> <u>/hr</u>	<u>\$175.00</u>
<u>WRIGHT, AMANDA D.</u>	<u>4.30</u> <u>hrs</u>	<u>\$150.00</u> <u>/hr</u>	<u>\$645.00</u>

Total professional services \$1,170.00

Total expenses incurred \$34.71

Total of new charges for this invoice

\$1,204.71

PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

October 31, 2016

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 117704 APB
Our file# 12432 14003
Billing through 10/31/2016

LIGHTHOUSE PARKING FMC COMPLAINT

PROFESSIONAL SERVICES

10/04/2016	APB	REVIEW NOTICES FROM FEDERAL COURT DISTRICT CLERK REGARDING PAYMENTS BY LIGHTHOUSE PARKING AND EZ CRUISE INTO COURT REGISTRY	0.20 hrs.	35.00
10/13/2016	APB	REVIEW AND ANALYZE	0.30 hrs.	52.50
10/19/2016	APB	LISTEN TO	0.40 hrs.	70.00
10/31/2016	APB	REVIEW AND ANALYZE NOTICE FROM DISTRICT COURT REGARDING DEPOSIT OF FUNDS BY LIGHTHOUSE PARKING, INC. INTO THE COURT REGISTRY	0.10 hrs.	17.50
				\$175.00

EXPENSES

10/10/2016	SECRETARY OF STATE - SERVICE FEE AND COPIES	1.00
10/19/2016	PACER SERVICE CENTER - SERVICE FEE FOR COURT DOCUMENTS	1.90
		\$2.90

Billing Summary

<u>BROWN, ANTHONY P.</u>	1.00 hrs	<u>\$175.00</u> /hr	<u>\$175.00</u>
Total professional services			\$175.00
Total expenses incurred			\$2.90
Total of new charges for this invoice			\$177.90

PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

December 31, 2016

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 118287 APB
Our file# 12432 14003
Billing through 12/31/2016

LIGHTHOUSE PARKING FMC COMPLAINT

PROFESSIONAL SERVICES

12/02/2016	APB	REVIEW ; RESEARCH	1.20 hrs.	210.00
12/20/2016	APB	REVIEW NOTICE FROM FMC ORDER EXTENDING DEADLINE TO RULE ON APPEAL TO FEBRUARY 21, 2017; LETTER TO MIKE MIERZWA AND PETER SIMONS REGARDING SAME	0.40 hrs.	70.00
12/20/2016	DEC	REVIEW NOTICE OF FMC EXTENSION AND EMAIL EXCHANGE RELATED TO SAME	0.20 hrs.	35.00
12/21/2016	APB	REVIEW CORRESPONDENCE FROM MIKE MIERZWA AND PETER SIMONS REGARDING ON ; INITIAL RESEARCH	1.60 hrs.	280.00
12/21/2016	DEC	REVIEW FMC ORDER; REVIEW EMAILS ON	1.00 hrs.	175.00
12/26/2016	APB	RESEARCH ; MEMORANDUM REGARDING SAME	0.90 hrs.	157.50
				\$927.50

Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>4.10 hrs</u>	<u>\$175.00 /hr</u>	<u>\$717.50</u>
<u>COWEN, DAVID E.</u>	<u>1.20 hrs</u>	<u>\$175.00 /hr</u>	<u>\$210.00</u>

Total professional services \$927.50

Total of new charges for this invoice

\$927.50

PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

January 31, 2017

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 118539 APB
Our file# 12432 14003
Billing through 01/31/2017

LIGHTHOUSE PARKING FMC COMPLAINT

PROFESSIONAL SERVICES

01/04/2017	DEC	EXCHANGE EMAILS WITH MURCHISON ON ; REVIEW ; PHONE CALL WITH MURCHISON; CONTINUE WORK ON	0.90 hrs.	157.50
01/05/2017	DEC	CONTINUE ANALYSIS OF	1.00 hrs.	175.00
01/13/2017	APB	REVIEW AND ANALYZE EVALUATE STRATEGY FOR ; LETTER TO PETER SIMONS AND PORT STAFF REGARDING SAME; ASSIST WITH PREPARATION OF	2.80 hrs.	490.00
01/13/2017	ADW	REVIEW	0.90 hrs.	135.00
01/16/2017	ADW	REVIEW	4.50 hrs.	675.00
01/17/2017	APB	MEMORANDUM REQUESTING	0.20 hrs.	35.00
01/17/2017	APB	REVIEW ; FORMULATE PROPOSED STRATEGY REGARDING SAME; LETTER TO PETER SIMONS	1.30 hrs.	227.50
01/17/2017	ADW	EMAIL CORRESPONDENCE TO MARK MURCHINSON REGARDING	0.20 hrs.	30.00
01/17/2017	ADW	CONDUCT LEGAL RESEARCH ON	1.90 hrs.	285.00

01/18/2017	ADW	CONDUCT LEGAL RESEARCH REGARDING (2.0) AND PREPARE (3.0)	5.00 hrs.	750.00
01/19/2017	APB	RESEARCH LEGAL RESEARCH REGARDING	2.40 hrs.	420.00
01/19/2017	APB	REVIEW CORRESPONDENCE FROM OPPOSING COUNSEL CANCELING PLANNED JANUARY 20 MEETING; LETTER REGARDING SAME	0.30 hrs.	52.50
01/19/2017	APB	DRAFT DRAFT	3.90 hrs.	682.50
01/19/2017	DEC	REVIEW	1.00 hrs.	175.00
01/19/2017	LYC	CONFERENCE WITH DISTRICT CLERK OFFICIALS REGARDING PROCEDURE TO ADMINISTRATIVELY RE-OPEN CASE SO FUNDS MAY BE WITHDRAWN FROM REGISTRY	0.80 hrs.	140.00
01/20/2017	APB	CONTINUE PREPARATION OF MEMORANDUM REGARDING SAME	1.80 hrs.	315.00
01/20/2017	DEC	ANALYSIS AND RESEARCH REGARDING	3.70 hrs.	647.50
01/20/2017	DEC	BEGIN CRAFTING ARGUMENT TO	2.40 hrs.	420.00
01/20/2017	ADW	REVIEW	2.50 hrs.	375.00
01/20/2017	ADW	REVISE	0.10 hrs.	15.00
01/23/2017	APB	ASSIST WITH PREPARATION OF	1.20 hrs.	210.00
01/23/2017	DEC	CONTINUE WORK ON	2.10 hrs.	367.50
01/23/2017	DEC	REVIEW WORK ON	3.20 hrs.	560.00
01/23/2017	DEC	CONTINUE WORK ON	1.20 hrs.	210.00

01/23/2017	ADW	REVIEW	0.80 hrs.	120.00
01/23/2017	ADW	CONTINUE REVIEW	4.80 hrs.	720.00
01/24/2017	DEC	CONTINUE WORK ON	2.00 hrs.	350.00
01/24/2017	DEC	CONTINUE WORK ON	2.40 hrs.	420.00
01/24/2017	ADW	CALCULATE	0.80 hrs.	120.00
01/24/2017	ADW	RECEIVE AND REVIEW	1.50 hrs.	225.00
01/26/2017	ADW	CONTINUE REVIEW	2.00 hrs.	300.00
01/27/2017	APB	CONTINUE REVISIONS TO ; MEMORANDUM	0.50 hrs.	87.50
01/27/2017	APB	REGARDING SAME REVISE AND SUPPLEMENT	0.60 hrs.	105.00
01/27/2017	DEC	MEMORANDUM REGARDING SAME COORDINATE FINALIZING	0.50 hrs.	87.50
				\$10,085.00
<u>EXPENSES</u>				
01/31/2017	COPYING			5.80
				\$5.80

Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>15.00 hrs</u>	<u>\$175.00 /hr</u>	<u>\$2,625.00</u>
<u>COWEN, DAVID E.</u>	<u>20.40 hrs</u>	<u>\$175.00 /hr</u>	<u>\$3,570.00</u>
<u>COURTNEY, LYLE Y.</u>	<u>0.80 hrs</u>	<u>\$175.00 /hr</u>	<u>\$140.00</u>
<u>WRIGHT, AMANDA D.</u>	<u>25.00 hrs</u>	<u>\$150.00 /hr</u>	<u>\$3,750.00</u>

Total professional services	\$10,085.00
Total expenses incurred	\$5.80

Total of new charges for this invoice	\$10,090.80
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PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

McLEOD, ALEXANDER, POWEL & APFFEL, P.C.

802 ROSENBERG
P. O. BOX 629
GALVESTON, TEXAS 77553
GALVESTON (409) 763-2481
HOUSTON (281) 488-7150
TAX ID # 74-1722820

February 28, 2017

GALVESTON WHARVES
P. O. BOX 328
GALVESTON, TEXAS 77553

Invoice# 118804 APB
Our file# 12432 14003
Billing through 02/28/2017

LIGHTHOUSE PARKING FMC COMPLAINT**PROFESSIONAL SERVICES**

02/01/2017	JMZ	BEGIN	6.80 hrs.	442.00
02/02/2017	APB	REVIEW	0.30 hrs.	52.50
		; MEMORANDUM REGARDING		
02/03/2017	ADW	REVISE AND	0.80 hrs.	120.00
02/06/2017	DEC	REVIEW ; REVIEW	0.40 hrs.	70.00
02/08/2017	DEC	COORDINATE	0.40 hrs.	70.00
02/14/2017	APB	CONFERENCE WITH	0.40 hrs.	70.00
02/14/2017	DEC	REVIEW COORDINATE ; COORDINATE AND	1.00 hrs.	175.00
02/15/2017	APB	SUPPLEMENTAL RESEARCH REGARDING REGARDING	0.70 hrs.	122.50
02/15/2017	DEC	REVIEW	0.50 hrs.	87.50
02/16/2017	APB	SUPPLEMENTAL PREPARATION OF	1.30 hrs.	227.50
02/16/2017	DEC	COORDINATE	0.40 hrs.	70.00
02/16/2017	ADW	FINALIZE AND PREPARE	0.40 hrs.	60.00

02/16/2017	JMZ	PREPARE	0.30 hrs.	19.50
/EFILE DOCUMENTS				
02/17/2017	APB	TELEPHONE CALL WITH	0.30 hrs.	52.50
02/17/2017	APB	INITIAL REVIEW AND ANALYSIS OF	0.50 hrs.	87.50
02/17/2017	DEC	MEMORANDUM REGARDING REVIEW ISSUES ON NEED TO	0.40 hrs.	70.00
02/17/2017	JMZ	PREPARE	0.30 hrs.	19.50
/EFILE DOCUMENTS				
02/20/2017	APB	REVIEW	0.30 hrs.	52.50
02/20/2017	APB	MEMORANDUM REGARDING REVIEW	0.40 hrs.	70.00
; LETTER TO				
02/20/2017	JAH	LEGAL RESEARCH REGARDING	0.90 hrs.	135.00
02/20/2017	ADW	REVISE	0.10 hrs.	15.00
02/20/2017	JMZ	PREPARE	0.30 hrs.	19.50
/EFILE DOCUMENTS				
02/21/2017	APB	INITIAL RESEARCH REGARDING	1.20 hrs.	210.00
02/21/2017	JAH	MEMORANDUM REGARDING PREPARE	0.20 hrs.	30.00
02/21/2017	ADW	REVIEW	1.80 hrs.	270.00
02/21/2017	JMZ	CONTINUE	5.60 hrs.	364.00

02/22/2017	JMZ	CONTINUE	3.20 hrs.	208.00
02/23/2017	JMZ	CONTINUE	2.40 hrs.	156.00
02/24/2017	JMZ	COMPLETE	1.20 hrs.	78.00
02/27/2017	JAH	LEGAL RESEARCH ON	0.70 hrs.	105.00
02/28/2017	APB	TELEPHONE CALL WITH REVIEW	0.30 hrs.	52.50

\$3,581.50EXPENSES

02/28/2017 WEST LAW RESEARCH

40.22

\$40.22Billing Summary

<u>BROWN, ANTHONY P.</u>	<u>5.70 hrs</u>	<u>\$175.00 /hr</u>	<u>\$997.50</u>
<u>COWEN, DAVID E.</u>	<u>3.10 hrs</u>	<u>\$175.00 /hr</u>	<u>\$542.50</u>
<u>HOLLAND, JOCELYN</u>	<u>1.80 hrs</u>	<u>\$150.00 /hr</u>	<u>\$270.00</u>
<u>A.</u>			
<u>WRIGHT, AMANDA D.</u>	<u>3.10 hrs</u>	<u>\$150.00 /hr</u>	<u>\$465.00</u>
<u>ZEPEDA, JENNIFER M.</u>	<u>20.10 hrs</u>	<u>\$65.00 /hr</u>	<u>\$1,306.50</u>

Total professional services \$3,581.50

Total expenses incurred \$40.22

Total of new charges for this invoice

\$3,621.72

PLEASE SUBMIT PAYMENT TO MCLEOD, ALEXANDER, POWEL & APFFEL, P.C.

EXHIBIT B

LAFHEY MATRIX – 2014-2015

Years (Rate for June 1 – May 31, based on prior year's CPI-U)

Experience	14-15
20+ years	520
11-19 years	460
8-10 years	370
4-7 years	300
1-3 years	255
Paralegals & Law Clerks	150

Explanatory Notes:

1. This matrix of hourly rates for attorneys of varying experience levels and paralegals/law clerks has been prepared by the Civil Division of the United States Attorney's Office for the District of Columbia. The matrix is intended to be used in cases in which a "fee-shifting" statute permits the prevailing party to recover "reasonable" attorney's fees. *See, e.g.*, 42 U.S.C. § 2000e-5(k) (Title VII of the 1964 Civil Rights Act); 5 U.S.C. § 552(a)(4)(E) (Freedom of Information Act); 28 U.S.C. § 2412(b) (Equal Access to Justice Act). The matrix does not apply to cases in which the hourly rate is limited by statute. *See* 28 U.S.C. § 2412(d).
2. This matrix is based on the hourly rates allowed in *Laffey v. Northwest Airlines, Inc.*, 572 F. Supp. 354 (D.D.C. 1983), *aff'd in part, rev'd in part on other grounds*, 746 F.2d 4 (D.C. Cir. 1984), *cert. denied*, 472 U.S. 1021 (1985). It is commonly referred to by attorneys and federal judges in the District of Columbia as the "Laffey Matrix" or the "United States Attorney's Office Matrix." The various "brackets" in the column headed "Experience" refer to the years following the attorney's graduation from law school, and are intended to correspond to "junior associates" (1-3 years after law school graduation), "senior associates" (4-7 years), "experienced federal court litigators" (8-10 and 11-19 years), and "very experienced federal court litigators" (20 years or more). Thus, the "1-3 years" bracket is generally applicable to attorneys in their first, second, and third years after graduation from law school, and the "4-7 years" bracket generally becomes applicable on the third anniversary of the attorney's graduation (*i.e.*, at the beginning of the fourth year following law school). *See Laffey*, 572 F. Supp. at 371; *but cf. EPIC v. Dep't of Homeland Sec.*, No. 11-2261, ___ F. Supp. 2d ___, 2013 WL 6047561, *6 -*7 (D.D.C. Nov. 15, 2013) (attorney not admitted to bar compensated at "Paralegals & Law Clerks" rate); *EPIC v. Dep't of Homeland Sec.*, 982 F. Supp.2d 56, 60-61 (D.D.C. 2013) (same).
3. The hourly rates approved in *Laffey* were for work done principally in 1981-82. The matrix begins with those rates. *See Laffey*, 572 F. Supp. at 371 (attorney rates) & 386 n.74 (paralegal and law clerk rate). The rates for subsequent yearly periods were determined by adding the change in the cost of living for the Washington, D.C. area to the applicable rate for the prior year, and then rounding to the nearest multiple of \$5 (up if within \$3 of the next multiple of \$5). The result is subject to adjustment if appropriate to ensure that the relationship between the highest rate and the lower rates remains reasonably constant. Changes in the cost of living are measured by the Consumer Price Index for All Urban Consumers (CPI-U) for Washington-Baltimore, DC-MD-VA-WV, as announced by the Bureau of Labor Statistics for May of each year.
4. Use of an updated Laffey Matrix was implicitly endorsed by the Court of Appeals in *Save Our Cumberland Mountains v. Hodel*, 857 F.2d 1516, 1525 (D.C. Cir. 1988) (en banc). The Court of Appeals subsequently stated that parties may rely on the updated *Laffey* Matrix prepared by the United States Attorney's Office as evidence of

prevailing market rates for litigation counsel in the Washington, D.C. area. See *Covington v. District of Columbia*, 57 F.3d 1101, 1105 & n.14, 1109 (D.C. Cir. 1995), *cert. denied*, 516 U.S. 1115 (1996). Most lower federal courts in the District of Columbia have relied on the United States Attorney's Office Matrix, rather than the so-called "Updated Laffey Matrix," as the "benchmark for reasonable fees" in this jurisdiction. *Miller v. Holzmahn*, 575 F. Supp. 2d 2, 18 n.29 (D.D.C. 2008) (quoting *Pleasants v. Ridge*, 424 F. Supp. 2d 67, 71 n.2 (D.D.C. 2006)); see, e.g., *Berke v. Bureau of Prisons*, 942 F. Supp. 2d 71, 77 (D.D.C. 2013); *Heller v. District of Columbia*, 832 F. Supp. 2d 32, 40-49 (D.D.C. 2011); *American Lands Alliance v. Norton*, 525 F. Supp. 2d 135, 150 (D.D.C. 2007). But see *Salazar v. District of Columbia*, 123 F. Supp. 2d 8, 14-15 (D.D.C. 2000). The United States Attorney's Office does not use the "Updated Laffey Matrix" to determine whether fee awards under fee shifting statutes are reasonable.